



PARLIAMENTARY DEBATES

OFFICIAL REPORT

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THE
PARLIAMENT OF THE REPUBLIC
OF GHANA

THIRD MEETING, 2025

Wednesday, 17th December, 2025

*The House met at the Chamber,
Parliament House, at 1:36 p.m.*

[HON FIRST DEPUTY SPEAKER,
MR BERNARD AHIAFOR, IN THE
CHAIR]

[PRAYERS]

**FORMAL COMMUNICATION BY
THE SPEAKER**

Mr First Deputy Speaker: Hon Members, we are all invited to the festival of Nine Lessons and Carols. The Speaker of Parliament would be hosting the President of the Republic of Ghana, H. E. John Dramani Mahama. It would be held tomorrow, at the forecourt of the Parliament of Ghana, at 6 p.m. We are all cordially invited; we should be there in our numbers.

Hon Members, that being the Communication by the Speaker, we then take the item numbered 5, *Correction of Votes and Proceedings* and the *Official Report*.

**VOTES AND PROCEEDINGS AND
THE OFFICIAL REPORT**

Mr First Deputy Speaker: I hold in my hands, the *Votes and Proceedings* of

Tuesday, 16th December, 2025 for correction.

Page 1...9—

Yes, Hon Assafuah?

Mr Vincent Ekow Assafuah: Thank you very much, Mr Speaker.

On the page numbered 9, the item numbered 8(a), second paragraph which reads, “Report of the Committee on Economy and Development on the Bank of Ghana (Amendment) Bill 2026.” The correct rendition should be “2025”.

The First Deputy Speaker: Thank you so much for that observation. Table Office, take note of it.

Page 10...15— Yes, Hon Minority Leader?

Osahen Alexander Kwamena Afenyo-Markin: Mr Speaker, with respect, on this rising, I want to address an issue at paragraph 21, on the page numbered 15. I think we spent some time on this matter and when we finally adjourned, it came to light that the figure there was not the accurate figure. In fact, we were duly assisted by the Member for Okere, who was very dutiful and very vigilant in putting the numbers together.

The indication I got from Colleagues on the other Side was that, same would be addressed. I have not seen the Minister for the Interior, neither do I see the Chair of the Committee. I would, in the circumstances, pray that the Majority Leader takes this matter up so that the

right numbers are provided. I want to proceed to say that, there are major errors in the Budget and it should not be taken lightly. We raised them. We do not want the Majority Side to overlook it. They should draw the attention of the Minister for Finance and his team, to make the necessary corrections, because, these are very substantive matters. If they do not have a Ministry for Works and Housing and they write “Ministry for Works and Housing”, and then they bring the 2024 Budget narrative; it is cut and paste.

We all understand that there can be some errors, but since we raised these matters—

Mr First Deputy Speaker: Hon Minority Leader, respectfully, what are you seeking to correct?

Osahen Afenyo-Markin: What I am seeking to correct is the amount of GH¢3,751,733,088 that we approved yesterday. In the Budget, this figure is in error and we pointed it out to them.

Mr Speaker, you would recall that when we raised it, there was some intervention. But later, through the vigilance of the Hon Member for Okere, we all sat together and looked at the numbers and it was in error.

Mr First Deputy Speaker: What is the correction you are trying to effect in the *Votes and Proceedings*?

Osahen Afenyo-Markin: Mr Speaker, with respect, the understanding was that Members on the Government Side would raise it and then move for the

correct figure to be considered. That is not my place. I am drawing attention to the House that this was in error. In fact, there was a long debate. You were in the Chair.

Mr First Deputy Speaker: Yes, exactly. I was here and this was the figure that we put the Motion on and this was what the House approved.

Osahen Afenyo-Markin: That is so.

1:46 p.m.

Mr First Deputy Speaker: So, if you feel strongly that this is not correct, then the correction does not lie in the *Votes and Proceedings*. Since this was the correct figure, you can do it in the Appropriation.

Osahen Afenyo-Markin: That is why I cited the Leader of Government Business. We normally ferry these things through the Leader of Government Business. So, my prayer is that he takes it up because for the time being the Chair of the Committee is not here and we do not also have the Minister for the Interior here. So that is the point I am making, but I needed to bring to the attention of the House a general concern regarding the Budget, that I am pleading that they should take steps in ensuring that all the corrections are made. The Budget itself has problems.

Mr First Deputy Speaker: Yes, Majority Leader?

Mr Mahama Ayariga: Mr Speaker, I think that what we are doing is correction

of *Votes and Proceedings*. There is absolutely no mistake in the presentation of the figures; no mistake. The Motion taken which has been captured in the *Votes and Proceedings* and the figure in that Motion is exactly what is reported in this *Votes and Proceedings*. What the Hon Minority Leader is talking about is not a mistake of figures. What he is talking about is whether the estimates for the National Security Council should be embedded in the global estimates of the Ministry of the Interior. *[Interruption]* Please! Please!

I am aware of this because I have had a discussion with the Minister for the Interior and even, I raised it the first time. The Clerks-at-the-Table will recall that I raised it the first time after we took the Motion on the Ministry for the Interior and the Clerk-at-the-Table brought me the estimates for the National Security Council. I then said I would have preferred the estimates for National Security Council to be embedded within the Ministry of the Interior's Estimates.

The question then arose: should we amend the Ministry of Interior's estimates to include the National Security Council or simply leave it as it is and have their estimates laid separately. The decision was to lay the estimates of the National Security Council, which was done yesterday. This is what is being reported in the *Votes and Proceedings*.

Mr Speaker, his struggle and attempt to create an impression that we brought a flawed Budget to this House is totally

misplaced. No flawed Budget was brought to this House. And his attempt to rake in arguments that he had made at the Despatch box concerning the Ministry of Works and Housing and a number of agencies that were mentioned in the Budget Statement is misplaced.

This is because in every Budget Statement, when we get to the sectoral discussions, we are to report on what happened in that sector in the previous year and then outline what we intend to do in that sector in the current year. After that, we proceed to the figures and then make necessary allocations.

In the previous year, there was a Ministry of Works and Housing. So, properly speaking, therefore, there were sections and paragraphs that captured the activities of that Ministry and he raised it here. He raised it while the Minister for Finance was present and he was somewhat surprised at the way that the Hon Minority Leader had suggested that the Ministry of Works and Housing had continued in existence.

However, upon carefully reading through, it became clear that what was contained in the Budget was merely a reportage of the activities of the Ministry of Works and Housing during the period under review. But if the Hon Minority Leader claims that there are mistakes, then he should point us to the figures and show us where the error lies in terms of the appropriations made for the Ministry of Works and Housing and indicate which Committee considered those allocations and reported on them to this House. He should show us. He should

not continue on that tangent of creating the impression that an erroneous Budget was presented to this House.

In any case, he had the opportunity to debate the Budget and the Estimates which he describes as erroneous, but he refused to participate in the debate. He refused. Instead, they came to this House wearing face masks, singing, chanting, disrupting proceedings and raising concerns about somebody serving a third term – an issue that does not exist nor even arise.

Mr Speaker, today, to draw this House back and suggest that we approved erroneous Budget. We did not approve any erroneous Budget. The figures are accurate. The sectoral allocations are accurate. There is no mistake and the *Votes and Proceedings* captured what happened yesterday.

Mr Speaker, thank you.

Mr First Deputy Speaker: Hon Members, I have also not seen any mistake about paragraph 21 on page 15. Further, there was nothing also corrected when the issue was raised. So, let us make progress.

Page 16...17 —

Yes, Hon Frank Afriyie?

Mr Frank Afriyie: Mr Speaker, with respect, may I draw attention to item number 3 (v), Mr Fred Asiedu-Dartey, Head, Freight and Logistics, “Ghana Shipper Authority”. It should be “Shippers Authority” and consequentially on vi—

Mr First Deputy Speaker: Table, take note.

Page 18 —

Osahen Afenyo-Markin: Mr Speaker, before raising the issue on page 18, I think the Majority Leader has committed himself by making certain statements on the Floor. I want to assure him that when we get to Appropriation, we would expose all those inaccuracies and the inefficiencies contained therein.

Mr Speaker, I am surprised that he says that everything in the Budget was accurate and now he refers to last year’s provisions.

Mr First Deputy Speaker: Hon Minority Leader, with all due respect —

Osahen Afenyo-Markin: Mr Speaker, but he said so.

Mr First Deputy Speaker: With all due respect, we are not debating the Budget; we are correcting the *Votes and Proceedings*.

Page 19...21 —

Mr Afriyie: Page 20, item number xxxviii. Deputy Registrar, Ghana School “of” Law. The “of” is missing, so if it can be inserted.

Mr First Deputy Speaker: I have it here, Acting Registrar, Ghana School of Law.

Mr Afriyie: Mr Speaker, I am making reference to the second one.

Mr First Deputy Speaker: Yes, you are right. Table, take note.

Page 21...23 —

Yes, Hon Frank Afriyie?

Mr Afriyie: Mr Speaker, thank you so much. Page 23, paragraph lxxix, “DO1”, I recommend we delete the word and insert “Michael Ato Korsah”.

1:56 p.m.

Mr First Deputy Speaker: Table, kindly take note.

Page 24...28.

Hon Members, the *Votes and Proceedings* of Tuesday, 16th December, 2025, as presented and corrected, is hereby adopted as the true record of proceedings.

Hon Members, with your indulgence, let me acknowledge the presence of our revered guests and students visiting Parliament.

Hon Members, we have Messiah Tsidkenu School, and they are led by their teacher, Mr Dawoe Obed Kwame. They are from Kpone Katamanso and are 100 in number.

We also have Bisease Bethel Hill D/A Basic School, led by their headmistress, Ms Gifty Amrado. They are from Ajumako Enyan Essiam, and they are 60 in number.

We have Rosharon Montessori, and they are led by their teacher, Mr Kwao Davis. They are from Tema Central, and they are 62 in number.

[Pupils of Messiah Tsidkenu School were acknowledged.]

[Pupils of Bisease Bethel Hill D/A Basic School were acknowledged.]

[Pupils of Rosharon Montessori were acknowledged.]

Mr First Deputy Speaker: Hon Members, on your behalf, I welcome all of them to Parliament and urge them to have a fruitful visit. You may resume your seats.

Hon Members, we also have other visitors I may want to acknowledge. This is a study visit by officers of the Parliament of Namibia to the Parliament of Ghana from Monday, 15th to Friday, 19th December, 2025.

Hon Members, I have the pleasure to introduce to you officers from the Parliament of Namibia who are here on a study visit. The objective of the visit is to understudy the operational, procedural, administrative and communication frameworks of the Parliament of Ghana. The visit is also to afford them the opportunity to build networks for future engagements between the two legislatures.

Hon Members, our visitors are: Mr Peter Tjiramba, Acting Deputy Director, Security and Risk Management Services; Mr Joseph Ndinomupya, Chief Internal

Auditor; Mrs Selma Nangolo, Human Resource Officer; Ms Evodia Mwilima, Senior Accountant; Mr Niklas Shimbala, Security Operations Officer; Ms Lizel Rhom, Chamber Messenger; Mr Benjamin Kandapaera, Chamber Messenger; Mr Alex Lukolwe, Transport Officer and Mrs Quinth Tothong, Library Services.

[Delegates from the Parliament of Namibia were acknowledged]

Mr First Deputy Speaker: Hon Members, on your behalf and on behalf of the House, I welcome the delegation to Parliament, and I wish them very fruitful deliberations.

Once again, you are warmly welcome.

Hon Members, after the *Votes and Proceedings*, may I take an indication from the Hon Majority Chief Whip?

Mr Rockson-Nelson Etse Kwami Dafeamekpor: Mr Speaker, we have advertised that we will hold a Closed Sitting and take the Report of the House Committee that considered matters regarding facilities for Hon Members, and so the decision is that we will take that Report at Closed Sitting. However, before we proceed, we would like to continue with the Bank of Ghana (Amendment) Bill, 2025, so that, in due time, we can have the Closed Sitting.

Mr Frank Annoh-Dompreh: Mr Speaker, the Majority Chief Whip a while ago made an application, and it should come in whole. We should have an idea because we would be rising soon.

So, they should let us know what we have to do so we can plan and navigate well. I know the Ghana National Petroleum Corporation (GNPC) work programme is outstanding. I also know the Minister for Roads and Highways has a business, and I am also aware of the Bank of Ghana (Amendment) Bill, 2025. Then, as he is calling for a Closed Sitting for very obvious reasons, on the House Committee's engagement. So, let us structure it well.

Mr Speaker, I also want to make a prayer. Yesterday, a Statement by a senior Member of the House, Mr Okyere Darko-Mensah, was admitted by the Speaker and worked on.

So, let us agree if we can slot it in. It is a Statement on Christmas, and you had advised that we take it today. The Hon Member is ready to take it. So, let us know how we can navigate, and then we can move effectively to deal with and dispense of all these programmes and then between today and Friday.

So, they should give us an idea of how they want us to flow. We could do the Closed Sitting as a last item, with your pleasure, since you are the Chairperson of the Committee, then probably move with him, the programme of Mr Kwami, and then take GNPC, which is also outstanding. We can also itemise the first three Businesses; then we can flow in that order.

Osahen Afenyo-Markin: Mr Speaker, when the Hon Chief Whip was drawing attention to the issues, there was one

thing that he forgot and that was agreed upon.

Mr Speaker, we are aware that the Government is shipping some relief items to Jamaica, as part of our bilateral, which I do not have a problem with. But, in most jurisdictions, such matters come before Parliament, and we, the representatives of the people, have not been briefed by any Hon Minister, be it the Hon Minister for the Interior or the Minister for Foreign Affairs, regarding all these items that are being shipped out of the country.

2:06 p.m.

Mr Speaker, yesterday, we read in the news that some relief items were being shipped and the military high command had gone to inspect these items before shipment. I have checked with my Colleague, the Ranking Member on the Committee on Defence and Interior as to whether or not the Committee has been involved in any of these. He said, no. I think that a major policy decision like this must receive, at least, the blessings of Parliament.

We are here as part of the ecosystem in the governance of the country. It cannot be that Members of Parliament would have to be reading this in the news, when we have Ministers who are first to come and signal us of this policy that there is some disaster, the hurricane that struck Jamaica, and that Ghana has a bilateral relationship with the good people of Jamaica. And as part of that, we are committing US\$5 million or US\$10 million in relief items and list the

various items that are going to be delivered. If the ministers decide not to take this House seriously, what other forum would they take seriously?

So, Mr Speaker, I am, as a matter of urgency, praying this House to invite particularly the Minister for Foreign Affairs. He should come and brief this House. I do so through the Majority Leader because it cannot continue this way. The Committee on Foreign Affairs and Regional Integration in this House was not in any way involved. They were not briefed. There was no special meeting to brief them. All we hear is some amount of relief is being provided. We do not know how these items were procured, the processes involved in the procurement, which agency is donating these items to Central Government, how these items came about, Mr Speaker, no.

In this country, we have serious disasters. The recent flooding in the country, we know that people have been calling for relief. The National Disaster Management Organisation (NADMO) has been telling us that they do not have stock. So, we need to understand. We know that the Government would have to balance its obligation in foreign relations, but when you do not have enough to feed your own at home, doing international charity will require a curious concern.

Mr Speaker, I am asking. It is very important that we are briefed on the extent to which this is being done. I believe the ball is in the Hon Majority Leader's court on this matter.

Thank you.

Mr Mahama Ayariga — *rose* —

Mr First Deputy Speaker: Hon Majority Leader, just hold it; just resume your seat. Hon Members, this morning at pre-Sitting meeting, the Hon Minority Leader raised this particular issue, and the Leaders at his Side can bear testimony. Soon after raising the issue, the Hon Majority Leader placed a call requesting that the Minister for Foreign Affairs should immediately come and brief the House. He indicated to us that the Minister for Foreign Affairs is on the way to brief the House. So before the Minister for Foreign Affairs briefs this House, Hon Leaders are to help us steer the affairs of the House. Why do we open a debate on this issue before the Minister for Foreign Affairs comes to brief us? Hon Members, let us come together and steer the affairs of this House. The situation would have been different if you waited for some time and the Minister for Foreign Affairs did not turn up to brief the House.

So, Hon Members, I urge all of us to exercise some patience and restraint as we wait for the Minister for Foreign Affairs to come and brief us. It is on this note that I ask the Hon Majority Leader to resume his seat as we wait for the Minister for Foreign Affairs to brief us. I thank you very much.

So, we can now take the Bank of Ghana (Amendment) Bill, 2025 as indicated.

Yes, Hon Minority Chief Whip?

Mr Annoh-Dompreh: Mr Speaker, I think that the Hon Majority Chief Whip should speak to this matter. I am not disagreeing with you, but this matter was dealt with at Conclave and I think that we do not need to further take it out of context. The Hon Minority Leader had given notification and then there was a discussion between the two Leaders, so I thought that there was an agreement. So, there is no issue actually.

But what the Hon Majority Chief Whip needs to speak to is the issue of outstanding Questions which I am worried about. The Questions are still outstanding. I am not objecting to us taking the Bill; we will take it and do other Businesses, but we are rising on Friday to all intents and purposes. These Questions cannot be left hanging. The Minister of State for Government Communications is still nowhere to be found. So, the Hon Majority Chief Whip may have to step out of the Chamber and call Hon Felix Kwakye Ofosu. He should move from Jubilee House and find his way to Parliament. He has Questions to answer, and then we can programme the Business we agree to do. We have no problems taking the Bank of Ghana (Amendment) Bill, 2025. We will do it.

So, the Hon Majority Chief Whip should give us a list of the Business we are supposed to prosecute. But on the matter with the Minister for Foreign Affairs on the items they have shipped to Jamaica and its environs, we should have the Hon Majority Leader speak to it for the records. He must speak to it. Then we can get a confirmation that we can allocate some time for him to also come

and brief the House. This is a matter we have to speak to.

Mr Dafeamekpor — *rose* —

Mr First Deputy Speaker: Yes, Hon Majority Chief Whip?

Mr Annoh-Dompreh: Mr Speaker, the Hon Majority Chief Whip should not be in a hurry; he should be patient. That is why he is the Chief Whip of Government.

Again, to corroborate what the Hon Minority Leader said, we have also committed troops to Benin. These are very important international relations matters, and it is all a stony silence from the Minister for Foreign Affairs and the Minister for Defence. We are not hearing anything. Apparently, the Minister for Finance is acting as the Minister for Defence, right? We are aware Hon Ablakwa is coming. He should not come and only speak to Jamaica; he should prepare for Benin too.

So that we know the number of troops that have been sent, and the financial implications to the country, the taxpayer and all that. They say they are resetting Ghana. Do we have to tell them this?

The Hon Majority Leader looks very calm this morning. We do not have to tell them this. He should tell his Ministers to come to the Chamber. The Minister for Foreign Affairs must find his way to Parliament. Wherever he is, he must come with the next available flight. The Minister for Defence must come to Parliament.

They said they are resetting Ghana, but they want us to tell them these things before they do. Is the Majority Leader looking at me? He should stop staring at me. He should be working. They should get the Ministers here and let us be sure about how they are going to deal with the Questions.

2:16 p.m.

Mr Dafeamekpor: Mr Speaker, we have a Member of this House who serves as the Third Deputy Speaker of the Economic Community of West African States (ECOWAS) Parliament. I believe he should brief us on the troop situation in Benin. He is the best person to brief us; he holds an official position at ECOWAS. He should brief Ghana's Parliament on the situation in Benin. But we would do the needful, Mr Speaker, the Minister for Foreign Affairs will come.

Mr First Deputy Speaker: Hon Majority Chief Whip, if you want the Member, in his capacity as the Third Deputy Speaker of ECOWAS, to brief this House about the situation in Benin, the Rules allow you, and you know what exactly to do.

Mr Dafeamekpor: Mr Speaker, I am guided. I know what to do.

Mr Speaker, now regarding the issue, the Leader indeed placed the call. So we will schedule the Minister for Foreign Affairs to come.

Mr First Deputy Speaker: Hon Member, he was called to come today.

So now, if we deliberate on this particular issue, what else is the House going to hear from the Minister for Foreign Affairs? So all we need to do is wait for him to come and brief us. So, if we open the box that the matter is to be discussed, if he walks in after the discussion, what happens?

Mr Dafeamekpor: Mr Speaker, I agree with you, so they should not belabour the point.

The next point is that the businesses that we slated for today include the completion, hopefully, of the Bank of Ghana (Amendment) Bill. We will do that. If we get the clearance, we will consider the Ghana National Petroleum Corporation (GNPC) work programme, which is also advertised.

Hon Annoh-Dompreh asked for some details, so I am trying to provide them. So, Mr Speaker, my Brother, the Minority Chief Whip, knows that we will try to complete the Bank of Ghana (Amendment) Bill, 2025. We will try to finish the GNPC work programme if we get the clearance. Mr Speaker, we will also take the Motion numbered 21, which stands in the name of the Majority Leader, so that we set up the Ad Hoc Committee to look at the financial statement of the Office of the Auditor General for the year ended 2024.

Mr Speaker, we will also take the Sports Fund Bill; the Report is ready. There will also be a Closed Sitting to consider the Report of the House Committee. Let me also add that I have just had a discussion with the Minister for Labour, Jobs and Employment, Dr

Pelpuo, and he will be here to answer some Questions which stand in his name.

So, tentatively, these are the businesses we will be dealing with on the Floor, for the attention of my Brother on the other Side.

Alhaji Habib Iddrisu: Mr Speaker, we have heard the Majority Chief Whip lay out the businesses that he wants to do. I will not move further, so we can start. But I want to draw our attention to certain things that we want to make a practice of. If a Member raises an issue of urgent public importance, which is under Order 93(1), it does not give the Minister any opportunity under that Order to come and respond. The Minister has the right, within our Orders, to brief the House on the same matter, but it does not, in any way, give him an opportunity to respond.

We can proceed with the business the Majority Chief Whip mentioned, but we should not create the impression that the matter the Hon Minority Leader raised cannot be discussed on the Floor. It is not the case that the Minister must come to respond. The Orders give the Minister the opportunity to come and respond under Order 91. But, under Order 93(1), it does not give him any opportunity to respond to what matter is before us. It is for the consideration of the House for people to comment on it, but not—

Mr First Deputy Speaker: Hon Habib, you see, if a Leader comes to Conclave to demand that this is an issue that requires the Minister for Foreign Affairs to come and brief the House, for

which he demanded so, and the Minister was invited to come and brief the House, do you want the House to discuss the issue before the Minister comes to brief the House? What, then, is the essence of raising the issue before your request is acceded to?

Please, let us all do things right. You asked that the man come and brief the House.

BILL — CONSIDERATION STAGE

Bank of Ghana (Amendment) Bill, 2025

*[Resumption of Consideration from
16/12/2025]*

Clauses 9 and 10 ordered to stand part of the Bill.

Clause 11 — Section 30 of Act 612 amended.

Chairperson of the Committee (Mr Eric Afful): Mr Speaker, I beg to move, subclause (8), line 3, after “Governor shall” *delete* “notify” and *insert* “within seven days, give notice in writing to”. The new rendition will read like this: “The Governor shall, within seven days, give notice in writing to the Minister of the attainment of the limit under subsection 3.”

I so move, Mr Speaker.

Mr Kojo Oppong Nkrumah: Mr Speaker, thank you.

Mr Speaker, I agree with the Chairperson except that there is a proposed further amendment which would amend his proposal. So, it will read as such. “Within seven days, give notice in writing to the Minister and Parliament.” And then the rest of the words continue.

Mr Speaker, the reason is that in Act 918, the reportage is concurrent. It is both to the Minister and to Parliament. In the new Standing Orders, we have made express provisions to allow heads of Independent Constitutional Bodies to appear. If we remove Parliament, then we are lowering the bar for reportage. Our view is that it should still be parallel. I agree with the Chairman to make it parallel by a further amendment. Thank you, Mr Speaker.

2:26 p.m.

Mr Haruna Iddrisu: Hon Ministers, I support the further amendment by the Hon Ranking Member for Committee on Economy and Development. Parliament remains a critical institution when it comes to transparency and accountability. Therefore, if we want the Bank of Ghana to grant a temporary advance to Government, it is important that the people’s representatives are adequately informed. Beyond the policy at the level of the Minister, we can include Parliament. Thank you, Mr Speaker.

Question put and amendment agreed to.

Mr Eric Afful: Mr Speaker, I beg to move subclause (9), line 1, after “subsection (8),” insert “within fourteen days,”.

Mr Haruna Iddrisu: Mr Speaker, if I were minded that the Chairperson will move further to the amendment, “14 days to Parliament”, then his original rendition carries, because after the Minister notifies the House, the Minister has 14 days to report to Parliament. That would be neater than wanting to do it simultaneously, the Minister and Parliament. So, my support for Hon Kojo Oppong Nkrumah was without knowing that this matter has been dealt with by the Chairperson of the Committee. If he is minded, we can go back, since we are still at the Consideration Stage, and maintain what the —

Mr First Deputy Speaker: Yes, Hon Minister, except that subsection 1 is talking about notification. Following that notification, the Minister is expected to do something within 14 days. Now, if Parliament is not giving notice to the effect that they have written to the Minister, how will Parliament be able to determine whether the Minister is in default of reporting within 14 days or not?

Yes, Hon Kojo Oppong Nkrumah?

Mr Nkrumah: Additionally, Mr Speaker, the new sub-clause is dealing with the fact that upon receipt of the notification, the Minister, when coming before Parliament, is required to discuss the remedial measures to be taken. So, as the Chairperson has mentioned, it is

appropriate and I think we can proceed with this as proposed.

Question proposed and amendment agreed to.

Osahen Afenyo-Markin: Mr Speaker, I wish to draw the Chairperson’s attention to the following observations so that he can help bring clarity.

Under the proposed amendment, a new prohibition is introduced. If we pay attention to the phrase ‘seasonal revenue shortfalls’— it becomes apparent the amendment is establishing a new framework to govern temporary advances to Government while prohibiting direct lending and primary market purchases, *et cetera*.

What I find a bit curious is that the amendment leaves key concepts undefined and grants excessive discretion. In my view, this could potentially be exploited. Where the term “seasonal revenue shortfall” is used, I believe that we need to properly define it. What do we mean by a seasonal revenue shortfall? Furthermore, does this term refer to a situation where there is a shortfall in Government’s budgeted revenue?

If so, is it being suggested that such a shortfall would make it permissible for Government to borrow from the Bank of Ghana? Mr Speaker, these are matters that require clarification. I am not seeking to propose further amendments. I am requesting clarification from the Chairperson, which will then guide me on the next step to take.

Mr Afful: Mr Speaker, this is a new insertion into the Bill which went past to be an Act. Here, we are talking about budgetary support. In the event that there is a shortfall in the revenue of the Government, that is where this application comes in. Thank you.

Mr Haruna Iddrisu: Mr Speaker, if we take the Ghanaian economy, there are not enough safeguards against external volatilities. For instance, today, gold and cocoa are doing very well in the world market. So, a Minister for Finance, on the basis of that, will project what his revenue may be. There are some circumstances where it may appear that the price of gold and cocoa may nosedive. The economy will still need to run, and that will qualify for those exceptional circumstances where the temporary advances may be given. Thank you.

Mr First Deputy Speaker: Hon Members—

Yes?

Osahen Afenyo-Markin: Mr Speaker, with respect, the issue of seasonal shortfall, I wanted the Chairperson of the Committee to guide me on that, so that I will know my next step. What exactly do they mean by seasonal shortfall?

Mr Afful: Mr Speaker, I want to repeat myself. About seasonal shortfall, we are talking about financing the Budget. So, in case there is a shortfall in the revenue of the Budget, that is what we are talking about.

Osahen Afenyo-Markin: Mr Speaker, this is a major scandal awaiting us as a country. Yes. If they were saying that where they have a revenue shortfall, they are now, by this enactment, going to take money from Bank of Ghana to fill that space.

2:36 p.m.

Mr Speaker, I am sorry. What the Chairperson of the Committee is introducing is very dangerous. If the efficiencies they seek to introduce with this enactment is to include taking money from Bank of Ghana, when they are saying that they are no longer going to permit borrowing, and are telling us that for instance, now that there are billions in shortfall in revenue by Ghana Revenue Authority (GRA), instead of putting in place mechanisms to enable GRA to collect revenue, they would use Bank of Ghana reserves to make up for seasonal shortfall. That is what he just said.

I gave my Hon Colleague, two opportunities; I wanted clarity. He said it the first time, then he came back to repeat himself that when we have revenue shortfalls contained in the Budget—these are his words. So, they would use money from Bank of Ghana reserve; that is what they are going to do. It is a major scandal awaiting us as a country if we pass this law.

Please, no, they should understand the language used and the context. They cannot say that when there is revenue shortfall, the Minister will direct the Central Bank to release the reserves and

savings made at Bank of Ghana. Is that why the Chairperson brought the Bill? No, he should clarify it.

Mr First Deputy Speaker: Hon Minority Leader, I would respectfully urge you to look at Section 30 of Act 612. Again, look at Section 16 of Act 918, then you would come to a realisation that the essence of introducing this amendment was just to bring timeline, but not to change anything. So, look at it. It is not a matter of asking the Chairperson. Hon Members, where there is no problem let us not indicate there is one.

So, the only thing being introduced here is the reporting timeline, and the fact that mandatorily, within seven days, notice will be given to the Minister for Finance, and within 14 days, there must be a report to this House.

Osahen Afenyo-Markin: Mr Speaker, with respect, I cannot doubt your acumen when it comes to the law-making architecture in this House; you are well-versed. I have understood and heard you. Mr Speaker, I ask for clarity on seasonal shortfall. The Chairperson of the Committee says that what that means is that when there is revenue shortfall from GRA—*[Interruption]* So that is why I am saying they should take the opportunity again to clarify.

I wanted to come with a further amendment, but I wanted that clarification before I proceed and he said that he will take—

Mr First Deputy Speaker: Hon Minority Leader, what is your amendment?

Osahen Afenyo-Markin: Mr Speaker, I want clarity from him first.

Mr First Deputy Speaker: Hon Members, I have not seen anything ambiguous about the amendment being proffered. He is asking for clarity on the existing law.

Mr Nkrumah: Mr Speaker, to help the process, I think we should just trace the chronology, as you advised yesterday, so that we are all on the same page. The original Act 612, section 30 is what deals with temporary advances. The subsection 1 talks about the conditions under which the bank may lend to Government;

“(1) The Bank may

- (a) make advances or loans to Government on overdraft or in any other form that the Board may determine;
- (b) make direct purchase from the Government of treasury bills or securities representing obligations of Government.”

Then the subsection 2 says that, “The total of the loans and advances...shall not be in excess of 10 per cent of the total revenue of the fiscal year in which the advances were made”. So, the conditions were stated and then the threshold of 10 per cent was given.

Mr Speaker, then in Act 918, an amendment was made to the subsection 2, which deals with the 10 per cent. So, we would notice that in clause 16 of Act 918, which dealt with the section 30, the principal enactment is amended, “(a), by the substitution for subsection 2”, now to amend it to say 5 per cent. So, if we read Acts 612 and 918 together, the conditions in Act 612 prevail and then the five per cent threshold is now established here.

What the Leader is saying is that by this new amendment under the current Bill before us, they are seeking to replace the whole section, the whole section 30 is what is now being replaced. The language that has been proffered for the replacement of the whole section 30, now introduces a new basis, which he is expressing worry about. So respectfully, Mr Speaker, it is not just about the timelines, but the replacement of the whole section 30, and that is what he is asking for clarity on.

Mr Haruna Iddrisu: Our Colleagues should read the amendment proposed by the Chairperson of the Committee very well. “Section 30 of Act 612 amended”, Mr Speaker, you guided them, by substitution, so, they should read it well. “Temporary advance to Government” in section 30(1) says “The Bank shall not”, do (a), (b), so they should read it well. Then it comes to the exceptional circumstance of seasonal shortfall. So seasonal shortfall is a technical word. It is not the revenue he is talking about.

So, Mr Speaker, you can put the Question, then the Minister for Finance and the draft person will provide meaning for seasonal shortfall.

Osahen Afenyo-Markin — *rose* —

Mr Haruna Iddrisu: Yes, but let him proceed. It is not as the Minority Leader is construing it. All this is because of what happened in the past with the Bank of Ghana. *[Interruption]* Please, what happened to the bank of Ghana in the last—

Mr First Deputy Speaker: Hon Minority Leader, I have not given you the floor. I recognised the Minister for Education. Hon Minister for Education, you have the floor. Hon Minority Leader, I have not given you the floor, so kindly you resume your seat? Let us hear the Minister for Education. I will not allow you to intimidate anybody.

Mr Haruna Iddrisu: I am just saying that this House must be wary of past events, which is the mischief this amendment is seeking to correct so that we do not have an occurrence of some of the things that happened, which crippled the bank of Ghana. Thank you, Mr Speaker.

Osahen Afenyo-Markin — *rose* —

Mr First Deputy Speaker: Hon Minority Leader, let me hear those behind you. Hon Nkrumah, you are a Member of the Finance Committee, so help us.

Mr Nkrumah: Mr Speaker, I am the Ranking Member on the Committee on Economy and Development. They have kicked me off the Finance Committee.

Mr First Deputy Speaker: Very well. You are the Ranking Member of the Committee on Economy and Development. That is good.

Mr Nkrumah: Mr Speaker, I am the Ranking Member of the Committee on Economy and Development. I have not been kicked off the Finance Committee.

I think it is very important that we notice the change between the two provisions. As I read to you earlier, the conditions for advance were in the original Act 612. The conditions have now been restated with a proviso.

The proviso now says that, “subject to the provisions of this section, the Bank may for the sole purpose of filling a seasonal shortfall of budgeted revenue...”; that was not part of the basis under which the Bank of Ghana could lend to the Government. If we read the original Act 612, Mr Speaker, and I think Colleague may have missed this at Committee level, so it is important we pay attention to it.

In the original Act, section 30(1) says the Bank may make advances and loans and then may direct purchase from the Government treasury bills. And then section 30(2) talks about a threshold of 10 per cent. In this new version, the drafters have reached—

2:46 p.m.

Mr First Deputy Speaker: I agree with you; we have the same principle. The difference is that this original Act says the Bank “may”, but the amendment says the Bank “shall not”.

Mr Nkrumah: With respect, Mr Speaker, that is not even the point of my submission. I am talking about the new section 30(2) in the Amendment before us. In restating the conditions under which the Bank may lend, which originally is that the Bank may make advances and loans to the Government on overdraft or in any other form; and make direct purchases, treasury bills *et cetera*.

In restating it—Mr Speaker, Chairman, and Colleagues, please pay attention to section 30(2), a new proviso has now been introduced, which says despite subsection (1) and subject to the provisions of this section, the Bank may for the sole purpose of filling a seasonal shortfall of budgeted revenue of Government. So, now, a proviso has been introduced, which becomes a preamble to making those advances. It is that preamble that the Leader is drawing attention to the fact that it should not be there.

Mr First Deputy Speaker: That is why I am asking you. As the Ranking Member of the Committee, what is the seasonal shortfall?

Mr Nkrumah: Well, the Government brought its Bill. The Bill that the Government brought told us of the

conditions under which they want to be able to borrow from the Bank of Ghana. The memo stated clearly that it is to tighten the rules and prevent the problems of the past. So, if we read the sections that follow, two conditions were given; one is a state of emergency—

Mr First Deputy Speaker: You have not answered my question. As the Ranking Member of the Committee, what is the seasonal shortfall?

Mr Nkrumah: Mr Speaker, that is up to the Government to tell us. The conditions that they gave us are the ones that we are protecting. And we are noticing that a new window has been opened. That is what the Leader is drawing attention to.

Mr First Deputy Speaker: Yes, Minority Leader?

Osahen Afenyo-Markin: Mr Speaker, with respect, earlier, you submitted that what is in the existing Act, that is Act 612, is basically what we find in this new amendment. Save that the timeline for notice is what has been amended. Mr Speaker, I beg to submit that it is not the same.

If you read the section 30(2) in the principal enactment, it is different from the new section 30(2) they seek to substitute. And this new rendition, section 30(2), reads—I am quoting for emphasis, because my Colleague, the Ranking Member, has already put this out.

“Despite subsection (1) and subject to the provisions of this section, the Bank may for the sole purpose of filling a seasonal shortfall of budgeted revenue of Government, make,

- a. an advance to Government on overdraft or in any other form that the Board may determine; or,
- b. direct purchase from Government of treasury bills or securities which represent obligations of the Government.”

Mr Speaker, this is where the Minority takes a view that we may be having serious problems in the future. If they seek to correct the sins of the past, then this is rather introducing a future gargantuan scandal. Because they cannot now enact to tell Bank of Ghana that where there is a shortfall in revenue, its reserves which are moneys that have been saved that are in reserve, should be used to fill that gap. They cannot do that.

With respect, Colleagues, let us pay attention to what is before us. We are not criticising just for partisan purposes. No, that is not what we are doing. This new Bill is introducing some serious matters. We do not find it in the parent Act. They are telling us that this Amendment is to help correct the mistakes or errors, or whatever that occurred in the past. But this is worse. They are now opening the Bank of Ghana up. They are now opening up the Central Bank. That is exactly what the Chairperson said.

What is a seasonal shortfall? I asked. They are now saying that per the law, if

there is a shortfall of budgeted revenue by the Government—they are responsible for determining their own revenue. It is not the opposition that forces them to give a projected revenue. They set their own revenue targets. They have a duty in ensuring that the Ghana Revenue Authority (GRA), that has a responsibility for collecting revenue, does its work. But if they now want to tell us that whenever there is any revenue shortfall, they would go to Bank of Ghana and say they need “X” amount or they would compel the Bank of Ghana to buy Government treasury bills. Mr Speaker, that in itself comes at a cost. They cannot go into options. It is here. Colleagues, let me read it one more time. I have the Bill. It is not coming from me. It says:

“... an advance to Government on overdraft or any other form that the Board may determine.

(2) direct the purchase of Government treasury bills...”

So listen, Colleagues, this is a serious matter. It is not NDC or NPP matter. They are making mistakes and we are helping them.

Mr First Deputy Speaker: Hon Afenyo-Markin, if an explanation is given to the seasonal shortfall, other than what the Chairperson said, would you be okay? You and I know that what the Chairperson says is not the true and proper interpretation of seasonal shortfall within the meaning of this Bill and at the financial sector. You know that seasonal shortfall has got to do with

the rule in banking activity that demands capitalisation. That is a seasonal shortfall.

Osahen Afenyo-Markin: Mr Speaker, with respect, first of all, let the Chairperson give us the correct interpretation of the phrase “seasonal shortfall”. That notwithstanding, if we are to take the explanation the Hon Member just gave as being the correct meaning of seasonal shortfall, then I beg to submit that the introduction of this new clause is very problematic. Mr Speaker, this is because we do not find it in the existing law. It is now being introduced as an exception.

Mr Speaker, if you read section 30(1), it says the Bank shall not purchase in the primary market any securities issued by Government. Now they say we cannot, but they are telling us that when they set their own revenue target, and they are unable to meet it, they are now going to compel the Bank to buy their own securities. Mr Speaker, what are we saying? Approbate and reprobate; they give it with one hand and take it back. There is a prohibition clause that the Bank is being prohibited from doing A, B, or C —

Mr First Deputy Speaker: So, what is your amendment?

Osahen Afenyo-Markin: Mr Speaker, with respect, let me land. I would answer your question. Else, I would have a problem with my thought pattern. If they are prohibiting the Central Bank from participating in any securities issued by the Government, because they claim that

in the past there was this practice which did not augur well for the Central Bank, we agree.

2:56 p.m.

Secondly, we are saying that the Bank shall not grant direct or indirect loan in advance to the Government or any state-owned entity, we agree. They are saying that in the past, these things happened and it did not help, we agree. However, they are rendering these provisions otiose by introducing that proviso in Clause 2.

They are rendering the very good things they are seeking to do nugatory, by introducing this provision that says that where there is revenue shortfall—they are only playing on words and language. Collection of revenue is a mandate of Ghana Revenue Authority (GRA). If they look at the existing Act, it does not talk about taking money from BoG, when they have revenue shortfall.

This even makes the situation worse, because now, what they would say is that, if GRA is unable to collect revenue, what they would do is that, they would compel BoG to buy Government treasury bill. Why should we compel BoG to buy and participate in the auction of a Central Bank? To do what?

Mr Speaker, we are going to kill the Central Bank if we allow this provision to stay. Going to the next, it also says,

“...direct purchase from government of treasury bills or securities which represent obligation of government...”

This is even worse.

Mr First Deputy Speaker: That is what?

Osahen Afenyo-Markin: The obligation of government—I am saying this is even worse. Let us pay attention to it again. I will read it one more time. It says, “...despite subsection 1...”.

Mr First Deputy Speaker: So, let us curtail the argument. What is your amendment to Section 11?

Osahen Afenyo-Markin: Very well.

Mr Speaker, I am saying that the entire Clause 2 should be deleted. The entire Clause 2 of 30, that has been introduced be deleted. If they say that this Bill is seeking to clean up, we support them. We agree. If they want to clean up, and say that BoG should not lend to government, we agree. But they should not introduce it in one and now introduce a condition. That condition is a mischief condition. It is there for the purpose of mischief.

The GRA must be given the resources and space to collect revenue. They should not tell us that when there is a revenue shortfall, they can now take money from BoG and compel them to buy treasury bill. No way; we should not do that. A big scandal awaits this nation.

Mr Speaker, I would propose the amendment—

Mr First Deputy Speaker: Well, let me hear others.

Osahen Afenyo-Markin: Very well, you can hear others.

Mr First Deputy Speaker: Because, I do not see how some of the things you are saying are bound by the Bill.

Osahen Afenyo-Markin: It is here; we have the law. Ask me about it; I have all the documents, the Parent Act and the Amendment—

Mr First Deputy Speaker: That they will compel BoG to buy treasury bills?

Osahen Afenyo-Markin: Yes, it is here. That is the way. Let us read it.

“Despite subsection (1) and subject to the provisions of this section, the Bank made for the sole purpose of filling seasonal shortfall of budgeted revenue of Government, make

- a. an advance to Government on overdraft or in any other form that the Board may determine; or...”
- b. “direct purchase from Government of treasury bill or securities which represent obligation of Government.”

Mr Speaker, this is a serious matter. They should delete this. We cannot accept it.

Mr First Deputy Speaker: Yes, Hon Minister for Education.

Mr Haruna Iddrisu: The Minority Leader is seeking to create what he described as a scandal when there is none. He should get the policy trust of the amendment to the Bank of Ghana, 2002, (Act 612) introduced by the Hon Minister for Finance.

Mr Speaker, he knows, as we both read, a cardinal rule of interpretation is to construe it as a whole. Do not read Section 30 of Act 612—I am happy, that his Ranking Member on the Committee on Finance is behind you.

Mr Speaker, this is seeking to tighten—

Mr First Deputy Speaker: Hon Minister, just hold your thoughts. If we go to the original Bank of Ghana Act, 2002 (Act 612) and look at Section 30 (1)(b) which reads,

“...make direct purchase from the Government of treasury bills or securities representing obligation of the Government.”

So, this is not a new provision; it is the same for the (b) here.

Osahen Afenyo-Markin: Mr Speaker, the Object of this Bill is to cure—*[Interruption]*—Colleagues, we are helping, so take things easy. Do not misconstrue my intent. What we are seeking to cure is what, we have in the existing Bill, Subsection 30 (1)(a) and (b). Now they are saying that when they

have a revenue shortfall, they would take money from BoG—

Mr First Deputy Speaker: Hon Minority Leader, take the old Bill, read section 30(1) (b) and the amendment here. Some of the amendments is to reproduce the previous Section. Also read section 11(2)(b) and tell the general public the difference between the two provisions. I am asking the Minority Leader, because he also says he is asking the Chairperson of the Committee. Tell us exactly, whether there are differences in the old rendition which is section 30(1)(b) and the reproduction as in subsection 11(2)(b) here.

Osahen Afenyo-Markin: Mr Speaker, thank you for that important question. The difference here is that, in this new Bill—I have practised law for many years and I have been heckled at the Supreme Court, not once but several times. So, I know how to manage my affairs, Hon Kofi Adams.

Mr Speaker, in this new Bill, we are told that despite subsection 1 and subject to the provisions of this section, the Bank made for the sole purpose of filling a seasonal shortfall of budgeted revenue of Government. So, the difference between this and the existing law is that whereas the existing law had the provision there as a standard loan provision, this one is saying that when there is revenue shortfall by Government, then the following will trigger. They will be compelled to buy treasury bill and to participate in any securities issued by government of which government has an obligation.

If we turn to the existing law—

Mr First Deputy Speaker: In the old Act 30, under what circumstances would a government make direct purchase from the Government of treasury bills or securities representing obligations of the government?

Osahen Afenyo-Markin: Mr Speaker, if you read the whole of section 30 of the existing enactment. The condition is not there for Government to trigger that liberty when there is revenue shortfall. In fact, the reason why the Minister for Finance has appeared before us with this Bill, per memorandum accompanying the Bill, he is saying that the provisions of Section 30 of the existing law were abused.

Mr Speaker, the Minister was clear that the provisions in Section 30 were abused. So, he is coming to do away with those provisions that allowed previous governments to enjoy those liberties. I am saying, and the Minority's position is that, if that is what they intend doing, then they should stay at the clause 1, the introduction, where they are saying that the Bank shall not purchase in the primary market any securities issued by government or grant direct or indirect loan. We are happy with that; they should stay there.

But they have now introduced a new clause that is says that when there is revenue shortfall, as for that one, it is allowed. But in the past, what was the condition? It means that they are approbating and reprobating.

Mr First Deputy Speaker: That is why I indicated that to get a better understanding of the amendment being proposed, we must examine the original rendition of section 30. If we then look at the amendment as contained in Act 918, we realise that when we look at it critically, the complaint that the Government now engages in a direct purchase of Treasury bills was already provided for under the old law because it is clearly stated here. Or am I mistaken in my reading of Section 30 of the old law? Section 30 of the old law, specifically, Act 612, section 30 (b) contains this provision in its original form.

3:06 p.m.

Mr Nkrumah: That is not the bone of contention. You are right in saying that in the original —

Mr First Deputy Speaker: No, listen. Look at what I am dealing with. He is complaining about a direct purchase of treasury bill and I am saying that this has been the original rendition. It has been the original practice.

Mr Nkrumah: No, Mr Speaker, please hear me out. In the old Act, the Bank of Ghana could purchase Treasury bills, but not as an answer to government revenue shortfall. That is the difference.

Mr First Deputy Speaker: So, under what circumstances would Bank of Ghana purchase Treasury bills?

Mr Nkrumah: Mr Speaker, the Government has a budget and as part of

its Budget, sometimes it needs liquidity financing. So, it will issue Treasury bills. It is not a substitute for government revenue. So, in the old Act, you will find that Act 612 permits the Bank of Ghana to purchase these Treasury bills, but not as a substitute to actual government revenue. You are right in saying that those words are repeated in this new Amendment. However, it is predicated this time around on an express provision that it can be done to fill seasonal shortfalls of Budget revenue.

Mr Speaker, simply put, what that will mean is that the Bank of Ghana can, under these new provisions, print cash to support the Government Budget. So, what we are proposing is that that *proviso* should be taken out so that the original provisions will remain. If we do not and we create this new window, then we are actually now legislating that when the Government has Budget revenue shortfalls, the Bank of Ghana can either purchase instrument sales or print money for it.

Mr Speaker, you would recall that this Bill is being brought to legislate the conditions under which the Bank of Ghana can finance Government and those conditions are two under section 30(a). Those conditions are during a natural disaster or in a state of emergency and what has been agreed is that beyond that, they should not be financing Government.

What this proviso does is that now when we have revenue shortfalls, they can participate and that is the proposed amendment, that if you take that one out,

we are fine. If we keep that in, then we have opened the window for printing of currency to finance the Budget. That is what is being spoken about.

Mr Speaker, thank you.

Mr First Deputy Speaker: Let me hear the Majority Chief Whip.

Mr Dafeamekpor: Mr Speaker, I thank you for the opportunity.

Please, Minority Leader, we listened to you in some quiet. We have been haggling over this Clause for the past 45 minutes. We have not made movements. So let me pray that we have it stood down, so that we can make progress. Because I am looking at the —

Mr First Deputy Speaker: Clause 11 accordingly stood down. Clause 12.

Yes, Chairperson of the Committee?

(Mr Eric Afful): Mr Speaker, I beg to move, amendment proposed— Subclause (5), *delete* and *insert* the following:

“(5) The Minister shall within thirty days of the grant of a temporary advance submit to Parliament a report on the terms and conditions of the temporary advance granted to the Government for

- a. ratification and the setting of a ceiling to any further temporary advances; and

- b. approval for additional temporary advances to be granted, where necessary.”

Mr Speaker, the rationale of this is that the Committee resolved that the Minister should not only Submit the report on terms and conditions of the temporal advance, but also for ratification and approval for additional advance.

I so move.

Mr First Deputy Speaker: It is for the consideration of the House.

Yes, Hon Patrick Yaw Boamah?

Mr Patrick Yaw Boamah: Mr Speaker, I think we should also step this provision down because we are dealing with a very contentious amendment on temporary advance under Section 30, which has been stood down and we are also being asked to take a look at temporary advance by Government in an event of *force majeure*.

Mr Speaker, I believe there are situations that were embedded in the discussions under seasonal shortfalls which will find expression in the succeeding provision, So, I believe that we must also step this one down and go to the next provision.

Mr First Deputy Speaker: Yes, Hon Tweneboa Kodua Fokuo, let me hear you.

Mr Fokuo: Mr Speaker, sub-clause (5) is about *force majeure* and what we are saying is, when there is *force*

majeure, the Minister might not have enough time to come to Parliament to seek approval because we might be in a state of emergency. So, the proposal was that the Minister could start spending once he gets the funds from the Central Bank, he could start spending because he might be in an emergency. But then come to Parliament for ratification of same within 30 days and when he comes, then Parliament, based on the assessment of the issue, will give a ceiling for the Minister to spend within. As they are hitting the limit of that ceiling, they could come again for that ceiling to be raised. So, if we look at (a) under the sub-clause (5), that actually addresses that whole issue, that state where we are in an emergency.

Mr Speaker, So, I believe the (b) should be deleted. We do not need the (b) because the (a) actually addresses what the (b) is trying to achieve. Once we have the ratification, we have a ceiling that has been given. That is an approval. So, why would we come to (b) and ask for a temporary approval again? And then we end the sentence by saying, when necessary. The entire (b) should be taken out or deleted; (a) addresses what we are trying to achieve. They come for ratification and then we give them a ceiling. That should be enough to address instances where we are in an emergency.

Mr Nkrumah: Mr Speaker, this is an amendment that we can take. I think the issue in contention is the proposed deletion of (b). But it will not conflict with the one that we decided to stand down. The issue now is the one that has

just been raised by Hon Fokuo, whether (b) should be deleted, we would leave that in the hands of Mr Speaker.

Mr Francis-Xavier Kojo Sosu: Mr Speaker, I would argue that we accept or approve the proposal by the Committee. Mr Speaker, the reason being that the entire 5(a) and (b) provide extra safeguard against the unlawful or discretionary use of the powers granted when it comes to emergency situations. When we look at it very carefully, the mischief being cured here is that in the past, these measures are taken and sometimes, it takes a whole year before it appears in reports, or before Parliament gets a chance to actually interrogate them. But this time around, the Minister is given only 30 days.

3:16 p.m.

As soon as those temporary advances are made, within 30 days, they immediately report to Parliament, and not only that, Parliament then has the opportunity to ratify and then set a ceiling for any further advances. Parliament then also takes an extra step, because when the Hon Minister appears, they have to explain to us the reasons they may need further approvals. Then Parliament will take further steps to approve those, further additional temporary advances that they may need. So, in my view, I believe that clause 12(5) (a) and (b) satisfy the condition.

Thank you, Mr Speaker.

Mr Fokuo — rose —

Mr First Deputy Speaker: Let me hear from the Hon Minister for Education. Then I will put a Question on the amendment of the Chairperson that gives you the room to make a further proposal for the amendment proposed by the Chairperson of the Committee, then you can advance your reason, we debate it, and then I will put the Question.

Mr Haruna Iddrisu: Mr Speaker, I have a difficulty being persuaded by my Colleague opposite that clause 12(5)(b) be deleted —

Mr First Deputy Speaker: Hon Minister, let me put the Question on the entire amendment of the Chairperson of the Committee. If that amendment is carried, the Hon Member has the right to propose an amendment for the deletion of clause 12(5)(b), and then we can debate and take a decision on it.

Question put and amendment agreed to.

Mr Fokuo: Mr Speaker, in my view, if clause 12(5)(b) which says: “approval for additional temporary advances to be granted where necessary” stands, there will be issues with this. Even if we consider that after getting the ratification and also having a ceiling approved, we need additional approval. When we say “where necessary”, what does that mean? Does it mean there could be a time when the Hon Minister would actually need a temporary approval that might not be necessary to come to Parliament for it to be approved here? Or what are we talking about when we say “where necessary”?

Mr Speaker, in clause 12(5)(a), as I said initially, if one has come to Parliament for ratification of what one spent when one was in an emergency, and it has been ratified, then Parliament, having a sense of the sort of emergency that we are in, gives one a ceiling, that ceiling is a temporary approval for one to spend within. So, which other temporary approval does one need? So, clause 12(5)(b) is just repeating what clause (a) seeks to achieve; it is superfluous, we do not need it. The ending of the clause 12(5)(b), like I said, “where necessary”, means we are choosing and picking.

Mr Speaker, I strongly recommend that we delete clause 12(5)(b) because clause 12(5)(a) suffices for what we are trying to achieve.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Hon Member, can you carry the House along as to what temporary advances is?

Mr Fokuo: Mr Speaker, the whole of subclause 5 is addressing a situation where we are in a *force majeure* situation. The way to address this is that the Hon Minister might not have enough time to come to Parliament to obtain approval. So, he can go ahead and start spending, but then they have to come to Parliament for ratification of same, then Parliament gives a ceiling to work within and that in itself is temporary approval for one to spend.

So, clause 12(5)(b), which says, “approval for additional temporary advances,” where would this arise,

because it has been taken care of under clause 12(5)(a); it is just a repetition.

Mr Speaker, clause 12(5)(b), which says “approval for additional temporary advances to be granted where necessary” should be deleted, because it is just a repetition of what clause 12(5)(a) seeks.

Mr First Deputy Speaker: Very well. It is for the consideration of the House.

We hear from Mr Sosu and then the Hon Minister for Education.

Mr Sosu: Mr Speaker, I beg to differ from the argument of my Colleague. The reason is that when there is a temporary advancement, what happens is that when one comes to Parliament for ratification and Parliament sets a ceiling for further advancement, it means that one cannot go beyond that ceiling unless Parliament approves an additional temporary advance; that is what it means. This means that when the *force majeure* has occurred, and the Hon Minister receives temporary advances, he is under an obligation to report to Parliament within 30 days.

When he reports to Parliament, Parliament will ratify their further advances and set a ceiling for them. If there is a need for them to go beyond that ceiling, that then would be approval for additional temporary advances so that they do not have the space to say that because there are challenges, they are always spending and coming back for ratification. So that the ratification is once and the ceiling is also one. If they would have additional temporary

advances, Parliament must approve them; that is what it means. So, I do not think the proposal for deletion meets the essence of the Bill.

Mr First Deputy Speaker: Yes, Mr Gideon Boako?

Dr Gideon Boako: Mr Speaker, the suggestion by Mr Fokuo is quite clear. The clause talks about temporary advancements, and that is agreed. What is provided in clause 12(5)(a) is an indication of the setting of a limit for the temporary advancements.

Mr Speaker, if we introduce clause 12(5)(b), it is a bit unclear as to exactly what we are talking about, different from what has been granted, ratified, or clarified in terms of the setting in clause 12(5)(a), which is why it is not necessary for me if we still maintain clause 12(5)(b) without proper definition. Unless we are talking about a different temporary advancement, and what is that advancement that we are talking about? And what is the definition of that advancement? If we leave this space, the Hon Minister at any point or the Bank of Ghana (BoG) can do anything that is not properly defined yet. So, we should just do away with clause 12(5)(b), and we still maintain clause 12(5)(a), and if at any time there is a need for temporary advancement, then Parliament is consulted as to what limit we should set for that, and then we go for that. There is no need to maintain clause 12(5)(b), because it is not clear; there should be clarity in this. Other than that, we are just creating a space for decisions to be made arbitrarily.

Mr First Deputy Speaker: Hon Members, let us look at it this way. There is a problem —

Mr Ayariga — *rose* —

Mr First Deputy Speaker: Very well. Let me hear from the Hon Majority Leader.

3:26 p.m.

Mr Ayariga: Mr Speaker, the objective is to deal with three issues; one, is the issue of ratification; two, is the issue of setting of ceiling; and three, is the separate issue of temporary advancements within the ceiling set. Clause 12(5) and I read:

“The Minister shall, within 30 days of the grant of a temporary advance, submit to Parliament a report on the terms and conditions of the temporary advance granted to the Government.”

So, in the first instance, you, in an emergency or where the need arises, go and take the temporary advance without parliamentary approval. When that happens, it triggers an obligation to report. So that obligation to report and have your conduct ratified by Parliament is then taken care of by saying that, for “(a) ratification”. Now, when you come and get the ratification, it often happens that you may be in a difficult financial situation, and we want to know whether you will need additional advance. We then agree on a ceiling that you cannot go beyond X.

But what (b) then says is that even though we have set a ceiling, X, that you cannot go beyond, it is not automatic for you to take X. Within the X window, whatever you are going to take, come and get approval from Parliament. *[Interruption]* No, I am trying to communicate what I think. Now, if you say that this should not be the structure of things, but that what we should simply do is to say, do not go beyond X, in which case, if you are acting within X, do not even come back to us for approval.

So, this is what they are proposing, that we should just give the Minister a *carte blanche*, that once we have imposed a ceiling, he can take, just that he cannot go beyond X, and does not need to come back to Parliament for approval for anything within the X.

Now, what (b) is saying, in my opinion, is that if you are taking anything within the X ceiling, still get approval from Parliament. So, if you do not—And approval for additional temporary advances to be granted where necessary. Is that outside the X ceiling? If you are going outside the X ceiling, you would come back to the original status quo.

If you are coming back to the original status quo, which is—Then I am tempted to agree with them, that you do not need (b), because my understanding is that within the ceiling, you must still come for approval, if we leave it in this rendition. If the objective is that any time you trigger the process, come for ratification, and then come for Parliament to give you a ceiling,

anything within the ceiling does not need any approval, because by giving you a ceiling, we have implicitly approved.

So, if we take (b) out, it means that if you exhaust the ceiling, we come back to clause 5, which is that without reference to us, you can go and take the advance, and when you take the advance, then it triggers the obligation to report to Parliament for ratification.

That is what it means if we take out (b). If we take out (b), it gives you an automatic right to go back and start the process again without reference to Parliament. That is the implication. Anyway, Mr Speaker, let us hear from him.

Mr First Deputy Speaker: Yes, Hon Nkrumah?

Mr Nkrumah: Thank you, Mr Speaker.

Actually, this amendment that you see here, I proposed it myself at the Committee. So let me help the House with the understanding. The problem we are trying to solve is a problem where the Bank of Ghana can be financing the Government without much rules around it. So, the policy proposition that the Government brought to Parliament was to define the conditions under which the Bank of Ghana can lend to the Government. Those conditions have been defined in the new Section 30 (a) that we have added. There are two of them. The new Section 30 (a). If you go to Subsection 6, it spells out those two conditions:

“(a) A catastrophic natural disaster or a state of emergency declared by the President acting in accordance with the advice of the Council of State by E.I.

(b) a public health emergency declared by the Minister responsible for Health under the Public Health Act, 2012 (Act 851).”

Those are the two conditions under which the Bank of Ghana can now come in and fund the Government. When we read the subclause 5, it said that within 30 days— and by the way, this funding is now within a cap of 5 per cent of the total revenue of the previous year. When we read subclause 5, what it meant was that within 30 days, the Minister shall report on the terms and conditions to Parliament. But the history is that government borrows from the Central Bank when issues like this occur, and even the government does not have clarity on the cost of dealing with the issue. So that 5 per cent may not even be adequate. That is why we now introduced this clause, that when they are reporting on the terms and conditions, they should also come—Because when it happens, they can start borrowing, and it may be such that they may have to exceed that 5 per cent.

So, we introduced this clause that says that they have to, within 30 days of the grant of the temporary advance, submit to Parliament the report on the terms and conditions, and if they need a ceiling to go beyond that 5 per cent, they will request, and Parliament will give a ceiling beyond the legislated 5 per cent.

But beyond that ceiling, the nature of the challenge they are dealing with—and Mr Speaker, there have been instances where initially Government has put up a figure. For instance, with the financial sector cleanup, government gave a figure, and as the cleanup went on, you would realise that they were going exceed that. Also, with the post-COVID programme for economic recovery, government gave a figure of GH¢100 billion. As they were going, they realised it would not be adequate.

So, the (b) was then added that beyond that ceiling, if they will require further temporary advances, they will come under this new clause for approval. That is the intendment. It is not that within the ceiling, they have to come for approvals when they are—So, it is beyond the ceiling. If beyond the ceiling that Parliament has approved for them, which will go beyond the 5 per cent, and they think that they will still need further, they have to come to Parliament for those approvals. That is the context within which this was structured.

Thank you, Mr Speaker.

Mr First Deputy Speaker: With this, where lies the argument that the (b) should be deleted? Now, when the (b) is deleted, and there is the need to go above the ceiling, what happens?

Yes, Hon Darko-Mensah?

Mr Kwabena Okyere Darko-Mensah: Mr Speaker, I want to ask a simple question before we debate the matter again.

During the COVID-19, some rules were set aside for us to spend so we can fix the problem. With the introduction of the (b), it is going to come back to the same situation where we are going to set aside the ceiling and approve more. So, the question is, are we solving the problem for which we have brought this Bill here, or are we creating another way out?

Mr First Deputy Speaker: I think in a way, we are solving the problem.

Mr Darko-Mensah: Yes, that is what I want us to solve. Otherwise, then we should leave the old system.

Mr First Deputy Speaker: In an emergency situation, you spent money, and that money was in excess of the 5 per cent. You are under obligation to report to Parliament within 30 days. Now, when you report to Parliament, Parliament will have to rectify your acts. Having rectified your acts, Parliament will then say that, having regard to the situation, the 5 per cent ceiling is too low, so we are increasing the 5 per cent to 7 per cent.

However, the situation still persists seriously, as a result, you would have to go above the 7 per cent. So, it is that situation that would lead you to come for additional.

3:36 p.m.

Mr Fokuo: Mr Speaker, the way these things work in practice, and there is a reason we do not talk about approvals, but we talk about ceilings. It is because we do not want piecemeal approvals. We

are in an emergency. So, it should not be that the Minister will come to Parliament today, then the next day, when there is an escalation or emergency, he runs here again. That is why we do not use the term “approval”; we refer to ceilings. So we work within the ceilings.

In practice, if one is working within the ceiling and approaching its limit, one can return for the ceiling to be reviewed. So, if we take out the (b), in practice, the (a) works perfectly. If we want to maintain (b), then we will look at saying that the ceiling that was set in (b) should be reviewed or enhanced, because we have already set a ceiling. We do not want to be talking about approvals where the Minister would always have to appear before the House.

Mr First Deputy Speaker: I am a lawyer, and not a finance person. But there should be a difference between ceiling and temporal advancement. My understanding is that the Minister can come for a ceiling. However, there is a need to temporarily advance some money to the Minister.

Mr Fokuo: Mr Speaker, that temporal approval is what we call a ceiling. We are giving the room to operate within because we are in a state of emergency and do not want back-and-forth. Normally, the ceiling is bigger than the base of approvals that the Minister would have come for. This is helpful to the country. If there is an emergency, the Minister should come for the ceiling. It could be a significant ceiling, looking at the nature of the emergency.

Mr First Deputy Speaker: We are all brainstorming. Let us say you are the Minister, and there is an emergency, Parliament has given you a ceiling of 7 per cent, as indicated, which was accepted. Before you come again for the ceiling, would there not be any advance payment to you?

Mr Nkrumah: So, Mr Speaker, the law as we are passing now is to give the Government permission to take up to 5 per cent of the previous year’s revenue. That is the first ceiling that we are legislating to raise. We are saying, however, that when the force *majeure* situations have occurred, they shall, within 30 days, report to Parliament that they have advanced “X” to the Minister or to the Government because of this emergency, which fits under those two conditions, and that they envisage that they may need to spend more. So Parliament would then lift the 5 per cent ceiling and give them the 7 per cent, like you are saying.

His earlier contention was that the use of the word “approval” in the (b) for finance persons is inappropriate. So there is a rendition which is aimed at explaining it properly, that is, a further lifting of the ceiling. And I believe that will solve the problem for us, Mr Speaker.

Dr Boako: Mr Speaker, I think the rendition we are proposing in order to address the issues raised by the Majority Leader is to state that “(b) approval for the upward revision of the ceiling where necessary” So that we do not deal with “the additional temporary advances”

anymore. We have already approved the advances. We have had a ceiling for that in (a). In case there is a need to revise that, we will not go into additional advances. We just revised the ceiling upwards.

So the rendition should be “(b) approval for the upward revision of the ceiling where necessary”. The ceiling that has been granted in (a). As simple as that, Mr Speaker.

Mr First Deputy Speaker: Yes, let me hear from the Minister for Education. I will come to the Minister for Finance before you.

Mr Haruna Iddrisu: Mr Speaker, thank you very much.

I believe we should persuade our Colleague to abandon his amendment. Let us contextualise this amendment. The law is a living organism. We are not static; we are responding to a dynamic situation. The context here is *force majeure*; extraordinary compelling circumstances.

Mr Speaker, the (5) reads, “the Minister shall, within 30 days of the grant of a temporary advance, submit to Parliament a report on the terms and conditions of the temporary advance.” So when he appears before Parliament, like in COVID-19, maybe the first 10 days, he needed 10 billion. But by the time the Minister for Finance comes to Parliament, he now thinks that he needs 50 billion because it is an extraordinary circumstance, we are saying that he should report to Parliament that, apart

from the amount he wanted, he needs additional resources to adjust to the situation.

So, I think that we should support the Chairperson’s amendment. Because Mr Speaker, in the past, the Bank of Ghana advanced. Now, we are saying that when the Bank of Ghana advances, it must come and tell Parliament that it has financed the Government up to a certain amount. If Parliament, by request of the Minister for Finance, thinks that he needs additional resources, that is what the (b) is to do.

So, construe law as a living organism. We are not responding to a static situation. Mr Speaker, currently, we should be guided. In the United Kingdom, they have just finished their COVID-19 enquiry, and it revealed a lot about what could happen under such circumstances in the name of *force majeure*. They have lost almost £40 billion to fraud. This is why we say that Parliament must keep pace with whatever will happen under those circumstances. Thank you.

Mr First Deputy Speaker: You see, Hon Members, my understanding of temporal advance is, and I may be wrong; I am not a finance person, I am a lawyer.

Anything in excess of the ceiling that is given temporarily. So initially, we have a ceiling of up to five per cent. As for that one, it is as of right. However, if the *force majeure* allows spending to go beyond that particular five per cent, whatever is in excess of the five per cent

will be treated as a temporary advancement. For this reason, the Minister must come here within 30 days and get it ratified. Parliament will then decide that the five per cent given is too small, so going forward, it may go up to seven per cent. Now, if the *force majeure* still persists, and the Minister has to go beyond that particular seven per cent, then Parliament will give some temporary advancement before he comes here. Parliament will say that in the event of such a thing happening, another temporal advancement will be given again.

Mr First Deputy Speaker: Yes, Deputy Minister for Finance?

Mr Thomas Nyarko Ampem: Mr Speaker, I want to say that the modified amendment will not be injurious. If he is modifying it to say “approval for an upward revision of the ceiling”, I think we can accommodate it.

3:46 p.m.

The reason being that, as rightly explained from the beginning, within five per cent of the previous year’s revenue, you can go back and forth to the Bank of Ghana and take that amount. If we hit the five per cent ceiling, we must notify Parliament. Now, in this situation, where under a serious situation like the *force majeure*, we do not have the time to come to Parliament, we are allowed to exceed the five per cent. But within 30 days, we are required come to Parliament and justify the excess that we have borrowed and seek ratification from Parliament. Once we get that ratification,

by that time, we may have a fair idea of the new ceiling that will be required. So, for instance, seven per cent, as was explained, Parliament gives us, yet the situation persists. We come back to Parliament and seek an upward adjustment to that new ceiling that Parliament approved for us. I think it is alright. This is because we are trying to cure a situation that we went through, where a lot of borrowing was done without anybody knowing. That is the essence— *[Interruption]* I will try. Minority Leader, I will try, because that is the problem we are solving.

Mr First Deputy Speaker: Hon Minister, if I understand that particular point, it means that unless the ceiling has been adjusted upwards, we cannot have any advance. That is why the word here is ‘and’. Paragraph (a) and (b) must be read conjunctively, not disjunctively.

So, in the event of *force majeure*, we are given the seven per cent. We cannot exceed the seven per cent unless they come to further increase the seven per cent to 10 per cent. However, paragraph (b) enables us to get temporal advance as we come to Parliament thereafter to get the ratification and the ceiling adjusted for us again. If it is not like this, we cannot exceed the ceiling. If we exceed the ceiling, we will be committing a crime. That is why paragraph (b) is making provision for additional temporary advance. This advance is temporary. It is after the legitimate one that you can temporarily do something in the interim before coming to Parliament. That is the meaning I am getting.

Mr Nkrumah: Mr Speaker, when it comes to interpretation, the debate in the Chamber is part of what will be used for interpretation. I think the initial mischief that we sought to cure has now been well explained and both Sides have accepted it. I do not see any further challenge with this one. These temporary advances are up to that ceiling. So, the rendition of the paragraph (b) then allows Parliament to approve further increases in the ceiling as and when necessary.

Mr First Deputy Speaker: All right, so there will be various—

Mr Nkrumah: As and when necessary, the Government will appear before Parliament and make the point that we need the ceiling lifted from 7.5 per cent to 8 per cent. They will make a justification. Parliament, as it finds worthy, will then lift the ceiling. But it is not about approving temporary advances to be made. No, it is the ceiling. Within that ceiling, they can go for the temporary advances that they require towards that ceiling. They will work within that ceiling. Thank you, Mr Speaker.

Mr First Deputy Speaker: Let me hear Hon Sosu then I will come to you.

Mr Sosu: Mr Speaker, I do not think that that is the purpose of paragraph (b). When we look carefully at the rendition, what the rendition is saying is that apart from the temporary advances that they take being after ratified, Parliament then sets new ceiling for them. After Parliament sets new ceiling for them, they are under duty to return to the

House, having taken time to properly assess the magnitude of the calamity and to budget appropriately for it to seek approval from Parliament for any additional temporary advances.

This is what I think that rendition means. It means that we cannot continue working with ceilings. I believe that working with ceilings actually opens a space for so many discretionary uses of money. That is why the paragraph (b) is saying that having set the ceiling, it is their duty as a Minister to properly assess the situation and now come before Parliament to say that when I look at the ceilings that Parliament has set for me, I believe that we may need this amount of money. Based on that, Parliament then approves the additional advances sought. That is what the rendition means.

So, when we change that rendition, what it means is that under (a), we are setting ceilings. Under (b), we are increasing those ceilings. How long do continue increasing the ceilings? If we are to keep increasing the ceilings each time, at what point do we properly assess the magnitude of the situation, cost the implications, and return to Parliament for approval?

Mr First Deputy Speaker: Let me hear the Majority Chief Whip. I will come to the Minority Leader.

Mr Dafeamekpor: Mr Speaker, may I propose that we stand this one too down, so that we can make progress. If there is an agreement, that is fine.

Mr First Deputy Speaker: Let me hear the Minority Leader, then I will come to Majority Leader.

Mr Ayariga: No, Mr Speaker, he is no longer on his feet. Why are you forcing the man who is no longer on his feet to—

Mr First Deputy Speaker: Because he was on his feet agitating to speak.

Mr Ayariga: I think there is an agreement because this is an amendment coming from the Committee. The Committee Members presented their reasons why they proposed the amendment. Somebody moved for an amendment. We have considered the new rendition and it seems there is consensus that what they are proposing is an enhancement and the Minister for Finance is not opposed. For us here, we are working for the benefit of our—

Mr First Deputy Speaker: Very well, Hon Member, move your Motion, and let me put a question for the further amendment.

Osahen Afenyo-Markin: Mr Speaker, I want to address an observation that— *[Interruption]* We on this Side have observed that the Deputy Minister for Finance has consistently been using certain words and phrases, that are quite derogatory, and we want to plead with him—

Mr First Deputy Speaker: In the record?

Osahen Afenyo-Markin: Yes, Mr Speaker. I am coming to that. In his

submission, he tried to veer off. It is a year after the 2024 elections. They cannot continue to use every single opportunity to attack the previous Government. *[Uproar]* If he does not stop— Now they are just left with three years. Even so, he, Hon Ampem, knows that even the Budget they presented is full of errors.

3:56 p.m.

Secondly, Mr Speaker, they have just brought this Bill. He came in late. We have been doing his Government Business for him. Then he comes and attacks the previous Government. We have to stand down the Section 30 that he is seeking to amend. Look at that controversial provision. So please, he should not try to introduce that controversy. We take serious objection to certain words that Hon Nyarko Ampem used in this Chamber. If he has come to do his Minister's Business, and standing in for him, he should act like him. If he wants to always reduce serious issues into politics, we will respond to him.

Look at their Backbench. The Hon Deputy Minister is serving on many boards but some of their Backbench are not serving on any board. Some have been sent to Siberia committees. Because they have 189 Members, they have forgotten about some of them. Some come to work in an *Uber*. They do not care about their welfare. Hon Ampem is the Deputy Minister for Finance and is on several boards, then he comes to attack the Minority. He should not. Do they take care of their Backbench? We

started this Bill long ago, then when it became an issue then he came in. He should not do politics in this Chamber.

Mr First Deputy Speaker: Hon Minority Leader, I have heard you. You have made your point. Yes, please propose the rendition.

Dr Boako: Thank you, Mr Speaker.

Mr Ayariga — *rose* —

Mr First Deputy Speaker: Hon Members, I do not want to digress from the Bill. Please be brief.

Mr Ayariga: No, Mr Speaker. We joke and laugh in the Chamber about certain things. But it is also not right for the Hon Minority Leader to get up and attack the Deputy Minister for Finance in those terms. Why?

Mr Speaker, the Bill is all about correcting past problems in the management of the finances of this country. There was a problem. Earlier, Hon Kojo Oppong Nkrumah got up and explained the nature of the problem and made references to COVID-19 expenditure and how its expenditure became unpredictable, therefore we had to spend more than we had forecasted or projected. He went on to explain other issues such as the banking sector cleanup.

Now the Minority Leader is attacking the Deputy Minister because he got up and mentioned that when they were in government, they faced that problem, and we want to prevent this Government

from following that example, which is not a very good example. To say that it is not a good example is not using derogatory or attacking words against their regime or government. So, he should not attack the Deputy Minister in that manner. And what has that got to do with whether he is on the board or not? And who on our Side has complained to him that they are not on any board, therefore they have a problem? Who on our Side?

Osahen Afenyo-Markin — *rose* —

Mr First Deputy Speaker: Hon Leaders, both of you cannot be on your feet at the same time. So, Hon Member, propose your rendition and let me put the Question on it.

Dr Boako: Thank you Mr Speaker. I am outside the Leadership arena. I propose that clause 12 subclause 5 (b) be amended to read as “approval of an upward revision of the ceiling set in (a)”.

Mr First Deputy Speaker: So, Hon Members, can we come closer to (a) to say “approval for additional ceiling to any temporary advancement”.

Mr Nkrumah: No, Mr Speaker, it is not an additional ceiling. The ceiling has been given previously. The subclause (b) as he has suggested, is just an upward revision of that ceiling. So, it is an approval for the upward revision of the ceiling granted in (a), and that solves the problem.

Question put and amendment agreed to.

Mr First Deputy Speaker: Clause 12, Chairperson of the Committee?

Mr Afful: Thank you, Mr Speaker. Clause 6, *delete* paragraph (a) and *insert* the following —

Mr First Deputy Speaker: Are you talking about clause 6 or sub clause 6?

Mr Afful: Subclause (6), paragraph (a) *delete* and *insert* the following: “(a) a state of emergency declared by the President in accordance with Article 31 of the Constitution; or”.

Question put and amendment agreed to.

Mr Haruna Iddrisu: Mr Speaker, let me seek your leave. I do not have the power to arrest the Question you are putting. But the Chairperson of the Committee referenced Article 31 of the Constitution on the declaration of the state of emergency. We are dealing with the Constitution. In Article 31 (1) when the President declares, Parliament also has a role. I was asking for my copy of the Constitution so that we tie in the words and meet the requirement of the Constitution in respect of the declaration of the state of emergency.

Mr First Deputy Speaker: Let me put the Question and then we will refer that to the drafters. So, the draftsman should take note and use the Constitutional language.

Question put and amendment agreed to.

Clause 12 as amended ordered to stand part of the Bill.

Clause 13 ordered to stand part of the Bill.

Clause 14 — Section 49 of Act 612 amended.

Mr Afful: Amendment proposed: subclause (1), line 2, *delete* “may” and *insert* “shall”.

So, the new rendition will be: “Except as authorised by the Board and for the purposes of supporting the core functions of the Bank, the Bank shall not...”.

Question put and amendment agreed to.

Mr First Deputy Speaker: Clause 14, item numbered 33 (ix). There is an additional proposed amendment to Clause 14.

4:06 p.m.

Mr Afful: Amendment proposed - Subclause (2), line 3, after “years” *delete* “or other period that the Board may determine”.

Question put and amendment agreed to.

Clause 14 as amended ordered to stand part of the Bill.

Clause 15 ordered to stand part of the Bill.

Clause 16 — Section 53A of Act 612 amended

Mr Eric Afful: Mr Speaker, I beg to move Subclause (2), line 1, after “within” *delete* “thirty” and *insert* “seven”. The new rendition will be: “the Minister shall, within seven days of receipt of the report, forward the report to Parliament”.

Thank you.

Mr First Deputy Speaker: Hon Members, this is for consistency.

Mr Boamah: Mr Speaker, there has been an omission of a very important provision that I think the Chairperson ought to have looked at. We are looking at reporting to Parliament, and I believe that a very important subclause in (c) on the budget of the Central Bank ought to be brought to Parliament —

Mr First Deputy Speaker: Hon Member, you know the rule. Let us put a question on the Chairperson’s proposed amendment, then you can come to do whatever amendment that you want to propose.

Question put and amendment agreed to.

Clause 15 as amended ordered to stand part of the Bill.

Mr Boamah: Mr Speaker, I beg to move for a further amendment to section 16 on the reporting standards to the Parliament of Ghana. Mr Speaker, we have witnessed some reckless activities

of the Central Bank in the past under all administrations in the Fourth Republic, which have gone to hurt the management of this country.

Mr Speaker, in so doing, I propose a subsection (c) that the budget of the Central Bank be brought to Parliament for scrutiny. I do so because we would always want to understand the happenings in the Central Bank as the people’s representative. We need to understand how the budgeting of the Bank’s activities is done, its expenditure, and other related activities. We are not by this, undermining the independence of the Central Bank—

Mr First Deputy Speaker: Hon Member, propose the amendment. You can give reasons for your proposed amendment. What is your rendition?

Mr Boamah: “That the budget of the Central Bank be furnished to this House for scrutiny”. This is my proposed amendment, under sub-clause (c).

Mr First Deputy Speaker: Hon Member, because of the wording “the report under subsection 1 shall include...” So, you cannot say that.

Mr Boamah: A new subclause (c)?

Mr First Deputy Speaker: Yes, but a new subclause will also have the report under subsection 1; this shall include: A, B, and C. That is why I am saying that the wording “... that the budget of Bank of Ghana....” does not fit after including ‘that’.

Mr Boamah: Mr Speaker, “a report of the budget of the Bank of Ghana to Parliament”.

That is it. Thank you.

Osahen Afenyo-Markin: Mr Speaker, I have a further amendment, but I want us to close this chapter before I come. You have not put a question on the amendment, so if you put the question, then the new subclause (c) is introduced.

Mr First Deputy Speaker: Yes. If you look at subsection 1, it says: “the report under subsection 1 shall include...”, and we are saying the Bank shall submit a report to the Minister once every six months. Then, we say the report under subsection 1 shall include a report of the budget of the Bank of Ghana every six months?

Mr Boamah: Yes.

Mr First Deputy Speaker: Well, Minister for Finance, what is your view on this?

Dr C. A. B. Forson: Thank you, Mr Speaker.

The reading of the Public Financial Management Act, 2016 includes the rendition called the covered entity, and the Central Bank is indeed a covered—So they are subject to the provisions of the Public Financial Management Act, 2016.

Mr Speaker, simply put, the Central Bank goes through all the rigorous approvals that an ordinary or any other

covered entity has to go through. For example, procurement is subject to all the provisions under the Public Procurement Act, 2003.

Mr Speaker, aside, their best practices of how Central Banks over the world are being governed, the Central Bank, per our Constitution grants it functional autonomy. Oftentimes, that autonomy has been interpreted to mean that all the activities of the Central Bank should be independent of the Government of the day. I have always maintained that the autonomy or the independence of the Central Bank largely deals with the making of monetary policy. That is why the Monetary Policy Committee of the Central Bank is very independent.

Mr Speaker, around the world, there are countries where the Central Bank’s budget is approved by the treasury. And there are countries where the Central Bank’s budget is not approved by the treasury. So, the model we have in Ghana is not far from international best practices. It is for Ghana to take a decision.

Mr Speaker, largely, since the formation of the Central Bank, their budget is not subject to parliamentary approval. So, asking that the Central Bank brings its budget to Parliament for approval is a big policy departure, and it is a matter that I think we should be sure of before we take that decision.

Mr Speaker, ideally, asking them to bring their budget to Parliament for approval—because whatever they receive constitutes public funds. The

money does not belong to them; it is public funds. Per the constitution, it is only Parliament that has the power to give people the authority to spend. My concern is that if we are asking the Central Bank to come to Parliament for approval of their budget, in what form are they going to come? Part of the annual budget of which their revenue is not a part of the revenue? Or how are we going to appropriate them in the Appropriations Act? And what about if there is a state of emergency and Parliament is not sitting?

4:16 p.m.

Mr Speaker, because even in times of war, the only state institution that survives is the Central Bank. This is because the currency does not go. So, who approves it at the time? So, there is a lot more that we need to think through before we make that enactment. It is a very major one. It is a complete departure from the old. The Public Financial Management (PFM) in me feels that the Central Bank must be subject to proper transparency and approval processes. But thinking about the broader good of the country, we should tread cautiously on it.

Let me add that if, for example, the Central Bank had brought their budget for approval, the variations we saw in the construction of their head office may not be the case. Because maybe we could have stopped it from here. But that does not mean that we should use one mistake to kill the Bank. I just want us to be careful about it. There are arguments for and against. But largely, if we look at

what has happened in the past, we may think they should bring their budget. Let us be careful about the proposals before us.

Thank you very much, Mr Speaker.

Mr First Deputy Speaker: Yes, Hon Patrick Yaw Boamah?

Mr Patrick Yaw Boamah: Mr Speaker, I do not want to abandon my proposal. The Minister believes this is a major shift in policy; I agree with him. But he said to this House that the PFM that is in him believes that there is going to be a major shift.

Mr Speaker, for the purposes of public information and scrutiny and the noise that was made on the new Central Bank head office and that the people of Ghana were not informed about the cost and that there has been cost budget overruns, inflation of cost among others. We have an opportunity as a House and as a people to let Ghanaians know the activities of the Central Bank and its budgets. For the purposes of public scrutiny, we need to know and the Minister must be bold to make that very important shift or departure from this age-old policy.

Mr Speaker, it is for this reason that I make this proposal, that for the purposes of public information and scrutiny, this House must be made aware of the budget of the Central Bank. Even if we are not going to capture it in this Bill, this House, through its Committee on Economy and Development and the Budget Committee, must be made aware

of it. But I still stand on my amendment that this House must have the opportunity during its reporting—Even annually, the budget must be brought to this House for scrutiny.

Mr Speaker, because BoG, under the independent constitutional bodies, appear before us for questioning. So why should we not have an opportunity or a bite on their budget. I so submit.

Mr First Deputy Speaker: Though I may agree with the principles that you are trying to establish, as to whether it should be an amendment under this provision is another matter entirely. Because the provision is saying that, “the bank shall submit a report to the Minister once every six months.” If it is a budget that we are talking about, it is annually. So, it cannot be reported to the Minister once every six months. So, it may not fit here if it is a budget that we are talking about.

Subsection 2 also says that, “the Minister shall, within 30 days of receipt of the report, forward the report to Parliament.”

The question is whether a budget can fit into this. So, where you are putting this is that the report under subsection 1 “shall include”. So, if you put a budget there and you read the provision as a whole, it will not fit into it. So, please, I would beg you to do the needful.

Mr Boamah: Mr Speaker, I will abandon it now, but I would come under the second consideration stage with the proposed amendment.

Mr First Deputy Speaker: Very well. So, it can be an entire provision on its own.

On this note, the Chairperson may move amendment in the item numbered (xii), clause 16—

Mr Nkrumah: Mr Speaker, I want to draw the attention of the House to a fact which I believe should cause us to make a small amendment to this. My proposal is that we add Parliament to the subsection 53 (a)(1) and rather delete the subsection (2). That is my proposed amendment in furtherance of what the Chairman has proposed.

Mr Speaker, here is the history. In the original Act 612, there was no provision for reporting to Parliament. The section 53 just dealt with the holding of state foreign exchange. Then in the Act 918, there was a whole section introduced on reporting to Parliament. That provision said that “the Bank shall submit a report to Parliament once every six months, including...”, then there was a list. So that may be where, if there is an interest in seeing the financial performance of the Central Bank, we could insert that.

Mr Speaker, this new amendment is now seeking, in my view respectfully, to lower the standards of reporting. Because now, it is saying that the BoG should not be reporting to Parliament. That BoG should first report to the Minister and then the Minister will report to Parliament. Why, Mr Speaker? If there is a provision that says that the Bank of Ghana should report to Parliament. Why? If there is a provision that says that

BoG should report to Parliament, I would imagine—Because that provision does not include the Minister. I would imagine that the amendment would just be rather to add the Minister, not to put the Minister as a fetter between BoG and Parliament.

Mr Speaker, my proposal is that this be amended to read, “the Bank of Ghana shall submit a report to the Minister and Parliament once every six months.” Then, we delete (2), which gives another time frame for reporting to Parliament and all of the others can follow. Thank you, Mr Speaker.

Mr First Deputy Speaker: Very well. Yes, let me hear you, Minister for Education, then I would come to the Majority Leader and then Finance Minister will follow.

Mr Haruna Iddrisu: Mr Speaker, it is to be noted that this Parliament should desist from wanting to use an Act of Parliament to amend the Constitution. May I draw my Colleague’s attention to Article 184 of the 1992 Constitution. It provides elaborate provisions on how BoG should relate to the Parliament of Ghana beyond the foreign exchange receipts and payment captured in 184(1).

It provides how BoG must report, including its audit report. So, to say that BoG should come to this Parliament with their budge—No, I say that in whatever they are doing, an Act of Parliament cannot be superior to this Constitution. We are saying that they should not put in amendments which deviate from what the Constitution requires BoG to do.

Thank you.

Mr First Deputy Speaker: Yes, Hon Kojo Oppong Nkrumah, what do you say to the issue raised by the Minister for Education? Yes, Majority Leader, let me hear you.

Mr Mahama Ayariga: Mr Speaker, I think it is important to stick to our practices. The practice of this House has always been to identify a Ministry that will ferry reports of institutions, agencies, departments, to Parliament for us to consider. As you can see, whatever it is, this report is supposed to end in Parliament. If it is given to the Minister for him to study and within 30 days, he must also present it to Parliament or we even say that they must give it to Parliament directly, ultimately it gets to Parliament. But our practice at all times has always been to allow reports to be presented to Ministers and Ministers oblige to present their report to Parliament. So, I think that on that score, let us just maintain this proposal which says that it shall be given to the Minister and within 30 days, the Minister must give it to Parliament.

4:26 p.m.

Mr Nkrumah: Mr Speaker, I am willing to abandon my proposal except to say that the Bank of Ghana, if you read the Constitution properly, is not a subsidiary or an agency under the Ministry of Finance. In fact, there are those who argue that it is an independent constitutional body and the provision under Article 184 that was stated by my learned Senior is not about their general

reporting to Parliament. It is about their audited accounts, which is a different matter. The proposal was about the original provision that was made for the Bank of Ghana to submit their reports to Parliament, which is now being amended. But I am willing to abandon it so that we can make progress.

Mr Speaker, thank you.

Mr First Deputy Speaker: Very well. Yes. The proposed amendment is abandoned.

Osahen Afenyo-Markin: Mr Speaker, I am sorry to take you back to clause 15, but I noticed something that, since the Minister for Finance is here, I would want to bring to this—

Mr First Deputy Speaker: Hon Minority Leader, I have stated here several times that if a particular clause is under consideration, and we did not finish that particular clause, how do we go back to another clause? We are now looking at clause 16. We have not finished. We did not put a Question on clause 16, and you want us to go back to clause 15. How do we handle the two clauses together?

Osahen Afenyo-Markin: Mr Speaker, bear with me. I am just signalling.

Mr Speaker, I am signalling that when we are done with clause 16, there is a major issue that —

Mr First Deputy Speaker: Very well. Once we are done with it, and you seek

my leave to go there, I would allow you. But for now, no.

Chairperson of the Committee, did you move your last amendment? May we move the amendment in xi?

Mr Eric Afful: Mr Speaker, I beg to move, Amendment proposed — Subclause (4), paragraph (a), after “end of” *delete* “July” and *insert* “August”. The rendition will be; “the bank shall submit the report in respect of the first six months of the year by August.

Mr Speaker, thank you,

Question put and amendment agreed to.

Mr First Deputy Speaker: I will then put a Question on the entire clause 16.

Question put and amendment agreed to.

Clause 16 as amended ordered to stand part of the Bill.

Mr First Deputy Speaker: Yes, Minority Leader?

Osahen Afenyo-Markin: Speaker, I am on my feet on clause 15. We are being invited to amend the principal enactment.

Mr First Deputy Speaker: Hon Minority Leader, you are very much aware that we have put a Question on clause 15.

Osahen Afenyo-Markin: Yes, that is what I am saying. I am very much aware.

Mr Speaker, we are normally flexible at Consideration Stage. Please hear me.

Mr First Deputy Speaker: But you seek the leave of the Speaker and I can decide not to grant you the leave.

Osahen Afenyo-Markin: Mr Speaker, I would not chip away your powers. I was one of the few who prophesied that one day you would become a Speaker.

Mr First Deputy Speaker: So, seek the leave and the leave will be granted.

Osahen Afenyo-Markin: Mr Speaker, in fact, if I was not one of the few, I was the only one who prophesied. So, I wish you well. I would not take away any or part of your powers.

Mr Speaker, I am sorry.

Mr First Deputy Speaker: So, leave is hereby granted. Please proceed.

Osahen Afenyo-Markin: Mr Speaker, I am prophesying further that having granted this leave, which does not come easily, God will bless you to rise higher. Amen.

Mr Speaker, when we come to clause 15, we are being invited to amend the principal enactment by substitution of section 51. If we read clause 1(a), (b), and (c), it is clear. However, if we come to 2, it says, and I find it curious, that the Government may guarantee on behalf of the Republic a loan granted under

Paragraphs (a) or (b) of subsection 1. Meanwhile, in 1(a), the provision is that the bank may, without prior approval of the Minister, borrow money from foreign institutions for a period not exceeding 90 days for the day-to-day operations of the bank. Why would the Minister ambush his fortunes that way? Why would the Minister put himself in harm's way? The Ministry of Finance is giving the Bank of Ghana the space to borrow without authorisation from the Ministry. The Ministry is further saying that in spite of not authorising them to borrow, the Ministry will provide guarantee.

Mr Speaker, this is quite a serious matter.

Mr First Deputy Speaker: So, you are talking about the (a).

Osahen Afenyo-Markin: Mr Speaker, I am moving this House to *delete* the entire clause 2. Because to the extent that the Ministry is giving them the latitude to borrow without prior approval of the Minister, we cannot come back and say that such borrowing—No, I have read the principal enactment. The principal enactment is here. It does not have the clause 2. Hon Minister, I have the section 51 here.

If we read the principal enactment, we do not find the clause 2. The clause 2 is a new clause that has been introduced. I am saying that if we are giving them the latitude to borrow without prior consent or approval of the Minister, we cannot introduce that new clause that now gives the Minister the power or requires of him a guarantee. When the Minister does not

know, how does he come in and say he is going to guarantee.

Mr Speaker, so, I move the House to *delete* the entire subclause 2 as being proposed.

Mr First Deputy Speaker: Hon Members, let us take the bank as a juristic person. As a juristic person, you can as of rights, borrow money. Also, as a juristic person, Hon Osahen Alexander Kwamena Afenyo-Markin may guarantee Hon Bernard Ahiafor taking a loan. How does it— No, you see, what they are saying is that the Bank of Ghana may on its own take the loan. However, if the need be, the Government may provide a guarantee. That is all that the provision is saying. Now, may we hear from the Minister.

Yes, Minister for Finance?

4:36 p.m.

Dr C. A. B Forson: Mr Speaker, clause 15(1) (2) and (3) are saying three different things, in fact, two different things. Mr Speaker, the clause 15(1) talks about the Central Bank borrowing without prior approval of the Hon Minister, and obviously, the mandate of the Central Bank on monetary policy and price stability mandate allows them to undertake monetary policy operations, and open market operations (OMO) where they issue the Bill of the Central Bank weekly to control inflation. They cannot do that with the approval of the Hon Minister, then it means it is the Hon Minister who is controlling the monetary policy. Beyond OMO, the Central Bank

also receives deposits and also gives what we call send-off deposits to other countries. So, all of that cannot be done without the prior approval of the Hon Minister.

But Mr Speaker, clause 15(2) says,

“The Government may guarantee on behalf of the Republic a loan granted under paragraph (a) or (b) of subsection (1).”

Mr Speaker, that means one is moving beyond the normal monetary policy operations. But it says that when one has to do that, then this subsection 2 is subject to Article 181 of the Constitution, which talks of “Parliament may by a resolution...”. So, that means one has to come to Parliament to ask for approval.

So, it goes beyond their everyday monetary policy mandate, maybe something bigger, that the lender is asking the Central Bank to ask for a government guarantee. So, even though we are saying that the Central Bank can borrow without the approval of the Hon Minister, if the lender so insists that a government guarantee is required for that borrowing, one requires approval in line with Article 181 of the Constitution.

That is what we are seeking to do; to strengthen the hands of the representative of the people, because obviously, the “guarantee” means the state has guaranteed that particular debt. So, beyond the monetary policy operations, loans or operations activities that are disguised in the form of loans,

issuance of debt instruments, this is a caveat that allows the Central Bank to come to the Government to ask for approval in line with Article 181 of the Constitution.

So, Mr Speaker, I oppose the amendment made by the Hon Minority Leader in this regard because it strengthens the hands of the Government and also helps the Central Bank. So, beyond the everyday OMO, if they require something to keep the operations of the Central Bank going, it will have to come to Parliament.

Thank you.

Mr First Deputy Speaker: Hon Members, I think we stood clause 11 down.

Hon Members, may we humbly visit clause 11.

Alhaji Habib Iddrisu: Mr Speaker, let us suspend the Consideration Stage at the moment and do other things because the Hon Minister for Government Communication is here and he has Questions to answer.

Mr First Deputy Speaker: Hon Member, we are left with just one clause.

Alhaji Habib Iddrisu: Mr Speaker, not that, there was an indication on clause 1 that we will come back for a Second Consideration on this Bill, and doing that will definitely not cure it. So, let us suspend the Consideration Stage

Mr First Deputy Speaker: Hon Member, if we do not finish with the Consideration Stage, how then do we come back to the Second Consideration?

Mr Annoh-Dompreh: Mr Speaker, with respect, we in Leadership have a role to help you guide the House. I have related to the Hon Deputy Majority Leader, and earlier, we set out a work plan on what we wanted to do for the day. We have been on this Bill the whole day, and it cannot be. There are other Businesses we must prosecute. So, we are not against it; we will help them pass it.

Mr First Deputy Speaker: Hon Members, I have listened to you, but with all due respect, we deferred the consideration of this clause to get the Hon Minister for Finance to be here so that he could explain certain things to us. Now that he is here, we do not want to take the explanation?

Mr Annoh-Dompreh: Mr Speaker, of course, we cannot stop him from explaining but we want the Hon Minister to also answer the Questions. We are rising on Friday, and these Questions cannot be left hanging—*[Interruption]*—Who is saying “Oh”? They should speak into the microphone.

There are other Businesses, and if the Hon Minister has to speak to it, that is fine. Mr Speaker, maybe you should listen to me in whole; you are not listening to me.

Mr First Deputy Speaker: Hon Minority Leader, on all fours, I agree

with you, but on this occasion, the Hon Minister was having a meeting, so we had to ask the Hon Minister to leave the meeting to come to the Chamber to offer an explanation on clause 11.

Mr Annoh-Dompreh: Mr Speaker, if you listen to me, you would realise that I am even corroborating your point.

Mr Speaker, the Hon Minister leaving a meeting and coming to Parliament is not a justification for us to stop our Business and prioritise the Hon Minister. The Hon Minister is our Friend, we like him, but Parliament is important.

Mr First Deputy Speaker: You are rather asking the Business to stop —

Mr Annoh-Dompreh: Mr Speaker, if you say he left the meeting, he should have been here in the first place. He is an Hon Member of Parliament; his Appropriation Bill has not been passed, he wants his appropriation passed, and that was why he left the meeting.

Mr Speaker, we like him, but on this occasion, he should wait. The whole day, he has not been here, and he just came 30 minutes ago and wants to leave. Mr Felix Kwakye Ofori has been sitting here the whole day. No, Mr Speaker, let me also conclude.

Mr First Deputy Speaker: Hon Minister — I am also pleading with you on this occasion.

Mr Annoh-Dompreh: If we are going to prioritise him, there should be a

condition. Today, when we met as Leadership —

Mr First Deputy Speaker: Very well. I have understood your language. So, Leadership, you need to engage on this matter.

Mr Annoh-Dompreh: There are matters— Mr Speaker, let us suspend.

Mr First Deputy Speaker: No, we are not to suspend and engage.

Mr Annoh-Dompreh: Mr Felix Kwakye Ofori has been sitting here the whole day. He is equally important.

Mr First Deputy Speaker: The fact that we have done the Consideration does not mean we did the Third Reading.

Mr Annoh-Dompreh: Mr Speaker, we will allow him to elucidate on that clause, but then afterwards, we will suspend Consideration on the Bill, take the Questions, and the Hon Minister for Foreign Affairs will brief the House, then the Hon Minister for Roads and Highways, who has been sitting here the whole day —

Mr First Deputy Speaker: Hon Minority Chief Whip, we have a Leader of Government Business. Hon Minority Leader, you and I have been here for some time. The practice that I do not want is as if you are trying to determine the kind of Business to be conducted.

Yes, Hon Minister, clause 11.

Dr C. A. B. Forson: Mr Speaker, for me, clause 11 is the important part of the Bill before us.

Mr First Deputy Speaker: In the first place, what is a seasonal shortfall of a budget as in clause 11 (2)?

4:46 p.m.

Dr C. A. B. Forson: Mr Speaker, seasonal shortfalls of government revenue or budget revenue may be because we know that there are seasonalities in the revenue that we collect.

Mr Speaker, for example, if I have a Euro bond that will fall due on the 3rd January, 2026, of US\$709 million, it has to do with the interest of Euro bond that we have to pay as a country. Let us say that the year has started and Appropriation begins on 1st January, then I am expected to raise revenue to service that Euro bond. On the 2nd January, I would need the money to service that due, but it will be due by the 3rd January, and I have not accumulated enough revenue for the month, and I expect that I accumulate enough revenue on the 15th January, because of the beginning of the week. There are some revenues that one can only get in a month or maybe a quarter; that is seasonality. Mr Speaker, for example, if you have a sinking fund in place, and one is ready to pay, not everybody will have it in place.

Mr Speaker, the rationale here in this amendment, for me, is the most important. It is to restrict monetary financing and improve, in other words,

the printing of money by the Central Bank.

Mr Speaker, what we are seeking to do here is to cap the 5 per cent of the previous year's revenue to only take care of emergencies. Even with the emergencies, as soon as one hits that 5 per cent, one has to explain to Parliament why they have arrived at that 5 per cent and to inform Parliament about the remedies they are putting in place to reverse it. The law says that one has up to three months to correct it. So, all we seek to do here is to strengthen the old Act and even if we are going to allow monetary financing, a very small element, even then, it should be under extreme emergency.

Mr Speaker, I recall in 2015, I brought a Bill here to reduce the monetary financing from the then 10 per cent of the previous year's revenue to today's 5 per cent, but it did not provide enough safeguards. So, since 2015, particularly in the recent past, we saw abuse of that provision, where at a point, the Central Bank supported government by over 30 per cent of the previous year's revenue. And so, this provision is to strengthen it,

even though we are enjoined under the Fiscal Agency Agreement between the Ministry of Finance and Government of Ghana to do zero monetary financing, emergencies can happen. There can be emergency tomorrow; tomorrow, God forbid, there could be an emergency in Ghana and then maybe, the Central Bank will have to come in, but if they reach that 5 per cent, they have to come to Parliament for approval.

So, inasmuch as we do not want to allow monetary financing, we want to restrict and make sure that monetary financing is only for extreme emergencies, where in the case of—Mr Speaker, we have said that one of the reasons for which monetary financing can be allowed is during a state of emergency, as declared by the Commander-in-Chief and in line with the Constitution of the Republic of Ghana, or health emergency like what happened under COVID-19. So, these are the only emergencies that we can allow. That is all what this amendment seeks to do.

Mr First Deputy Speaker: Yes, Hon Kojo Oppong Nkrumah?

Mr Nkrumah: Mr Speaker, so what the Minister has done is to resolve the debate that we were having earlier. The intendment of this amendment is to legislate the conditions under which monetary financing can take place, which is under the *force majeure* conditions that have been prescribed.

Therefore, Mr Speaker, we will have to *delete* under clause 11, the amendment to section 30, the new *proviso*. We will have to *delete* the words, “for the sole purpose of filling a seasonal shortfall of budget revenue of government” so that there is no ambiguity there, and there is clarity that what we intend to do is what the Minister has said. But there is no clawback clause that opens up the window for monetary financing beyond these two conditions. I believe that once we do that, the issue that was raised

would have been resolved here in the Chamber.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Yes, let us take Osahen Alexander Afenyo-Markin, then we can come to the Minister for Finance.

Osahen Afenyo-Markin: Mr Speaker, the Hon Minister for Finance has resolved the problem for us. All the debates, all the arguments have been resolved through his submission. From all he has told us, it means that the introduction of that clause is needless, because just as the Hon Member for Ofoase Ayirebi said—

Mr First Deputy Speaker: Hon Members on their feet should resume their seats. Hon Members, resume your seats before I start mentioning names. If you know you are not an Hon Member, leave the Chamber. Yes, Hon Minority Leader, you may proceed.

Osahen Afenyo-Markin: Mr Speaker, I think the Minister for Finance has resolved this matter. With his lengthy explanation regarding the conditions for taking money from the Central Bank, it is now clear to us on this Side of the House that there is no need to have subclause 2, because the subclause 2, as I have already said, renders the subclause 1 otiose. What the Minister seeks to achieve is completely negated by the introduction of subclause 2. Because subclause 2 is now using a clawback language, therefore, we have to *delete* subclause 2 completely. I therefore,

move that we *delete* “or fill in a seasonal shortfall of budgeted revenue of government”.

Mr Speaker, we have engaged the Minister on this new rendition, and I am sure he will come back into the Chamber. I have whispered something to the Ranking Member, and they are engaging on this matter. Because considering his very principled stand, and why he is bringing this amendment, if we maintain the subclause 2, then there is no point. Everything he is doing now falls flat.

So, Mr Speaker, let us give him a little time to see whether he will yield to this, or he would want to offer some further explanation, but we cannot allow this to stay.

Mr First Deputy Speaker: Very well. Let me hear from Hon Kojo Oppong Nkrumah before the Minister.

Mr Nkrumah: Mr Speaker, as has been mentioned by the Minority Leader, the matter has been resolved, and can be resolved, therefore, by *deleting* the words under clause 11 (2), the words that say, “for the sole purpose of filling a seasonal shortfall of budgeted revenue” so that the rendition will read, “despite sub-section 1, and subject to the provisions of this section, the bank may make”, then the rest will follow. Because it all fits in line with the section. That section is what provides for the extreme circumstances under which that lending can take place, and what you want to do is to take out this “budget shortfalls” out of it.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Very well, Hon Minister, let us hear you.

Dr C. A. B. Forson: Mr Speaker, I think the rendition, as in the Bill, is rather strengthening the position of the Central Bank.

Mr Speaker, let me provide some guidance. It says that, “despite subsection 1”, and subsection 1 says “the Bank of Ghana shall not”. It says:

“Despite sub-section 1, and subject to the provisions of this section, the Bank may, for the sole purpose of filling a seasonal shortfall of budgeted revenue of government, make

- a. an advance to Government on overdraft, or in any other form that the Board may determine, or,
- b. direct purchases from Government of treasury bills or securities which represent obligation of the government.”

4:56 p.m.

Mr Speaker, I say it strengthens it because the only reason this advancement can be taken is when it has been indicated and proven that there is a need, because there is a revenue shortfall. If there is no shortfall, it cannot be done; therefore, there is no reason to do it. Rather, we seek to open it up to them, because if there is no shortfall, the Minister can still say we should give him

5 per cent of the previous year's revenue. But in this case, he says that for the sole purpose of filling a seasonal shortfall, the seasonal shortfall here means it is open-ended. If it is open-ended, the Minister can ask for it, and so before he asks for it, he has to prove that there is not just a shortfall but a seasonal shortfall.

This means that at the end of the season, he will pay back, so there should be a condition before he can have it. I think it rather strengthens it, not weakens it. That is my view.

Mr Nkrumah: Mr Speaker, the Minister left out one key part of the provision, which is, “despite subsection 1 and subject to the provisions of this section”, and this section refers to section 30. Remember that we have now introduced section 30(a), which spells out the conditions under which the Bank of Ghana may lend to the Government, and those are in 30(6)(a) and (b): a state of emergency and a public health emergency.

Now, if we include this and let me explain why that is important, we can actually have a scenario where we do not have a budget shortfall, but we are confronted with war or something that now requires the Minister to spend, which is why the provision on revenue shortfall should be deleted. It is not about revenue shortfalls; it is about when those two emergencies have occurred, and the Minister has issued the Instruments for the occasioning of those emergencies, then he can borrow from the Central Bank. When we bring this clause into it, that is, the revenue shortfalls, it is a

clawback clause which now allows that when we have revenue shortfalls, we can rely on it using those provisions.

So, Mr Speaker, our proposal is that we take those words out so that the intendment of the Government is protected and that we do not have a clawback clause at the end.

Thank you.

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, when I was on the other Side, at Consideration, we were not encouraged to do certain things as a Member of the Committee. The Hon Member is the Ranking Member of the Committee, and these matters were raised at the Committee level.

Mr Speaker, for nearly 45 minutes, we have been debating one clause. We have already stood down, so this appears deliberate. With all due respect, he ought to have done this at the Committee, and it would have been factored in. By practice, we do not do this.

Mr First Deputy Speaker: Majority Chief Whip, do you know what Bagbin's principle is?

Mr Haruna Iddrisu: Mr Speaker, as I understand it, the Hon Minority Leader, in the absence of the Minister for Finance, raised an issue on the proposed amendment to clause 11, sub-clause 2. The explanation he demanded at the time was on the seasonal shortfall of budget

revenue. That was his issue, and that has now been adequately explained by the Minister for Finance. But Mr Speaker, he failed to take a cue from you when you reminded him to go to the original parent Act, Act 612. The original clause 2 reads, “the total of the loans, advances, purchases of treasury bills ...” that is not my interest, but it goes on to say that 10 per cent. If we read the entire clause 11, the Hon Minister for Finance is now proposing that we reduce the 10 per cent to five.

In the past, if advances were made to the Bank of Ghana, they might not even oblige with repayment, and the arrangement was open-ended. What he has further done, if we look at the original Act 612, it says in the additional clause 4, “Government within three months...” That is a new introduction. In the original Act 612, there was no limit, so whether the Bank of Ghana repaid or not, the Government is different from the Bank of Ghana. So, when Bank of Ghana does this advancement, what this Bill seeks to do is to say that the Bank of Ghana must pay back, if they have the capacity to pay back.

So, Mr Speaker, I think that the Chairman’s amendment is sound. What I thought the Hon Minority Leader wanted was a technical definition of the word “seasonal shortfall”, and we can provide for that. But what the Minister for Finance is doing, for all intents and purposes, is to improve on the existing regime under Act 612, to reduce 10 to 5 per cent, and to reduce our open-ended perpetuity to four months, which is in sub-clause 4.

Hon Osahen should ask for the definition of “seasonal revenue shortfall”, and, Mr Speaker, in putting the Question, you may direct the drafters to define seasonal revenue shortfall as the Minister for Finance and the Bank of Ghana may do.

Mr First Deputy Speaker: Let me hear Hon Isaac Adongo, he was on his feet for some time.

Mr Isaac Adongo: Mr Speaker, thank you for the opportunity.

Mr Speaker, if we read the entire clause 11, it simply says that the Bank of Ghana shall not give advances to the Government except under certain conditions, and it limits it under subsection 2 to 5 per cent. What (a) and (b) are doing is to show how it is operationalised up to the 5 per cent. As we speak, the Central Bank sets an overdraft limit for the Government at 5 per cent of the previous year’s revenue.

It is an operational activity that happens, but this time we are saying that, whereas in the past, at the end of the year, what they simply did was convert this overdraft into a medium-term loan and put it on the balance sheet. Now, this law is saying that if we operationalise the 5 per cent, we should not carry it forward as a medium-term loan, but the Government must come and make sure that it pays off because of the seasonal activity.

This is rather strengthening the arrangement to ensure that we do not set an overdraft limit for the Government to

accommodate the Government's own cash flow difficulty, then it becomes a permanent loan to the Government. When that happens, the Minister should come back and clean the books so that we start the whole year with a zero balance. I think that is good enough to protect the monetary financing that is already going on. I do not see how this is becoming a problem.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Hon Member, I will come to you. Do not worry.

Hon Suhuyini, you were on your feet.

5:06 p.m.

Alhaji Suhuyini Sayibu Alhassan: Mr Speaker, thank you.

Mr Speaker, I was on my feet earlier, but after listening to the Hon Minister for Education and the Chairperson of the Finance Committee, I was of the view that they expressed the thoughts that I had, except that I will just reiterate by making the point that my suggestion to the draftsman is that we appropriately define what is meant by seasonal shortfalls.

It must be clearly defined so that it is acceptable by all, and so that we can identify when it is being misused. From listening to the arguments from the other Side, the concern appears to be that Government might use it as a stopgap for

revenue shortfalls every now and then. However, if we define seasonal shortfall, it will guide us all moving forward.

Mr Speaker, my plea is that if we have that understanding, we can put the Question and perhaps work towards getting seasonal shortfall defined as we proceed.

Thank you very much, Mr Speaker.

Mr Nkrumah: Mr Speaker, to the extent that the Majority Chief Whip on the other Side referred to me specifically, I would want to draw his attention to something. When we are doing this work in the Chamber, it is not out of malice or anything. We have spent hours perusing these Bills and making recommendations. He should not on his feet be impugning ill motive. It is contrary to our Standing Orders, and I take strong exceptions to that. Thank you Mr Speaker.

Mr First Deputy Speaker: Hon Oppong Nkrumah, I came in to state that we all understand what is referred to in practice in this House as Hon Bagbin's principle. The principle states that the fact that a person has raised an issue at the Committee does not prevent the person from coming to raise the issue on the Floor.

Yes?

Osahen Afenyo-Markin: Mr Speaker, thank you for your guidance thus far. When this Bill was introduced, I was not in the country, but I participated in deliberations. The Second Deputy

Minority Whip showed interest, and our Colleague, the Member from Ofoase Ayirebi, was our anchorman. He was our arrowhead.

Mr First Deputy Speaker: So, you were not in the country, but you participated in spirit?

Osahen Afenyo-Markin: Mr Speaker, allow me to flow.

Mr Speaker, all of these we did as stakeholders in the governance of our country. In all of these, the Majority Side knows the role that the Minority played in this. I am not re-echoing the concerns of my respected Colleague, but it is completely out of place, and we wish for *Hansard* to record this. Mr Speaker can help by intervening; sometimes when things get out of control, you calmly step in and direct that certain submissions be expunged from the record.

Mr Speaker, I may have to say this; yesterday, my respected Colleague, the Minority Chief Whip, was here. I had to drive from the constituency because I did a programme. The Hon Member from Ofoase Ayirebi himself was in his Constituency. When I called him that I have spoken to Hon Annoh-Dompreh, and that the Bank of Ghana (Amendment) Bill, 2025 is to be considered, the MP for Ofoase-Ayirebi drove to the Chamber. I, myself, came from Winneba. Mr Speaker—
[*Interruption*].

Well, you, Kwame Agbodza, did worse things as a Minority Chief Whip. Today, he is enjoying the Ministry of

Roads and Highways. Many of your Colleagues are at the Backbench; they cannot reach you. They call the Minister, and he does not pick up their calls. He now wants to intimidate me. He wants to mark my grammar. Keep marking, I will get you.

Mr Speaker, Hon Oppong Nkrumah had to drive to Parliament and rush into this Chamber, all to make sure—Mr Speaker, all the brains in this House are not equal; talents are not equal. We have shepherded this Bill through by supporting the Chairperson. We have supported Hon Afful. We are saying that all the talents are not equal. The weak must be supported. We have supported him and yet all you come and tell us—
[*Interruption*]

An Hon Member: Who is the weaker one?

Osahen Afenyo-Markin: We do not know, but we are saying that the strong must support the weak, and that is what we have done. We have not mentioned any names. Mr Speaker, Hon Member for Ofoase Ayirebi is an industrious Member of Parliament. We have worked together.

Mr Afful — *rose* —

Mr Richard Acheampong — *rose* —

Mr Agbodza — *rose* —

Osahen Afenyo-Markin: Mr Speaker, when their party won, I told Mr Agbodza to stay in Leadership. He said he is going to the Ministry. Now he wants to come

into Leadership. I do not know why he wanted to go to the Ministry. The contractors are chasing him. He made Dr Ato Forson his best friend. He is not giving them money, and they come and obstruct their Leader.

Mr Speaker, I want to plead with you to kindly get the records expunged. That said Mr Speaker, I think that—

Mr First Deputy Speaker: Hon Minority Leader, I have no hesitation in asking that all that he said should be expunged from the records.

Osahen Afenyo-Markin: Thank you so much. Mr Speaker, we are grateful.

Mr First Deputy Speaker: Hon Members, what is the situation on clause 11?

Osahen Afenyo-Markin: Yes, Mr Speaker, I am dealing with it. The Minister for Finance is in the Chamber. I would want Colleagues on the Majority Side to lend me their ears. The Minister is pursuing this amendment because according to him, there should be borrowing only for emergency. Only emergency and other matters that relate to an act of God, which a Latin man will say, *force majeure*. Let us read the subclause 2 carefully. It is a *proviso*. The subclause 2 is departing from the initial prohibition. It is now saying that there is a waiver being given for the act being prohibited to be done. They are saying that under this new dispensation, they do not want Bank of Ghana to lend to Government. We agree. Under this new dispensation, they are saying that

Government should not borrow. We agree. But the *proviso*, which now allows you to leverage, is saying something else. What is it saying? Please, let us hear the rendition carefully. It says, with your permission I beg to quote:

“(2) Despite subsection 1, and subject to the provisions of this section, the Bank of Ghana may for the sole purpose of filling a seasonal shortfall of budgeted revenue of Government.”

They are saying that if they have a Budget, expecting some revenue, and they have a shortfall, they can go to Bank of Ghana and borrow by participating in Government treasury bills. This does not come under emergency. Some of my Colleagues are not reading this provision carefully. The thing that they must oppose us. Some are saying Mr Speaker should put a Question. They would have to produce a minimum of 138 Members.

Colleagues, this practice must stop. When they want to control the Chair, they insist that Mr Speaker should just proceed to put a Question. I have seen them. They should not do this. When we do this, then Civil Society Organisations (CSOs) and the media will say that MPs are not doing their work, or we just sit here and we do “Hear! Hear!” No!

What we are seeking to cure, we are resurrecting the same thing. We cannot say that we can only borrow for emergency, then now turn round and create a *proviso*. In one breath, we can only borrow for emergency; in another breath, we can borrow to deal with revenue shortfalls.

5:16 p.m.

They are now saying that they can even participate in treasury bill for the purposes of achieving that. Ghana Revenue Authority must be made to do its work. We do not go to Bank of Ghana to say that we are going to take money from Bank of Ghana when we have revenue shortfall. It looks like many people are not reading that provision well. Yes, whichever way we look at it, it is borrowing. To the Hon Minister of State in Charge of Government Communications, the Minister for Finance, on his feet, said that the essence of this Bill is to prohibit Government from borrowing for other purposes except on emergency. Now seasonal shortfall does not come under emergency. Mr Speaker, let us be careful. They should stop calling us names. We are only helping to enrich the law.

Mr First Deputy Speaker: Hon Minority Leader, I believe this is one of the Clauses that has been thoroughly debated. So once again, before putting the Question on entire Clause 11, I would ask that you propose your amendment, let the Question be taken on your amendment, then we can make progress. So, I intend not to take any further debate on the issue.

Osahen Afenyo-Markin: Mr Speaker, fair point. Mr Speaker, I beg to move that this House *delete* subclause 2 [*Pause*]

Mr First Deputy Speaker: Hon Minority Leader, kindly address me and then move the amendment. Hon

Minority Leader, if you do not move your amendment, should I put the Question on entire Clause 11?

Osahen Afenyo-Markin: Mr Speaker—

Mr First Deputy Speaker: Hon Members, order! So that we can listen to the amendment.

Osahen Afenyo-Markin: Mr Speaker, this proposed amendment must be moved. Mr Speaker, I beg to move that in terms of Clause 11, subclause 2, after “purpose”, *delete*, “filling a seasonal shortfall of budgeted revenue of Government”. So, the new rendition shall now be, “Despite subsection (1) and subject to the provisions of this section, the Bank may make” then (a), it goes, (b), it follows. That is the proposed amendment that I have. Mr Speaker, I have given you the new rendition.

Mr First Deputy Speaker: The amendment is moved by the Minority Leader. It is for the consideration of the House. He has done enough justification and it has been debated thoroughly. So, I will put a question on the proposed amendment moved by the Minority Leader to *delete*, after “may”, “for the sole purpose of filing a seasonal shortfall of budget revenue of Government”. Hon Members, let us observe Standing Order 126. So, the new rendition will read: “Despite subsection (1) and subject to the provisions of this section, the Bank may make” then (a) and (b) will follow.

Question put and amendment negatived.

Clause 11 ordered to stand part of the Bill.

Mr First Deputy Speaker: The Long Title. We need to do Clause 17 and 18, up to 20.

Clause 17 to 20 ordered to stand part of the Bill.

Mr First Deputy Speaker: We will come to the Long Title. Before coming to the Long Title, can we revisit clause 1 of the Bill?

Alhaji Habib Iddrisu: Mr Speaker, you have been guiding us on the procedure. I think we should move on. We have indicated that we will come back to a Second Consideration Stage.

Mr First Deputy Speaker: Yes, we can come back to a Second Consideration Stage, but if I am exercising my discretion, at Consideration Stage, why are you challenging my discretion?

Alhaji Habib Iddrisu: Mr Speaker, I am not challenging your discretion. Except that we had indicated that we will come back to a Second Consideration.

Mr First Deputy Speaker: Hon Kojo Oppong Nkrumah, may you please move clause 1 for further consideration. Please revisit your proposed amendment to clause 1. Very well.

The Long Title ordered to stand part of the Bill.

Hon Members, this brings us to the end of the Consideration Stage of Bank of Ghana (Amendment) Bill 2025. *[Hear! Hear!]*

Yes, Majority Chief Whip?

5:26 p.m.

Mr Dafeamekpor: Mr Speaker, as the House may recall, we indicated earlier in the day that the Minister for Foreign Affairs will brief the House regarding our support to our brothers in Jamaica, as well as our contribution towards the stabilisation of the situation in Benin. He is here. Mr Speaker, if we may take him so that we can get back to other Businesses.

Mr First Deputy Speaker: Yes, Minority Chief Whip?

Mr Annoh-Dompreh: Mr Speaker, we on this Side are aligned.

Mr First Deputy Speaker: Very well.

Mr Dafeamekpor: Mr Speaker, a further agreement is that after his briefing, Members will have the opportunity to contribute from each Side.

Mr First Deputy Speaker: Hon Members, this one is a plea. Before inviting the Minister, can we take the item numbered 1, Presentation of Papers, so that as we are taking the Minister for Foreign Affairs, the Paper will be distributed.

Mr Dafeamekpor: Mr Speaker, as in *Order Paper Addendum*?

Mr First Deputy Speaker: Yes.

Mr Dafeamekpor: Great.

Mr First Deputy Speaker: Hon Members, we are still at the commencement of public Business. The item numbered 1 on the *Order Paper Addendum*: Presentation of Papers.

Chairperson of the Committee?

Mr Dafeamekpor: Mr Speaker, the Chairperson has just stepped out, so I pray—Hon Adjei Mensah has been here. Mr Speaker, in any case, it was a joint referral, so any Member of either of the Committees could lay the Paper.

Mr Annoh-Dompreh: Mr Speaker, we will not object. For the Majority Chief Whip to say that the Chairperson has just stepped out—The whole day I have not seen the Chairperson, so he has the liberty to go ahead and even lay it himself. But he should not say the Chairperson has just stepped out. He has not been here the whole day. Where is the Chairperson? Go ahead. I have not seen him the whole day.

Mr Chiwitey — *rose* —

Mr First Deputy Speaker: Hon Chiwitey, may you humbly resume your seat.

Mr Dafeamekpor: Mr Speaker, the Chairperson was the one who presided over the consideration of the referral. So, Mr Speaker —

Mr First Deputy Speaker: Hon Minority Chief Whip, the application is for the Vice-Chairperson to lay.

Mr Annoh-Dompreh: Yes, I am not objecting.

Mr First Deputy Speaker: Hon Vice-Chairperson, may you lay the Paper for the Chairperson.

PAPER

By the Vice-Chairperson of the Committee (Mr Andrew Dari Chiwitey) on behalf of the Chairperson—

Report of the Committee on Roads and Transportation on the Concessionary Contract Agreement between the Government of the Republic of Ghana (represented by the Ministry of Roads and Highways as the Contracting Authority) and Accra-Kumasi Expressway Limited (as the Concessionaire).

Mr First Deputy Speaker: The Report of the Committee has been duly presented, and it is for distribution to Hon Members of the House.

The Minister for Foreign Affairs has taken the designated seat and I believe his report is also on the console. I humbly give the opportunity to the Minister for Foreign Affairs to brief us on the issue raised by the Minority Leader. You have the floor. Hon Members, can we all listen to the Minister for Foreign Affairs in silence?

STATEMENT

Humanitarian Donations Made by the Republic of Ghana Since 7th January, 2025

Minister for Foreign Affairs (Mr Samuel Okudzeto Ablakwa) (MP): Mr Speaker and Hon Members of this august House, I have the honour to appear before you to present a Statement on humanitarian assistance extended by the Republic of Ghana to sister nations since 7th January 2025, pursuant to the foreign policy direction of His Excellency President John Dramani Mahama and in accordance with Ghana's long-standing diplomatic tradition of compassion, solidarity, international responsibility and South-South cooperation.

Mr Speaker, Ghana's foreign policy has since independence been consistently guided by a profound sense of empathy and a commitment to the dignity of the human person. Our engagement with the international community has never been limited solely to the pursuit of strategic or economic interests. Rather, it has been informed by the conviction that Ghana's moral standing and credibility in global affairs are strengthened when we act with humanity in times of crisis. This enduring ethos reflects the foundational ideals of our Republic and continues to shape our conduct in international relations.

Ghana's foreign policy recognises that humanitarian crises, whether arising from natural disasters, armed conflict, or socio-economic collapse, demand

collective responsibility. In responding to such crises, Ghana affirms the principle that the suffering of any people, irrespective of geography or political alignment, calls for solidarity. It is this principle that has underpinned Ghana's humanitarian engagements over the decades and remains central to our actions since 7th January, 2025.

Mr Speaker, Ghana's humanitarian diplomacy is neither recent nor incidental. It is an enduring pillar of our foreign policy tradition that transcends political administrations and historical epochs. From the earliest days of independence, successive Ghanaian leaders have demonstrated a clear and consistent willingness to translate Pan-African ideals and global solidarity into concrete acts of material and moral support for people in distress.

A seminal example of this tradition is found in the actions of the Osagyefo Dr Kwame Nkrumah, Ghana's founder and first president, who, in 1958, when the Republic of Guinea courageously voted for immediate independence from France, at significant political and economic cost, Ghana responded decisively. Dr Kwame Nkrumah extended an emergency financial facility of approximately £10 million, together with strong political backing, to support Guinea during its most vulnerable formative period.

This gesture, which later evolved into the Ghana-Guinea Union, was one of the earliest and most profound expressions of Pan-African solidarity, demonstrating Ghana's readiness to share its limited

resources in defence of African self-determination and dignity.

5:36 p.m.

Mr Speaker, Ghana's humanitarian ethos has also extended well beyond the African continent. Following the devastating Great Hanshin-Awaji (Kobe) Earthquake in Japan in 1995, which claimed thousands of lives and caused extensive destruction, Madam Nana Konadu Agyeman-Rawlings, then First Lady of the Republic, mobilised nationwide support on behalf of the people of Ghana. Through coordinated efforts involving state institutions, civil society, and the private sector, Ghana led by President Jerry John Rawlings donated cocoa and other essential supplies to Japan. This act of solidarity was widely acknowledged as a powerful symbol of friendship between two nations separated by geography but united by shared human values.

In 2010, under the leadership of President John Evans Atta Mills, Ghana again demonstrated its humanitarian resolve in response to the catastrophic earthquake that struck Haiti on 12th January, 2010. Recognising the scale of human suffering and infrastructural collapse, the Government of Ghana pledged and delivered US\$3 million in official financial assistance, presented through a formal Government cheque. This contribution reflected Ghana's commitment to international humanitarian responsibility and reinforced its standing as a country willing to act decisively in moments of global crisis.

Similarly, in 2017, following the tragic mudslide in Freetown, Sierra Leone, which resulted in significant loss of life and displacement, the Government of Ghana under President Nana Addo Dankwa Akufo-Addo extended humanitarian assistance valued at approximately US\$ 1 million. This support included the airlifting of relief items as well as financial assistance, aimed at supporting immediate relief and early recovery efforts. The gesture reaffirmed Ghana's solidarity with a sister West African nation and its responsiveness to humanitarian emergencies within the sub-region.

Mr Speaker, Hon Members will further recall that Ghana's record in international peacekeeping and humanitarian action has long been notable. A salient example often cited is the conduct of Ghanaian contingents during the crisis in Rwanda in 1994. Ghanaian peacekeepers played a significant role in protection, evacuation and humanitarian assistance efforts even when overall international presence contracted. Ghanaian units were involved in operations that secured humanitarian corridors and assisted with evacuations under extremely fraught circumstances. That history remains a touchstone for our contemporary practice: the choice to act in defence of life and dignity even when doing so entails risk to personnel and resources. Ghana is fondly celebrated by Rwandans as the only country that remained to save lives when everybody left.

These historic actions, spanning more than six decades, illustrate that Ghana's

humanitarian diplomacy is institutional, principled, and deeply rooted in national identity. They demonstrate a consistent belief that solidarity is not merely rhetorical but must be expressed through tangible support, even in circumstances where resources are constrained.

Mr Speaker, it is within this proud and unbroken tradition that Ghana's humanitarian assistance and technical support extended since 7th January, 2025 must be understood. Our actions today are not departures from precedent: they are continuations of a legacy of compassion, leadership, and responsibility that has defined Ghana's engagement with the world since independence.

Humanitarian Engagements

Since 7th January, 2025, and in particular through the humanitarian initiative launched by H. E. President John Dramani Mahama on 7th November, 2025., the Government of Ghana has extended material assistance to three countries that have experienced acute humanitarian need: Jamaica, Cuba, and the Republic of Sudan. The President presented relief items to representatives of the three countries at the Presidency; an act that conveyed the solidarity of the Ghanaian people with affected populations and that sought to complement international relief efforts.

The donations to Jamaica and Cuba were as a result of the destruction by Hurricane Melissa. Those of you who have followed the devastation of Hurricane Melissa you will find out that

over 40 people in Jamaica and analysts say that the devastation is valued at US\$ 8.8 billion.

Mr Speaker, in Sudan we have seen that the ongoing conflict in the country which has led to the displacement of a significant number of Sudanese nationals. Once again, as a country that believes in reaching out and extending solidarity to our fellow Africans, we decided to make a donation to the good people of Sudan

The aggregate value of relief items presented by the Government of Ghana is estimated at GH¢10 million. This donation was explicitly apportioned for distribution in the ratio of 50 per cent to Jamaica. 30 per cent to Cuba and 20 per cent to Sudan, reflecting the immediate and pressing needs identified in the respective contexts.

Detailed Catalogue of Donated Supplies and Partner Contributions

Hon Members, the relief consignment comprised a broad mix of food-security items, shelter and household supplies, medical and public-health materials, and hygiene and sanitation equipment. The principal items and quantities included in the donation are set out as below:

Foodstuffs and nutritional supplies: 2,400 bags of Ghana-produced rice, 540 bags of sugar, and 100 cartons of fortified gari mix. These items were selected to address immediate household food needs and to supplement local relief distributions in the early emergency phase.

Health and medical supplies: 377 boxes of assorted medication comprising basic essential drugs and first-line medical supplies to support emergency clinics and mobile health units, and to replenish stocks in facilities overwhelmed by displaced populations. The exact medical items were assembled in consultation with public-health experts and our medical donors to ensure suitability for the recipient contexts.

Shelter and household items included 500 mattresses and 500 pillows to improve living conditions in temporary shelters: 50,000 T-shirts and assorted clothing items for displaced persons and vulnerable households.

We also donated water, sanitation and hygiene (WASH) equipment: 20 units of 500-litre water storage tanks, 20 hand-washing stations, and 10 emergency portable toilets, intended to reduce immediate WASH risks, limit disease transmission, and facilitate basic sanitary services in shelter areas.

Additional consignments and goodwill items: Three 20-foot containers of assorted Ghanaian products including cocoa and chocolate items; as you know they are brands that are very much sort after beyond the shores of this country (intended as goodwill supplies and morale-boosting contributions) together with assorted clothing and sanitary supplies. These items were contributed in part through private-sector partnerships.

Mr Speaker, the delivery and assembly of these items were achieved through

close collaboration between Government agencies and private-sector partners. Corporate and civil-society contributors who supported the initiative included, among others, Ghana Cocoa Board (COCOBOD). Cocoa Processing Company, Pharmanova Ghana. Latex Foam, Farm Masters Global, Terraprine Group Ghana Limited, Mid Atlantic Group, MTN Ghana, Stanbic Bank, Access Bank and several other private entities and philanthropic individuals. Their participation supplemented government resources and enabled a more comprehensive relief package to be presented in a timely manner.

Rationale for Item Selection and Distribution Modality

Mr Speaker, the selection of the items reflected rapid needs assessments conducted by the Ministry of Foreign Affairs in consultation with recipient diplomatic missions, multilateral humanitarian agencies, and sector specialists.

5:46 p.m.

Priority was given to items that: (i) meet immediate survival and health needs (food, water, medicine), (ii) support short-term shelter and basic household comfort (mattresses, pillows, clothing), and (iii) reduce public-health risks (WASH facilities and supplies)

Mr Speaker, the distribution on the ground was entrusted to the recipient Governments and, appropriately, to recognised humanitarian implementing partners able to manage logistics and

ensure that the goods would reach priority groups. The Ministry of Foreign Affairs and the Ghanaian Diplomatic Missions involved requested distribution plans and periodic utilisation reports from recipient authorities to enhance transparency and to ensure that the intended beneficiaries received the assistance.

Mr Speaker, the humanitarian initiative was coordinated at the highest level. The Presidency and the Ministry of Foreign Affairs initiated the gesture and worked closely to assemble, package and dispatch the items. Logistical arrangements for collection, packaging and temporary storage were carried out through a combination of government warehouses and partner facilities, while the Ministry ensured that diplomatic clearances, customs documentation and transport protocols were addressed in advance to minimise delays at ports of exit. The United Nations Agency in Ghana and the International Red Cross Society assisted Ghana in shipping the relief items to their destinations.

Mr Speaker, this morning, H. E. President John Dramani Mahama participated in a historic farewell parade at the Jubilee Lounge at the Kotoka International Airport to deploy a contingent comprising 54 army engineers and five medical doctors drawn from the 48 Engineers Regiment and affiliated units, to Jamaica to assist with the reconstruction and recovery efforts. The Missions mandate also includes the assessment and repair of damaged public infrastructure, emergency restoration of critical access

routes, stabilisation works in landslide-prone locations and supports shelter reconstruction. The medical doctors will provide surge medical capacity in coordination with Jamaican health authorities and humanitarian health partners, including primary care, emergency treatment, and public-health interventions to mitigate disease risks among displaced and affected populations

The contingent will be airlifted by a United States military aircraft C17 under agreed logistics support arrangements. The agreed movement schedule is as follows:

The aircraft is scheduled to depart Kotoka International Airport (KIA) within the next few hours and to land in Kingston, Jamaica, on 18th December, 2025. Upon arrival in Kingston, the contingent will operate under the coordination framework agreed with the Government of Jamaica and with the support of Ghana's diplomatic representatives accredited to Jamaica. Operational reception will be conducted by Jamaican authorities and will include clearance processes, customs facilitation for equipment, and assignment of areas of operation in consultation with local municipal and emergency management authorities.

The Ministry of Foreign Affairs, together with the Ministry of Defence, will maintain situational awareness and provide diplomatic and logistical support to the contingent throughout its mission. Regular operational reports and after-action assessments will be furnished to

the Office of the President and to Parliament as appropriate.

Mr Speaker, at this juncture, I would like to express our profound gratitude to President Donald Trump, the Government and the people of the United States of America for providing the C-17 aircraft to transport our gallant troops, medical staff, and logistics, which include tents, refrigerators, generators, and among others, to Kingston, Jamaica.

This is yet another demonstration of the great relations between Ghana and the United States of America. Ghana and the United States of America's partnership is definitely good for humanity. I wish to offer special gratitude to our gallant soldiers. The annals of Ghana's history will reflect their sacrifice and their service to Ghana, Jamaica and to humanity; they indeed make us proud and all patriotic Ghanaians feel proud and indeed, this is Dr Kwame Nkrumah's Ghana and we are making the black race proud.

Hon Members and this august House, these enhanced and consequential humanitarian gestures were deliberate expressions of Ghana's diplomatic identity and values. In a global environment marked by increasing humanitarian needs and diminishing international attention. Ghana's actions carry significant moral and diplomatic weight. They signal Ghana's refusal to be indifferent to suffering and its determination to remain a responsible and compassionate actor on the international stage. Such actions also serve to strengthen bilateral relations,

reinforce mutual trust, and enhance Ghana's standing within multilateral fora. By aligning humanitarian assistance with our diplomatic engagement, Ghana demonstrates that its foreign policy is both principled and pragmatic, rooted in values of empathy, solidarity, brotherhood and compassion while being attentive to global realities.

Mr Speaker, as humanitarian crises continue to challenge the international community, Ghana remains resolute in its commitment to act where it can to make a meaningful difference. The Ministry of Foreign Affairs will continue to work towards strengthening Ghana's capacity for timely humanitarian response, deepening partnerships with international and regional actors, and ensuring that solidarity remains a defining feature of our foreign policy.

Mr Speaker, Hon Members, in conclusion, Ghana's humanitarian assistance since 7th January, 2025, reflects who we are as a nation: principled, humane, caring and responsible. In extending support to Palestine, Cuba, Jamaica, and Sudan, Ghana has reaffirmed its belief that solidarity is not optional and that empathy is an essential instrument of diplomacy.

Mr Speaker, Ghana's foreign policy will be defined by not how much we can take from others but by how much we can share with others.

I express my gratitude for the continued support of Parliament in advancing a foreign policy that upholds

Ghana's values and responsibilities in the comity of nations. Mr Speaker, thank you.

Mr First Deputy Speaker: Hon Members, that is the Statement from the Hon Minister for Foreign Affairs.

Leadership should guide me as to the number of comments we should take.

Mr Annoh-Dompreh: Mr Speaker, there is an agreement. So, three from each Side, with Leadership in addition, making it four on each Side.

Mr First Deputy Speaker: Very well. I will now welcome comments, and the comments must be brief and must not breach the Rules.

Yes, Mr Samuel Abu Jinapor, you have the floor.

5:56 p.m.

Mr Samuel Abdulai Jinapor (NPP – Damongo): Thank you Mr Speaker, and let me thank the Hon Minister for Foreign Affairs for making this Statement and updating the House on happenings relating to foreign policy.

Mr Speaker, there are two fundamental points which come out of the Statement the Minister made. The first one is the absolute necessity that the exercise of Executive power must be done within the framework of the Legislature. And it is important that when government acts, particularly, as it relates to foreign policy, the Executive

must carry Parliament along where necessary, seek parliamentary approval, must apprise and update Parliament. Therefore, I think it is important for me to underscore the point that it took the intervention of the Hon Minority Leader for the Minister to come and brief this House.

Mr Speaker, as Ranking Member for the Committee on Foreign Affairs and Regional Integration, I think the *Hansard* should capture it and I would put it on record that the Hon Minister for Foreign Affairs can do better in terms of parliamentary engagements, including in particular the Committee on Foreign Affairs and Regional Integration. The Minister is a senior Member of this House and he should know that when it comes to the conduct of our foreign policy, he commends President Trump and the United States. But President Trump cannot take any major, fundamental, definitive foreign policy action without briefing Congress and briefing the Committee of Congress on Foreign Relations. The Prime Minister of Britain cannot do that.

So yes, the Government of Ghana has been at the forefront of humanitarian gestures across the world. But I think the important point the Minister should take from this House is that he should make it a point to carry Parliament along in the conduct of his business, first at the Committee level and second at the Plenary. It should not take the intervention of the Minority Leader for the Minister to come and brief this House on such fundamental and important decisions of the Executive and the

Government when it relates to foreign policy. He says H. E. President Mahama conducted a ceremony this morning at the seat of the Presidency of our country and saw troops off, Ghanaian troops, men and women of the Ghana Armed Forces, the first body within the polity of Ghana, within the state of Ghana, that should be briefed before any other person is briefed, should be the Parliament of Ghana, the Legislature of Ghana, the representatives of the people. This House should have been briefed first before even the ceremony was held. The ceremony was held, the troops were sent and it took the Minority Leader to prompt the Minister to come to the House. That is not good enough. I think the Minister can do better.

Secondly and finally, Mr Speaker, every foreign policy thrives on credibility. One can get credibility out of their foreign policy when they are principled. If it is good in Benin, it is good in Burkina Faso. If it is bad in Niger, it is bad in Mali. Principled diplomacy is absolutely important. I have here in my hands a publication which indicates—the Minister talks about sending troops to Jamaica—A publication which indicates that the Government has taken a decision to send troops within the framework of ECOWAS to support the efforts by ECOWAS to restore—

Mr First Deputy Speaker: Hon Member, you have done exactly five minutes, so conclude.

Mr S. A. Jinapor: Mr Speaker, just a minute to conclude. As the Ranking

Member of the Committee of Foreign Affairs and Regional Integration, this is very much in my turf. With the greatest respect, if I could just conclude on this. Thank you for your indulgence. Mr Speaker, and these are very weighty matters, and of national importance.

Mr Speaker, the Government has taken a decision to send troops within the framework of ECOWAS to help or assist in the restoration and consolidation of democracy in the Republic of Benin. I support that move. There is absolutely no two ways about it that the Government of Ghana should work with ECOWAS to ensure that democracy prevails within the region.

But Mr Speaker, if a coup is bad in Benin, a coup must be bad in Burkina Faso, it must be bad in Mali, it must be bad in Niger. It must be bad in Guinea Bissau. I am happy that the Hon Minister for Foreign Affairs, the former Ranking Member for the Committee on Foreign Affairs and Regional Integration, four-term Member of Parliament, has found it necessary to move from the foreign policy of *di wo fie asem* to the foreign policy of interventionism.

But it is important that if we decide to intervene within the framework of ECOWAS, a coup in Benin is bad, we should restore democracy in Benin. So is it bad in Burkina Faso; so is it bad in Mali; so is it bad in Niger; so is it bad in Guinea Bissau. We cannot flip-flop when it comes to foreign policy. We cannot have double standards when it comes to foreign policy. We cannot pick and choose. The principle must stand. A

coup anywhere in West Africa is bad, and the Government of Ghana should insist on that and ensure that our foreign policy is credible and principled.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Yes, Hon Abdul-Rashid Pelpuo?

Dr Abdul-Rashid Hassan Pelpuo (NDC — Wa Central): Thank you, Mr Speaker, for the opportunity to comment on this very important Statement made by the Minister for Foreign Affairs.

Mr Speaker, of late, the Minister for Foreign Affairs has taken some key decisions about the foreign policy of Ghana that has given Ghana a very important recognition throughout Africa and has made Ghanaians very proud of him. Of late, Ghana's support for the suffering people of Palestine during the period of their genocide is a key area we are proud of when he took key decisions along with the Government of Ghana to support them and did so with a lot of commitment.

Mr Speaker, again, the decision of Ghana to support Jamaica, and Cuba and to provide scholarships for the rest of Africa needing support to come and study in higher courses in Ghana, are all key areas we will commend the Minister for. In fact, he has distinguished himself and has shown the real character of Ghana in our commitment to liberation and in our commitment to extend humanitarian support to other countries.

Mr Speaker, the foreign policy of Ghana is properly defined. During the Nkrumah regime, when we took up the real challenge of liberating Ghana and helping to liberate the rest of Africa, we recall very clearly what he did for other countries, that he opened up our universities for Mugabe and other people from African National Congress (ANC) and other countries to come to Ghana, study how to fight and liberate their countries, and they did so freely, studied freely and went back to help their liberation struggles. In the case of the Democratic Republic of Congo, Congo then, we recall what Ghana did for them. When Congo was deserted by the United Nations, President Lumumba called on the President of Ghana to support him. Ghana sent troops there, we sent helicopters there; he asked for more, and we gave him everything he asked for. The Ghanaian military was there in Congo to support them. It distinguished Ghana as one country that will fight to the hilt to support another African country.

Not very long ago, Mr Speaker, we deployed troops to Liberia. We sent them police, we sent them army personnel, and we sent them military observers. We did so for Sierra Leone, we did so for Liberia, we did so for La Côte d'Ivoire, we did so for Mali. If you see a combination of all these things happening, it tells you that this is not just a country seeking to mind its own affairs. It is a country that willing to go the extra mile to support another African country. That character of Ghana, Mr Speaker, cannot be forgotten, and I am very happy

that throughout this regime of the Minister for Foreign Affairs—

6:06 p.m.

Mr First Deputy Speaker: Hon Member, conclude.

Dr Pelpuo: We have seen Ghana come back to its real definition of fighting to give Ghana a place in the affairs of the world.

Mr Speaker, thank you for the opportunity, but let me just say that our commitment must stay beyond this regime. It defines Ghana's foreign policy. It should not be in this regime, then in the next, there is a complete changeover. I am happy that what is written down now and what they are doing will stay and be historical and we would have a value of who we are.

Mr First Deputy Speaker: Yes, Hon Ntim Fordjour, you have the floor.

Rev John Ntim Fordjour (NPP — Assin South): Thank you, Mr Speaker, for giving me the opportunity to comment and at the outset, to commend the Minority Leader, Osahen Afenyo-Markin highly and the Minority Caucus for insisting that the Minister come to brief the House and to thank you, Mr Speaker, for your magnanimity in accepting that request.

Mr Speaker, the scripture says love your neighbour as yourself, but the scripture did not say love your neighbour more than yourself. The decision to deploy troops to Benin was made

without recourse to this House. The decision to deploy troops to Jamaica was taken without recourse to this House. We even had to force the Minister to come and brief us. That is not good enough, Mr Speaker. At a time when very serious conflicts have devastated Gbenyiri, Bole Bamboi, Sawla-Tuna-Kalba, which death toll far exceed what has happened in Jamaica, with the greatest of sensitivity to what has happened in Jamaica. Over 48,000 Ghanaian citizens have been displaced, with 23,000 of them becoming refugees.

For the first time in history, we have had a conflict that has displaced Ghanaians, 13,000 becoming refugees in the Ivory Coast and 10,000 becoming refugees in Burkina Faso, we did not hear about the Government's intervention to bring back our compatriots and to reintegrate the 48,000 who were displaced. We did not hear about the Government's intervention to reconstruct Gbenyiri for the many houses that were burnt down, for the many households that lost their place of dwelling. All we heard was the President sending an equivalent of US\$9,800 to refugees in Ivory Coast during the Minister's visit. And here, we are quick to mobilise aid to Jamaica.

And when we ask, they say they took it from COCOBOD. So could they not have mobilised aid from all these organisations for the people who were displaced at Gbenyiri? We are so concerned about Jamaica. We are so concerned about people far away when they have failed the people of Gbenyiri. As we speak, the Government has not

even been able to account for the exact number of refugees who have returned. Mr Speaker, how many 48 Engineers were deployed to Gbenyiri to assist in reconstruction efforts? None. What is the distance from Accra to Gbenyiri? And yet no military engineers were deployed. But we are quick to put them in either C17 or C19 and fly them.

Mr Speaker, that is not good enough. Outside gentility, home cry. President Mahama and his Minister for Foreign Affairs, Mr Samuel Okudzeto Ablakwa, are demonstrating what we call “outside gentility, home cry”.

When 48,000 of our own brothers and sisters in the President’s own backyard, Gbenyiri, have lost their homes, because of *nhwehweanimu* Mr Speaker, to wit, face looking—[Laughter]— they deployed 53 soldiers. The Minister failed to indicate how long the soldiers will stay in Jamaica and the cost to the taxpayer.

Mr First Deputy Speaker: Hon Member, conclude.

Rev Fordjour: In conclusion, Mr Speaker, we must be sensitive about our own home affairs. We must be sensitive to the plight of our brothers and sisters. We must not be quick to impress people when in our own backyard, people are crying, people are lost, and people have died. We failed to show benevolence. We failed to show support. And even up to now, they are crying for support. When we go to Bawku, many communities are cut off from common social amenities. We are not minded to support, and yet—

Mr First Deputy Speaker: Hon Member, your time is up.

Let me be gender sensitive. Hon Abba Dzifa Gomashie.

Ms Abba Dzifa Gomashie (NDC — Ketu South): Thank you very much, Mr Speaker.

Mr Speaker, I want to commend highly the Statement made by the Hon Minister for Foreign Affairs, Mr Samuel Okudzeto Ablakwa, who is also the MP for North Tongu, for coming to the aid of countries that are faced with *force majeure*, one that I personally applaud.

Mr Speaker, my reason is simple. You will recall the number of times I have called you, when, as a first-timer, I faced challenges with the devastation of the tidal waves, and the number of times you had to come to my aid to help me provide for my constituents. I am not surprised that this humanitarian policy is thriving under H. E President John Dramani Mahama, because he showed the same commitment when my people faced devastation from the tidal waves.

Colleagues will recall the truckloads of support that came to us, and also when the Volta River Authority (VRA) spilt its water, and our compatriots were struggling. I am not surprised at all that His Excellency has decided to go and support the people of Jamaica. Ghana is known as a Pan-African hub. We have three giants buried in this country: Kwame Nkrumah, George Padmore, and Du Bois. And we cannot turn away when Africans are suffering around the world.

It does not matter whether they are on the continent or in the diaspora. What is important is that they are Afro-descendants, and it is our responsibility to look out for our people. And it is for that reason that I am truly excited that the Minister for Foreign Affairs finds it expedient to go to the aid of our comrade Africans who are struggling.

We say in Ewe that *mina minya wɔtaklawo de gbe ne miakpo koklokukuawo gbo*, to wit, let us take care of the issues that concern our people, and after that, we can start focusing on the periphery. The real issue is that Africans were in distress, and the champion of Pan-Africanism, in the person of H.E President John Dramani Mahama and his Minister for Foreign Affairs, found it prudent to go and rescue our people in their time of need. We cannot always say that we are Christians in the majority in this country and when human beings, especially Africans are suffering, we will use bureaucracy or red tapism before we respond to them. I have suffered that as an MP for Ketu South, where the tidal waves devastated my community for four years.

At one particular time, the tidal waves hit us three times in a year, and it took forever for us to respond to the needs of the people of Ketu South. I commend the Statement made by Hon Samuel Okudzeto Ablakwa and urge him to continue to go to the rescue of Africans. We cannot in one breath be taking credit for being the leader and the first to get independence and helping other African countries to have their independence, and when they are in trouble, we have a

pussy-footing attitude and a lackadaisical one but honestly to jump at it and go to their aid. So, Hon Samuel Okudzeto Ablakwa, thank you very much for this Statement and God bless our homeland Ghana. Thank you, Mr Speaker.

6:16 p.m.

Mr First Deputy Speaker: Yes, the last opportunity on my left Side.

Nana Asafo-Adjei Ayeh (NPP — Bosome Freho): Mr Speaker, I want to thank you for the opportunity and also to thank the Hon Minority Leader for critically flagging this very important issue up for discussion. For us having the Hon Minister here is by virtue of his advocacy and the need for national issues sensitive like this to be discussed in this House. Mr Speaker, let it be on record that this Side of the House is not against Ghana demonstrating to the world that, in fact, we are the star of Africa, or we are the beacon of hope. We understand that some of these gestures give us a sense of national pride, diplomatic relations and it builds international cooperation. We understand. What we abhor is the principle.

Not too long ago, I happened to be the International Relations Director for the National Disaster Management Organisation (NADMO). There was a landslide in Sierra Leone that Government through NADMO had to go and support them. Mr Speaker, we had Members of the other Side telling us that we have not done everything we have to do for our people back here, so why are

we so interested and very concerned about people who are not Ghanaians or foreigners? Most of these people that led some of this crusade are now in the helm of affairs of this Government. The point and the issue here is the principle. The point and the issue here is the inconsistency.

Yesterday, they admonished the Government to pay critical attention to people and Ghanaians who have issues here. Today, they deem it fit to go and support outsiders when there are critical issues here. Mr Speaker, not too long ago, the 2025 Budget listed or stated that GH¢245.5 million was earmarked for the Akosombo Dam victims. That fund never went to Akosombo Dam victim. But today, we have been able to mobilise all these amount of moneys, billions of Ghana cedis to go and support people outside this country.

This is clear *nhwehweanim* democracy; outside gentility, home cry, and that is the issue. Mr Speaker, the Minister's own Constituency are part of this Akosombo Dam spillage, yet the amount earmarked for them did not go.

Mr Speaker, let it be on record that this Side of the House is not against anything that will give us a certain diplomatic leverage, no. But we are against the hypocrisy, we are against the double standard, we are against the lack of principle behind some of these things. The rest of the matters have been handled by my senior Colleagues. I want to thank you and thank my Minority Leader for making this critical issue come to the fore for us to discuss and make critical

point of it. Thank you, Mr Speaker. I am grateful.

Deputy Minister for Roads and Highways (Alhaji Suhuyini Sayibu Alhassan): Mr Speaker, thank you very much, for the opportunity to comment on the Statement by the Hon Minister for Foreign Affairs on the humanitarian donations made by the Republic of Ghana since 7th January 2025. I wish to first of all commend the Minister for his swift response to a humble request by this House. First of all, it has to be pointed out that there is no law that my attention has been drawn to that requires the Government of Ghana to come and brief Parliament before it takes action on any humanitarian support that needs to be provided.

My attention is yet to be drawn to any law in this House or passed by this House that requires or insists that Parliament must be briefed, as is being suggested, before a humanitarian support is extended. It is out of courtesy that over the period, it is expected that Parliament will be carried along and informed of some of these very important interventions when done by Government. That is why it is important that we commend the Minister for Foreign Affairs and the Majority Leadership for being so responsive to the request to extend the courtesy of briefing this House on the intervention that took place in this House.

Mr Speaker, I have been in this House for a while and in the past, when requests such as the one that was made to do today were made, sometimes it took us months

unend. Sometimes we never even got the Ministers coming to respond to us. We lived with it, we survived and that is why it is important that we must commend the Minister of Foreign Affairs. In less than 24 hours, he has come to this House to respond to the request out of courtesy, not because he is obliged by any law to do so. Let us put that on record.

I also wish to state that I find it quite strange that we lived in this country where police brutalities and servicemen brutalities sometimes led to the death of our citizens yet people who took part in laying wreath at Du Bois Centre when George Floyd was killed in the United States, today are sitting on the other Side complaining that we are supporting countries that are distressed yet we have situations in this country that we have not even neglected.

This Government has not neglected any internal displacement of any of our citizens. But these people never held wreath for the ordinary Ghanaians who lost their lives as a result of the excesses of our service people, but they had cause to organise funerals for George Floyd and others. Yet today they are talking.

Mr Speaker, when we had the Akosombo Dam spillage, it took this Side of the House, then in Minority, to mount pressure and lead donations to the affected victims. Indeed, the President at the time, from their stock, when he finally visited, requested the people to be grateful for his visit. After all, he did not think he owed them any care of duty because they did not vote for him. I think

that when we are having these conversations, it is important that we take our political lenses off and approach it as nationals and as patriots. Clearly, I get the point that my Colleagues are seeking to make. I do. What we suffer from, in my view, is what I call the poor social welfare network in our community, in our system.

As for our humanitarian support to other nationals when they are distressed, it is legendary. Indeed, our Ministry of Foreign Affairs sits on a land that used to host international students who had difficulties in their countries. So, it is legendary. But, yes, if there is need for us to improve similar humanitarian care when we have internally displaced issues, let us discuss it dispassionately. But let us not seek to score political points with it.

Mr Speaker, clearly, yes, people were displaced in Gbinyiri, but the Government responded swiftly, provided support and ensured that security was deployed to contain the situation. Again, in the case of the Volta Dam spillage, Government made provision for budgetary support to the victims of that spillage.

Mr Speaker, we can have a conversation about how to improve our social safety networks in this country when we are faced with internally displaced challenges. But let us not do so with political lenses, because when we do that, we know those who will not be looking very good.

6:26 p.m.

Mr First Deputy Speaker: Yes, Minority Leadership?

Minority Leader (Osahen Alexander Kwamena Afenyo-Markin): Mr Speaker, Members of the Minority Caucus read in the news about some troops being sent abroad for some operational support to those who have suffered in this hurricane Melissa disaster in Jamaica. We also heard of some relief items being shipped. We waited upon Government to brief this Parliaments, but that briefing never occurred. We therefore exercised our rights within the rules of this House which the Majority Leader as Leader of Government Business responded to, leading to the Minister for Foreign Affairs finally taking the time to brief this House.

Mr Speaker, let me on behalf of the Minority Caucus extend profound solidarity to the good people of Jamaica. We say to them that we are with them in this difficult time. Our hearts are united in compassion for those suffering in the wake of hurricane Melissa, a disaster that has shattered lives, homes and hopes. Of course, without doubt, we have seen a Ghanaian tradition of humanitarian gesture being extended to them.

But Mr Speaker, compassion must walk hand in hand with constitutional responsibility and that is where we stand as Minority. Our duty as a Minority is not only to care but to ensure that every exercise of state power, no matter how well intentioned, is anchored in

transparency and accountability. Mr Speaker, while the Government has not formally laid its legal justification before Parliament, it is widely understood that such deployments are typically defended under Article 57(1), which vests command of the Armed Forces in the President, and Article 210(2), which permits the military to perform such other functions as the President may determine. We do not seek to contest the constitutional authority of the President as provided for in the Constitution.

But Mr Speaker, what we fundamentally reject is the notion that these powers exist in constitutional vacuum. The obligation to report to Parliament is not a mere democratic governance courtesy, it is constitutional. We submit that the need to extend courtesy and support other countries in difficulties does not absolve the Executive of the duty to inform the people's representatives before or immediately after such a significant decision is taken. Government cannot therefore take credit for coming to Parliament. It was upon a request.

Mr Speaker, the 1992 Constitution does not establish a one-man rule. It establishes a democratic republic built on separated powers and checks and balances. Article 93(2) vests legislative power in Parliament. The deployment of Ghanaian troops overseas is not a minor administrative act by the President; it is a weighty Executive policy with profound implications. For Parliament to legislate and oversee wisely, it must be informed.

Article 174 to 179 grant Parliament the exclusive power of the purse. Every deployment consumes public funds for transport, logistics, allowances and other materials. To deploy first and account later is to treat Parliament's financial authority as an afterthought. This we reject. It is to spend first and seek approval later, a practice that turns our constitutional role on its head.

Mr Speaker, Articles 103 and 95 empower Parliamentary Committees to scrutinise and demand accountability from the Executive. This oversight function is not a courtesy; it is a constitutional duty. It cannot be exercised in the dark.

Something must be clear. If this deployment is, on the other hand, grounded in any formal agreement, treaty or memorandum of understanding, as stated by the Hon Minister for Foreign Affairs who said, “the Logistics Movement Agreement has been signed by the United States of America”. Where is the Logistics Movement Agreement as provided for by the Constitution? Article 75 is very clear. It has to first be laid before Parliament. The Executive cannot evade this solemn requirement by labelling a binding commitment as a mere humanitarian gesture.

Mr Speaker, whatever agreement the United States of America had with the Government of Ghana is supposed to be before Parliament. It is the Minister's words, “Logistics Movement Agreement”. It has to come. This is not about politics, but about the precedent that they are setting. If today, troops can

be deployed for humanitarian missions without Parliament being informed, what prevents a future deployment under the same broad constitutional powers for other purposes, also without Parliamentary knowledge? We have heard that the Government has committed troops to ensure stability in Benin without Parliament being briefed. Where do we stand when it comes to our core mandate as a people's representative?

Today, we have the Minister for Foreign Affairs briefing us on the steps we have taken to provide support to the people of Jamaica in this crisis. But equally important is the mandate of the Minister for Defence. For the time being, the Minister for Finance is acting as the Minister for Defence. It is important that he also appears before us to give us detailed briefing, particularly on those who have been dispatched to Jamaica and those who are going to Benin.

Mr Speaker, how can this House fulfil its role as guardians of public trust if it is kept in the dark? Our concern is not with the mission to Jamaica; it is with the manner of governance. A decision of this magnitude, taken without the basic courtesy of information to Parliament, which, very importantly, is anchored in the Constitution, weakens our democracy. It suggests that the Executive alone defines national interests, and that Parliament's role is merely acquiescence. We are not here for the purpose of acquiescence. We have a Committee of Parliament, made up of the Majority and the Minority. They deserve to be briefed and they deserve to feed

their people with information for us to understand what is happening. Mr Speaker, not even Leadership of Parliament were informed. In the past, in said critical matters, the Leadership were engaged, and that is a fact.

Mr Speaker, in the name of constitutionalism and in the spirit of democratic solidarity, the Minority hereby calls on the Government to do the following. Firstly, immediately lay before this House a full Statement detailing the scope, mandate, duration and the rules of engagement governing our troops in Jamaica. Secondly, we demand the Government to lay before this House the rules of engagement governing the troops that are being deployed in the Republic of Benin.

Mr First Deputy Speaker: Hon Minority Leader, you have done 10 minutes. Conclude.

6:36 p.m.

Osahen Afenyo-Markin: I am concluding. Mr Speaker, we also demand that Government provides a complete financial breakdown of all costs, present and future, associated with this deployment and seek the necessary parliamentary approval for any expenditure as required by Article 179 of the 1992 Constitution.

Mr Speaker, then again, the Government must provide this House with the details of all the released items that have been shipped to Jamaica. The sources of these released items; were they donated by individuals, are they

coming from government coffers, what is the total cost, and were they provided for in the Budget?

Mr Speaker, we also demand that the Government commit to regular briefings for the relevant Parliamentary Select Committee, ensuring ongoing oversight in line with Parliament's constitutional mandate, including updates on the welfare of our troops in Jamaica and every necessary welfare support to their families.

Mr Speaker, let no one make any mistake, we are proud Ghanaians willing to help our sister nations in distress, but where there are people displaced in our own country —

Mr First Deputy Speaker: Hon Minority Leader, with respect to our own rules, please conclude. Order 91 (4) is very clear; you have five minutes to conclude. You have done more than ten minutes, so conclude.

Osahen Afenyo-Markin: Mr Speaker, I am doing so. I brought the Statement up.

Mr First Deputy Speaker: So, conclude.

Osahen Afenyo-Markin: Very well. Mr Speaker, we have Ghanaians who are in exile in La Côte d'Ivoire. They must be catered for. We know of the situation in Dollar Power. We have to cater for the people there and ensure law and order there. Mr Speaker, we stand with the people of Jamaica, and we stand by the rule of law as well. To do otherwise, to act without transparency, is to build

foreign goodwill on the weakening of domestic trust. Let us repair Jamaica without eroding Ghana's democracy. Let the Executive lead, but Parliament must know.

I thank you, Mr Speaker, for the opportunity.

Mr First Deputy Speaker: Instead of five minutes, you spoke for 14 minutes.

Yes, Majority Leader?

Majority Leader (Mr Mahama Ayariga): Thank you, Mr Speaker.

This morning, my Colleague, the Minority Leader, drew my attention to a team that the Government of Ghana dispatched to Jamaica to help with the disaster that occurred as a result of the hurricane. Mr Speaker, upon his prompting, I did not hesitate. I immediately called the Minister for Foreign Affairs, and he also did not hesitate. He immediately responded and indicated his willingness to expeditiously come and brief this House.

Mr Speaker, I did not accede to the request of the Minority Leader simply because the Minority was making a request. Mr Speaker, I acceded to the request because I saw another opportunity to sell to the people of Ghana the good job that President John Dramani Mahama is doing. [*Hear! Hear!*] To imagine that there will be a disaster in the Caribbean, people who trace their ancestry to Ghana and other West African countries will reach out to their brothers and sisters on this part of the continent, and we do not respond? Mr

Speaker, that would be the most disgraceful moment in our history. And so, I was very proud that Ghana, led by President John Dramani Mahama, was able to expeditiously respond to the demand of our brothers and sisters in Jamaica.

Mr Speaker, he raised a number of constitutional issues. There is absolutely nothing unconstitutional about what has happened. Nothing is absolutely unconstitutional. Indeed, it is required of every nation in the comity of nations that when a fellow nation is in need after a disaster and cannot take care of its citizens, there is a moral obligation on every single one of us to go to their aid. That is exactly what Ghana has done. So, there is nothing untoward that has happened.

Mr Speaker, on the issue of finances, indeed, no financial regulation has been violated in this country. The items that were sent were items that had been donated to the Government of Ghana, and I believe a few — maybe the military also had in their custody. How many men did we send? A little below 60 men. Mr Speaker, is he saying that the Republic of Ghana is incapable of sparing just 54 soldiers to be specific, to support our brothers in the Caribbean when they are faced with a disaster? Just 54 men; engineers, *et cetera*.

Mr Speaker, we are not sending them to combat; we are not. They are engineers that we are sending to assist with the reconstruction of that country after the disaster. Bridges that should be built, homes that should be constructed,

and drainage that should be cleared so that they could assist the people with their engineering and technical knowledge. So, we are not sending them in harm's way. Of course, there will be natural risks but that is exactly what we train soldiers for.

So, Mr Speaker, let me thank my Colleagues for bringing it up. It is good that we bring up these matters. Sometimes the nation does not know. When we bring it to Parliament, and we discuss it, the nation gets to know. And the good works of President John Dramani Mahama even becomes well-known by ordinary citizens.

Mr Speaker, I was in Barbados a couple of months ago to attend the Commonwealth Parliamentary Association meeting. I was there with Hon Jerry Shaib and I think the Hon Chief Whip was also with us. I was there with three other Colleagues. Mr Speaker, in Barbados, as I walked on the streets of Barbados, the people that I saw were not different from the people that I see when I walk the streets of Nsawam.

Mr Speaker, they are not different from the people that you see when you walk in Kejetia, and they are not different from those that I have seen when I attended Economic Community of West African States (ECOWAS) Parliamentary Sitzings in Effutu —
[Laughter]

Mr Speaker, every single person that we met told us that they believe that they come from Ghana. They said it. They told us that they believe that they come

from Ghana, and I believe it is the same with many of the Caribbean nations. So, they are our direct brothers and sisters. And so, if we can spare our soldiers to go and assist them, let us do so. If we can raise funds to go and assist them, let us do so. Let us not clock our opposition to assisting our brothers and sisters in the gap of threatening constitutional violations.

Mr Speaker, as for the question of Benin, there has been a request by ECOWAS. There has been no deployment yet. Indeed, under ECOWAS treaties, we have an obligation to deploy whenever ECOWAS makes a request. So, I am sure that in due course, the President of Ghana will take a decision if we are going to Benin. And when that happens, we will be doing so under our obligations in the ECOWAS treaty.

Mr Speaker, lastly on La Cote d'Ivoire and the allegation that we have citizens there, we have no citizen who is in exile in La Cote d'Ivoire as a result of any disaster or threat to their lives. They are all back to Ghana. We take care of our own. I say we take care of our own.

Mr Speaker, thank you very much.
[Hear! Hear!]

6:46 p.m.

Mr First Deputy Speaker: I will then give the Hon Minister the opportunity to respond to some issues that have been raised.

Mr Ablakwa: Mr Speaker, I wish to thank you and Hon Members of this House for the opportunity to respond to the request as has been duly acknowledged. I received this request today and within an hour of the request, my Statement was put together and I hurried to this House to make this Statement because of the profound respect that I have for the institution of Parliament, more so when I am a Member of this revered House.

The Hon Ranking Member of the Committee on Foreign Affairs and Regional Integration said I should carry Parliament along. I want to assure him that in all my dealings, as he knows, I have carried Parliament along and I will continue to carry Parliament along. Indeed, during our deliberations to approve the 2026 Budget Statement and Economic Policy, I did brief the Committee on Foreign Affairs and Regional Integration on all of these donations and humanitarian gestures that we have carried out under the leadership of H. E. President John Dramani Mahama.

Mr Speaker, the Hon Minority Leader said that if there is any agreement with the United States of America about defence cooperation, I should bring it to this House. I want to remind the Hon Minority Leader and this House that the Parliament of Ghana has already ratified a Ghana-US Defence Cooperation Agreement and we are operating within the paradigm of that Agreement. So, this House has already ratified the Defence Cooperation Agreement with the United

States of America and it is on that basis we are proceeding.

Mr Speaker, it is important to emphasise that as Minister for Foreign Affairs, I have placed the interests of Ghanaians first and at all times the interests of all Ghanaians remain paramount. The whole world is celebrating Ghana and I believe all of us must be proud of what we have achieved. A few days ago, when our citizens were ill-treated and were deported from Israel, we retaliated and we sent a clear message that the Ministry of Foreign Affairs and the Government of H.E John Dramani Mahama will not accept maltreatment, will not accept inhumane treatment, will not accept discrimination from any corner of this world. All citizens in Ghana are proud of their leaders, are proud of the Ministry of Foreign Affairs and I believe that all of us as Members of Parliament must be proud.

Mr Speaker, as Minister for Foreign Affairs, we are negotiating great deals for our country, either in visa waiver agreements, in labour mobility agreements, in trade deals. So, for Colleagues to suggest that I am engaging in *nhwewhenim* diplomacy and I have abandoned Ghanaians and I am taking care of Jamaicans, Cubans, and Sudanese, it is not right. Everybody knows that we have championed the cause of Ghanaians, we have prioritised the needs of Ghanaians. So, we should all be proud as Pan-Africanists. We are taking good care of Ghanaians and we are taking good care of our fellow compatriots within the international community and we must feel very proud.

Mr Speaker, I conclude with the last words of my Statement that our foreign policy will not be defined by how much we can take from others, it will be defined by how much we can share with others. We should all feel proud that as a country we are taking care of our own and we are also able to reach out to support our fellow brothers and sisters outside who need humanitarian assistance. This is a great time to be a Ghanaian and this is what the founder of our country, Osagyefo Dr Kwame Nkrumah, admonished us to always pursue and all of us collectively, should be proud of what we are achieving as Ghanaians.

I thank you very much, Mr Speaker.
[Hear! Hear!]

Mr First Deputy Speaker: Hon Members, with all due respect, Order 91(5) indicates that:

“The Speaker may, where appropriate, give directives to the relevant body or Committee to give effect to matters arising out of the Statement or comment.”

Hon Members, I have listened to all comments made and once the maker of the Statement is here under this Order, I have given him the opportunity to respond to matters arising from the comment. So, I did nothing wrong calling on the Minister for Foreign Affairs to respond to matters arising from the comments to the Statement.

Hon Minister, I thank you very much for attending upon the House proactively

and urgently giving response to this matter by way of briefing the entire House. You are hereby discharged.

Yes, Hon Majority Leader, can we turn to the Motion numbered 2 on the *Order Paper Addendum* after the distribution of the Report?

Osahen Afenyo-Markin: Mr Speaker, I know your relationship with Hon Kwame Agbodza is very cordial. I know your relationship with me is very cordial. You have cordial relationship with all of us.

Mr Speaker, since he came this afternoon, all he has been doing is obstructing the thought patterns of the Minority.

Mr First Deputy Speaker: Except that my record shows the contrary.

Osahen Afenyo-Markin: Mr Speaker, stay out of this. Let me deal with him.
[Laughter]

Mr Speaker, before we take his Motion, I want to find out from him whether there has been any distribution of sufficient copies of the Agreement to leadership. [Uproar] No, not the Report, the Agreement. I know that this morning, he went to the Committee to furnish them with copies of the agreement. Meanwhile, yesterday when he laid the Paper, the contract document was not ready. He only gave it to them this morning. They have had a meeting. I want to ask him, those of us in Leadership, my Minority Chief Whip has not received a copy of the Agreement.

The First Deputy Minority Whip has not received a copy of the Agreement. My Second Deputy Minority Whip has not received a copy of the Agreement.

Mr Speaker, not long ago, I was a Majority Leader. What I did was that in any government Business, I first furnished the Leadership of the other Side with copies, and I made sure my Ministers briefed the Leaders. Hon Kwame Agbodza was a Minority Chief Whip, and the number of times I or Hon Annoh-Dompreh walked to his office and ensured that any ministerial document got to his desk—He came here yesterday and laid the Paper. The Hon Ranking Member, Hon Kennedy Nyarko Osei, did not receive the Agreement. Hon Agbodza only made the Agreement available to the Committee this morning for the meeting. Even the Agreement was not ready in the morning.

6:56 p.m.

I am receiving the briefing that even in the morning when the Committee—Now, he looks humbled. Mr Speaker, they then want us to suspend our rules and deal with this for them because they claim they have a special relationship with Parliament by virtue of being a former Leader.

Mr Speaker, very well. We would proceed, but they should be reminded that they demanded greater scrutiny when they were in opposition. They demanded that Parliament be given unfettered opportunity to scrutinise. They need to commit to coming back with the necessary amendment if major

errors are detected. Mr Speaker, I need that on record, and I need his commitment because we are being rushed, and I have not read it.

I have not read it, but Members of the Committee informed me that they had the opportunity to peruse it, just like we spotted some major errors in the Budget. We need their commitment to coming here and amending the record, if anything is detected.

With that, Mr Speaker, I have nothing more to say.

Mr First Deputy Speaker: Hon Members, Motion numbered 2 on the *Order Paper Addendum*.

Hon Members, when we start debating, you will have the opportunity to come appropriately.

MOTIONS

Suspension of Standing Order 104 (1)

Chairman of the Committee (Mr Isaac Adjei Mensah): Mr Speaker, I beg to move:

That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a Motion shall not be debated until at least two sitting days have elapsed after the notice to move the Motion is given, the Motion for the adoption of the Report of the Committee on Roads and Transportation on the Concessionary Contract Agreement between the Government of the Republic of Ghana

(represented by the Ministry of Roads and Highways as the Contracting Authority) and Accra-Kumasi Expressway Limited (as the Concessionaire) may be *moved* today.

Mr Ohene Kwame Frimpong: Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

Concessionary Agreement between GoG and Accra-Kumasi Expressway Ltd

Mr Mensah: Mr Speaker, I beg to move:

That this honourable House adopts the Report of the Committee on Roads and Transportation on the Concessionary Contract Agreement between the Government of the Republic of Ghana (represented by the Ministry of Roads and Highways as the Contracting Authority) and Accra-Kumasi Expressway Limited (as the Concessionaire).

Mr Speaker, in presenting the Report, I request that *Hansard* capture the entirety of the report.

Introduction

The Concession Agreement between the Government of the Republic of Ghana (represented by the Ministry of Roads and Highways) as the Contracting Authority and Accra-Kumasi Expressway Ltd as the Concessionaire

was presented to the House by the Hon Minister for Roads and Highways, Mr Kwame Govers Agbodza on Tuesday, 16th December, 2025 in accordance with Article 75 of the 1992 Constitution of the Republic of Ghana.

Pursuant to Order 253 of the Standing Orders of the House, the Agreement was referred to the Committee on Roads and Transportation and the leadership of the Finance Committee for consideration and report.

Deliberations

The Committee subsequently met and deliberated on the Contract Agreement with the Minister Responsible for Finance, Dr Cassiel Ato Baah Forson, the Minister for Roads and Highways, Mr Kwame Govers Agbodza and officials from the Ministry of Roads and Highways and hereby presents this report pursuant to Order 215(1) of the Standing Orders of the House.

The Committee is grateful to the Hon Ministers and the officials for attending upon it.

Reference Documents

The Committee referred to and was guided by the following documents during its deliberations:

- The 1992 Constitution of the Republic of Ghana;
- The Standing Orders of the Parliament of Ghana; and

- The Concession Agreement between the Republic of Ghana represented by the Ministry of Roads and Highways as the Contracting Authority and Accra-Kumasi Expressway Ltd as the Concessionaire.

Background

The Accra-Kumasi Expressway Project is a proposed multi-lane, access-controlled expressway linking Accra in the Greater Accra Region to Kumasi in the Ashanti Region.

The Accra - Kumasi highway is one the busy highways connecting the national capital of Accra to the business city of Kumasi. The two cities are presently linked by the Accra Kumasi highways with a vehicular traffic of over 10,000 per day.

The Accra-Kumasi highway, although undoubtedly the busiest road linking any two capitals in the country, has long become a nightmare for commuters and, tragically, a death trap. Despite serving as a critical artery, connecting Accra with the Ashanti Region, the Bono Regions, and all five northern regions, the current form of the road is riddled with potholes, uneven surfaces, and lacking adequate lighting systems making it more of a death trap.

To improve travel in the corridor and in an effort to improve the country's road infrastructure and to facilitate economic activity between the two cities, the Government intends to construct a 6 lane dual carriage expressway connecting Accra and Kumasi through a concession

Agreement with Accra-Kumasi Expressway Ltd., a Special Purpose vehicle incorporated for the purpose.

Project Objective

The project is intended to:

- Reduce travel time between Accra and Kumasi
- Improve road safety and traffic efficiency
- Facilitate trade, industrial growth and regional integration
- Support national economic development and logistics movement.

The Concessionaire

The Accra Kumasi Expressway is to be executed under a concession Agreement between the Republic of Ghana (represented by the Ministry of Roads and Highways) as the Contracting Authority and Accra-Kumasi Expressway Ltd as the Concessionaire. Accra-Kumasi Expressway Ltd is a wholly owned Special Purpose Vehicle (SPV) incorporated by Ghana Infrastructure Investment Fund (GIIF) with representation of the Ministry of Roads and Highways, the Ministry of Finance and the Attorney General's Department serving on the Board.

The SPV is wholly funded through budgetary allocation from the Government of Ghana as part of the BIG PUSH initiative.

Project Description and Scope

The Accra Kumasi Expressway to be executed under a concession Agreement with Accra Kumasi Expressway Ltd is a six lane expressway connecting Accra to Kumasi. The project includes eight (8) interchanges at various intersection, rest stops, and toll points.

The expressway is a greenfield project comprising the following activities: feasibility studies, acquisition of Right of Way (ROW) and compensation, utility relocation, design, planning, procurement, engineering, construction, construction supervision, rectification, completion, testing and commissioning of the Project Facilities in accordance with the Minimum Performance Standards and Specifications, the Detailed Engineering Design (DED), and the Project Milestones;

Parties to the Concession Agreement

Contracting Authority

The Government of Ghana, acting through the Ministry of Roads and Highways, responsible for policy oversight, supervision and contract management.

Concessionaire

Accra-Kumasi Expressway Ltd, a private limited liability company duly incorporated under the laws of the Republic of Ghana as a special purpose vehicle established by the Ghana Infrastructure Investment Fund (GIIF), with demonstrated capacity in large-

scale road infrastructure development and expressway concessions.

Obligations Of the Concessionaire

The concessionaire, shall among others, be responsible for:

- i. The feasibility studies;
- ii. Selection of contractors and awards of contract for the construction of the expressway;
- iii. Supervise the constructions of works in collaboration with Ghana Highways authority;
- iv. The supply and installation of the Tolling System;
- v. Provision and management of ancillary road infrastructure including filling station and rest stops;
- vi. Manage, operate, repair and maintenance of the Project Facilities;
- vii. The collection of tolls

The concessionaire is expected to transfer the project to the Ghana Highways Authority on the expiration of the 50 years' concession period.

Observations and Recommendations

Benefits of Project

The Committee observed that the Accra-Kumasi Expressway Project is of strategic importance and possesses

strong commercial viability, driven by high traffic demand and its location within a developing economic enclave. The Committee noted that the successful implementation of the Accra-Kumasi Expressway project would drastically reduce travel time between Accra and Kumasi from 4-5 hours to 2 hours, boost Ghana's economy by improving trade, reduce transport costs, create jobs, enhance safety, and modernize infrastructure, linking the capital with major commercial hubs like Kumasi for better connectivity, tourism, and agricultural logistics, serving as a "Big Push" for national development.

Funding of the Project

The Committee observed that the project is a wholly government-funded initiative and is not structured as a Public-Private Partnership (PPP). The Committee further observed that provision has been made in the 2026 national budget for a total allocation of Thirty Billion Ghana Cedis (GH¢30.0 billion) for the project. In addition, the allocation of Thirteen Billion, Eight Hundred Million Ghana Cedis (GH¢13.8 billion) approved under the Big Push Programme in the 2025 financial year, which has not been drawn down, has been ring-fenced to support the expressway.

Rationale for the Concession and SPV Arrangement

The Committee also noted that the scale and complexity of the project require substantial capital investment, efficient construction, and sustained

maintenance over the long term. In this regard, the Committee found the adoption of a Special Purpose Vehicle (SPV) under a concession agreement appropriate, as it creates the opportunity for private sector participation in the financing road infrastructure in the future.

Risk Allocation and Value for Money

The Committee further observed that the concession arrangement provides a clear framework for the allocation of risks between Government and the private sector, as well as defined performance and service delivery standards. This approach is expected to promote operational efficiency, ensure effective asset management, and deliver value for money over the lifecycle of the project, while reducing the immediate fiscal burden on Government.

Conclusion

The Committee has carefully examined the Contract Agreement and is of the view that the construction of an alternative route or a six lane expressway will cut the travel distance between Accra and Kumasi by 50 kilometres. The project will also enhance logistical movement, strengthen national integration and facilitate trade between Ghana and its northern borders countries.

The Committee respectfully recommends to the House to adopt its report and approve the Commercial Contract Agreement between the Republic of Ghana represented by the Ministry of Roads and Highways and the

Contracting Authority and Accra-Kumasi Expressway Limited as the Concessionaire in accordance with Article 181 (5) of the 1992 Constitution. Respectfully submitted.

Mr Kennedy Nyarko Osei (NPP — Akim Swedru): Mr Speaker, I rise to second the Motion, and in so doing, I want to make a few comments on the report.

Mr Speaker, your Committee met with the Ministry of Roads and Highways and the Ministry of Finance this afternoon to consider the Accra-Kumasi Expressway concession agreement that was referred to the Committee yesterday. Mr Speaker, a few observations were made. We were informed that the concession agreement spans 50 years, and this concession agreement is between the Ministry of Roads and Highways and the Ghana Infrastructure Investment Fund (GIF). A Special-Purpose Vehicle (SPV) has been set for the construction of the Accra-Kumasi Expressway.

Mr Speaker, because it is a concession agreement, it does not include the commercial or financial aspects. We informed the respective ministries to ensure that when it is time for them to do the detailed funding and the contractual agreement, they need to be able to bring it to the Committee to look at it.

Mr Speaker, one of my concerns is that it is an SPV which is 100 per cent owned by the Government of Ghana. If the Government has the money to construct the expressway, why give the money to GIF? When the Ministry of Roads and Highways has its own agency, the Ghana

Highways Authority, it has the technical expertise to construct it. Even if we give it to GIF, they lack the technical knowledge, and have to also engage those with the technical expertise to be able to construct. So that was one of my concerns, which I drew their attention to.

7:06 p.m.

We were also informed that the Government has plans to use GIF to ensure that, after the construction, they can leverage that investment to replicate it on other roads that need funding. They will use it to attract external funding from other investors. So that was the response given by the Ministry. We on this Side believe the Expressway is a very important road, and no one on this Side is against it. We believe that it will form one of the routes to Kumasi.

We also drew the attention of the Ministry that, well, yes, the Government has its plan in constructing a new Expressway, but we want to encourage them to also pay key attention to the Accra-Kumasi road, which we have dualised, with about 150 kilometres of it remaining, about 94 kilometres to complete all the 250 kilometres.

So, we also encourage the Ministry to ensure that they are able to look for the necessary funding to complete the existing Kumasi-Accra—The traffic on that route is—If you look at it, it is something that needs to be addressed. I think the Minister also assured the Committee that Government will also do its effort to ensure that they are able to

get the necessary funding to complete the existing work.

Mr Speaker, my last caution is this: the Minister is present—The Minister for Roads and Highways and I ask that he listens carefully. This project is to be funded one hundred per cent with the taxpayers' money, GoG funds. I wish to encourage the Minister, just as we did with the Accra–Tema Motorway which was given to a local contractor for construction.

Therefore, when the selection process is undertaken for contractors, particularly if the project is to be executed in phases, I urge the Ministry to prioritise the local contractors. This will enable them to also grow. We do not have to award every project to foreign contractors because when we contract foreign loans, the lenders often bring their contractors and consultants to execute the projects. If we are using our own money to undertake this project, then we need to prioritise giving our local contractors the opportunity to be part of it.

Mr Speaker, with these few words, I wish to encourage the House. We have gone through the concession agreement, and we are satisfied that it is appropriate for this House to adopt it, so that we pave the way for the Special Purpose Vehicle (SPV) or for Ghana Infrastructure Investment Fund (GIIF) to begin the feasibility studies, and subsequently undertake the procurement processes to select a contractor to begin the project. I thank you, Mr Speaker for giving me the opportunity.

Mr First Deputy Speaker: Thank you, Hon Ranking Member.

Some Hon Members — rose—

Mr First Deputy Speaker: Hon Member, when your front is up, you know I have to look at the front, so let me start with the most senior, Hon Okyere Darko-Mensah.

Mr Kwabena Okyere Darko-Mensah (NPP — Takoradi): Thank you very much, Mr Speaker, for this opportunity. The expressway is one of the key alignments that I believe that when developed, would add up to the road network of this country. It is also very instructive to know that this road would definitely reduce the travelling time from Accra to Kumasi to two hours—that is what it proposes. I believe that these are some of the reasons why a lot of us will be supporting it, because Kumasi to Accra should definitely be a one-day trip all the time. I believe that when that happens, businesses between Accra, Kumasi and beyond would quicken up, and then the infrastructure will support industrialisation and agriculture.

Mr Speaker, what I have seen in this Report is that, we are told that GH¢13.8 billion will be ring-fenced, and then next year when we get the additional GH¢30 billion for the Big Push Agenda, we should be able to get this road done. I am looking at a kilometre lane valued at around GH¢1 million. So, for 200 kilometres stretch from Accra to Kumasi, we are basically looking at around US\$1.2 billion. I do not know the figures he is going to use, because the

feasibilities have not been done, I am just using basic figures. The US\$1.2 billion, I believe that is fair, if we are able to do so. But for every road that we construct in this country, with the exception of bitumen, everything else is locally sourced; the chippings, and the laterites are locally sourced.

I believe that, when it even comes to steel, today, we have a lot of steel companies in Ghana that can also produce that. I believe that in the design of this road, we should consider a concrete wearing course instead of the conventional bituminous surfaces. If we are able to do that, I believe that many of our cement factories will be able to produce and supply the materials. As for clinker, there is so much in the country.

Even though we are looking at a concession agreement between the Government of Ghana and the Kumasi-Accra Expressway Limited, I believe that we must ensure that the kind of road design we envisage for this road to last, like the way the Tema-Accra Motorway has lasted for a very long time, will find expression in the concession agreement between the concessionaire and the Government of Ghana. If we fail to do this, over time the concessionaire may assume that he has the discretion to design the roads, and opt for an asphalt road that we know that will only last for about 15 years whereas this concession is for 50 years. A road surface designed to last for fifty years must be concrete, not asphalt, and I believe this should be expressly captured in the concession agreement. This will ensure that when a contractor is eventually selected, the

right standards are applied in the interest of the country, so that the next major rehabilitation or renovation will only be required after another 50 years.

Mr Speaker, what we should also understand is that since the feasibility studies are only beginning now or possibly next year, there is no way we are going to finish this road in two years. I think we need to be honest with ourselves. We know that the Government says three years, but I believe that they need to put in the necessary measures to make sure that they deliver this by 2028, otherwise it is going to be a major political disaster for all of us.

But the Report also mentioned the poor state of existing alignment including the existence of potholes. Yes, that is very correct. In fact, especially getting to Nkawkaw then after Nkawkaw, the road is so bad. The issue of nonfunctional street lights was also mentioned. Mr Speaker, I believe that as we are putting these moneys aside for this new alignment of the expressway, we should urgently allocate money to fix the problems on the existing alignment. In particular, the bypasses that have already started must be completed. The last time I looked at the figures, we were told that because of the new development or the estimate, we are looking around GH¢3.7 billion. That comes to about US\$300 million. I believe that if we can find US\$1.2 billion to start a new road, we should be able to find the US\$300 million to also complete it. We can look at a total of about US\$1.5 billion to complete the Accra-Kumasi double road

or a dual carriage, which is currently ongoing. That can be completed within a year for residents and commuters to use them. This would reduce the fatalities that have been occurring on that alignment, so that lives are saved.

With these few years, Mr Speaker, I believe that we all have to support this to start the process. Thank you very much.

Mr Andrew Dari Chiwitey (NDC — Sawla/Tuna/Kalba): Mr Speaker, let me thank you for giving me the opportunity to speak to your Committee's Report. The road project we are talking about is a very important road project. At the Committee level, the Minister for Finance himself was around to let us see the importance of that expressway. Apart from the Minister for Finance, the Minister for Roads and Highways was also there. Both Ministers spoke emphatically and passionately as Ghanaians.

They made us understand that that road project is not something for us to gain political will. It is for us to connect Kumasi and Accra. For that matter, it is going to connect Kumasi, Accra, Bole-Bamboi, Wa, Burkina Faso, Niger, and all the countries that take their load from the Tema harbour. The road is not just going to link cities, but it would allow people who live along the road to have access to businesses.

Mr Speaker, if we visit other African countries or other developed countries, we realise that building roads is just not

for accessibility but for the development of the countries. It is high time we invested in our road sector as a country because that is the only way out now. Once we are able to build the roads to connect our cities, then we can start to build houses; we can start to build schools, and we can start to empower the youth and women to develop their businesses.

7:16 p.m.

We are made to know that on a daily basis, over 10,000 vehicles ply that road, so it is important for us to develop it. One fact about the project is that it is not going to take away the work that is already ongoing on the Accra-Kumasi Road. Let us once again assure the people of Kumasi and for that matter, Ghanaians, that the express road is going to be worked on, while we complete the existing road that we have. Let us also once again assure Ghanaians that this road project is going to benefit every Ghanaian because it is linking the north to the south.

Mr Speaker, I am not going to waste time on it because I believe that the whole House is in agreement with this project, and so there is no need speaking plenty about it. Except to thank every individual, especially Committee Members, with the kind of zeal and agreement we all have at the Committee level to support this project. Mr Speaker, I thank you once again and I thank the House for agreeing that it is time for us to build quality roads for the people of Ghana.

Mr Kwame Anyimadu-Antwi (NPP — Asante Akim Central): Thank you, Mr Speaker. I am also supporting this laudable idea to build an expressway from Accra to Kumasi.

Mr Speaker, I would want to just refer the House to the conclusion of the Report which says, and if I may quote, “the Committee has carefully examined the contract agreement and is of the view that the construction of an alternative route or a six-lane expressway will cut the travel distance between Accra and Kumasi by 50 kilometres”. Mr Speaker, I just want to be here. The Committee reports that there must be an alternate route. If we are talking about an alternate route, the Minister is aware that there must be a route, and we are looking at another route to supplement this one, and we want this one to be fast.

The Committee never said anything and did not observe what is going to happen to the present Accra to Kumasi Road. On the Accra to Kumasi Road, after Nsawam, there are a lot of constituencies that benefit from this road. My Constituency especially, Asante-Akim Central, Konongo, Odumase and Yawkwei are on the main road from Accra to Kumasi. Besides that, Asante-Akim South and North feed into this road. There is Juabeng, Ejisu, Juaso, Effiduase and all these constituencies feed into the road and benefit from it.

Mr First Deputy Speaker: Hon Anyimadu-Antwi, hold it. All other Members on their feet should resume their seats. Let us listen to each other in silence. Hon Member on the far end, can

you hear me? Hon Anyimadu-Antwi, you have the floor.

Mr Anyimadu-Antwi: So, Mr Speaker, the point I am making here is that, as the Committee has rightly observed, that this is supposed to be an alternate route, we have not heard what is going to happen the main Kumasi double road plan that we have. This is a laudable idea, there is no two ways about that, but I urge upon the Minister that we need to hear something about the present Accra to Kumasi Road.

According to the Report, the Committee said that it is going to take a minimum of three years. In three years, what is going to happen at Konongo? Between Yawkwei to Odumase in Konongo town, if a person is travelling to Kumasi, it is just by the grace of God that the roads have not caved in.

Mr Speaker, for my constituency, I asked the Minister, I was at another assignment, and Hon Ahmed was here to ask the Question on my behalf, and when I granted him the permission. all the Minister said was that there was no plan for my constituency. Among the four roads that I asked, he said there is no plan for the constituency in 2026 and that they may consider them in 2027, when there is availability of funds. At least, if the Minister has said anything about the present road of Accra to Kumasi, at least my constituency would have benefited from it.

Therefore, I urge the Minister that while we are supporting him to construct

this alternate road, nobody is condemning it, he should take immediate steps to make sure that the road from Accra to Kumasi now is improved and fixed. Thank you, Mr Speaker.

Mr Alamzy Nikyema Billa (NDC — Chiana Paga): Thank you very much, Mr Speaker. I rise to support this very innovative projects. The current expressway is going to be a game-changer in our transport industry.

The current Accra-Kumasi highway that we have, we all know, is the busiest road linking any two major cities in this country, with over 10,000 vehicular traffic every day. We all agree that it has become a nightmare for commuters. We all agree that it is lacking even adequate lighting, especially when we are on it in the night.

Mr Speaker, the Accra-Kumasi express projects, mostly such projects are known as freeway or motorways, and we all know that they are important components in transportation network. This is very innovative and we must all support it.

Mr Speaker, give me the chance to just brief the House on some few importance on roads of that nature. Traffic flow is going to be very smooth. Such express highways are designed to facilitate smooth flow of traffic.

Mr Speaker, it is going to eliminate intersections. Mostly, for highways of that nature, we do not get much intersections on it.

7:26 p.m.

Other obstacles are going to go off when you are travelling from Accra to Kumasi when this project is done.

Mr Speaker, we cannot speak and forget about safety. Roads of this nature are always designed with safety in mind. It is going to have wide shoulders where a number of vehicles can travel at the same time on different lanes in the same direction. It is going to have barriers that will prevent cars from opposing traffic, so collision will not happen when this road is finally done.

Mr Speaker, we cannot talk about this without talking about the economic benefits. The time people take, especially with long vehicular traffic on the road, it is much longer to travel from Kumasi to Accra. With this expressway, the time is going to go down drastically, and it is going to contribute to economic growth. Mr Speaker, the connectivity between Accra and Kumasi is going to be very smooth, and it is going to contain a lot of vehicles for us.

Mr Speaker, emergency response efficiency is what we have to take into consideration. Because —

Mr First Deputy Speaker: Hon Member, conclude.

Mr Billa: Mr Speaker, emergency response is going to be very efficient because our ambulances can travel from

Kumasi to Accra in no time. I want to urge all of us to make sure that when this project is done, and we are committed to completing the transportation network in Ghana, we should take the Tema-Mpakadan Railway network —

Mr First Deputy Speaker: Hon Member, if I say conclude, and you do not conclude, you risk losing the opportunity any time you are on your feet.

Mr Billa: Mr Speaker, I am concluding. I was only saying that our road network would be competent if we take the Tema-Mpakadan Railway network into consideration.

Mr First Deputy Speaker: Hon Member, your time is up. Resume your seat.

Mr Billa: Thank you very much.

Mr Kojo Oppong Nkrumah (NPP—Ofoase/Ayirebi): Mr Speaker, thank you for the opportunity to make some very quick comments in support of this Report. My uncle who spoke earlier, was complaining about the old road because it is through his constituency. I am excited about the new road because it will come through my constituency. Mr Speaker, while we support this Report, this will not be the first time that the Government of Ghana is attempting a big project; the Hope City project, the Saglemi project, and the Accra-Tema Motorway.

I speak as somebody who has just exited government. The Government of

Ghana has in times past touched big projects but has not been able to complete them because the risks associated with some of these projects have not been well managed. So, in supporting this, I want to share some risks that I think the Government should pay particular attention to so that it does not become one of those projects that are left hanging.

Mr Speaker, first is the fact that contrary to the impression in many people's minds that this is a project ready to go, actually, even the feasibility of this project has not been done yet. It is the first obligation now being contracted under this concession agreement. You recall when the Minister for Finance read the budget, the videos were being shown and circulated.

In people's minds, in the minds of my constituents for example, this is a project that is baked and good to go. But actually, the feasibility is now going to be done. So, my first caution to the Government is to manage the risks pretty well in terms of the expectations they create in people's minds. Else, they may have challenges along the way.

Second, Mr Speaker, if you look at paragraph 10.2 of the Committee's Report, the Government claims that financing has been ring-fenced for this project. I want to read:

“The Committee further observed that provision has been made in the 2026 national budget for a total allocation of Thirty Billion Ghana Cedis (GH¢30.0 billion) for the project. In addition, the allocation of Thirteen Billion, Eight

Hundred Million Ghana Cedis (GH¢13.8 billion) approved under the Big Push Programme in the 2025 financial year, which has not been drawn down, has been ring-fenced to support the expressway.”

Mr Speaker, if the financiers or the persons managing the finances are informing the Minister that this 13 billion has been ring-fenced, I want to inform the Minister that it is not true. Minister, in the Budget returns that they brought, you would recall we had this debate on this Floor and I showed you the numbers. They have already spent GH¢10 billion of that money. Appendix 2 (c), when you come to the line on the Big Push, by September, GH¢10 billion has already been paid. So, Minister, if they are informing you that they have ring-fenced this GH¢13 billion and it is available, please check, else they may disappoint you at the end.

Mr Speaker, my final point, this project is Government of Ghana (GoG) funded through Ghana Infrastructure Investment Fund (GIIF). I think it is a beautiful framework, so that the money is made available to GIIF subcontracts, and GIIF can take the money back as a commercial project. But it is still GoG, and the old Accra-Kumasi Highway, if I am correct, is also GoG. What it means is that the one that we are struggling to pay which is about 65 to 70 per cent complete, there are difficulties in servicing the payment and it is going to be drawn from the same pot that this supposed GH¢30 billion plus GH¢13 billion, which we are told is ring-fenced, is also drawing from.

Mr Speaker, I think it is important that while pursuing this new one, the old road is not left to hang. We are told that it is only missing a number of things, including lighting and other things, and of course, about 40 or 35 per cent of the work to complete. If they are both going to draw from the same source, especially now that the revenues have not hit the projections, let us be careful so that we do not have both projects hanging.

With that said, Mr Speaker, we support this Report.

Mr First Deputy Speaker: Yes, Minority Leadership.

Mr Annoh-Dompreh: Mr Speaker, we had proposed three, and then Leadership making it four.

Mr First Deputy Speaker: Hon Member, let me count the people who spoke on this Report: Hon Kennedy Nyarko, Hon Darko Mensah, Hon Kwame Anyimadu-Antwi and Hon Oppong Nkrumah.

Mr Annoh-Dompreh: Mr Speaker, that is fine. I yield the Minority Leadership's place to Hon Asenso-Boakye.

Mr First Deputy Speaker: Very well. Hon Member, you have the floor.

Mr Francis Asenso-Boakye (NPP — Bantama): Mr Speaker, I thank you for the opportunity for me to comment on the Report of the Committee regarding the Concession Agreement before

Parliament. Mr Speaker, at the outset, I think it is important to reiterate the point that this Side of the House is not against the construction of an Accra-Kumasi Expressway.

Mr Speaker, no serious policymaker will oppose the development of a modern expressway linking the two big cities in the country. If there is anybody in recent times who has spoken passionately about the need to connect our two cities with the highway, it is me. *[Hear! Hear!]* In fact, in my first debate in this House in December, I recounted how the United States of America (U.S.A.) used the interstate expressways to accelerate its economic development. Hon Agbodza is here. He will underscore that.

Mr Speaker, my concern was that the existing highway was going to be abandoned. That was the theme of my letter to the President. It was unfortunate that the Hon Minister for Finance twisted the whole thing to say that I do not want the expressway to be done.

7:36 p.m.

Mr First Deputy Speaker: Hon Members, once again, all those who are standing, particularly on my right Side, should resume their seats. Kindly, resume your seats before I begin mentioning your names. Hon Isaac Adjei Mensah, kindly resume your seat. Hon Kennedy Nyarko, kindly resume your seat. Hon Zuwera, resume your seat.

Yes, Hon Member, you may proceed.

Mr Asenso-Boakye: Mr Speaker, earlier in the debate, I underscored that in the United States, when studies were done about the importance of the interstate highways, it was recorded that a dollar investment on the interstate highways yielded six times in economic returns. That underscores my understanding and the importance I attach to an expressway between our two cities. The theme of my concern was that the existing one was going to be abandoned. If it was going to be abandoned, then it was going to create a lot of problems for our country. I say this because on that route, there are critical towns and economic zones. We have Nsawam, we have Suhum, we have Koforidua, Kyebi, Anyinam, Nkawkaw, Kwahu Mountains, Afram Plains, Konongo and Ejisu.

In this year's Budget, one of the interventions that this Government wants to undertake, in fact, to continue a plan of the Akufo-Addo's administration, is to construct a bridge over the Afram Plains. The idea is to make the Afram Plains the bread baskets of Ghana. And if they construct that bridge, and we produce a lot of agricultural produce, and we are not able to transport this produce to Accra, Kumasi and the rest of the country, whether for export or for local consumption, then what would be the purpose of making Afram Plains the agricultural bread basket of Ghana? So, it was important.

But Mr Speaker, it is important to know that since my intervention, the Minister for Finance has come to say that the existing road will not be abandoned.

The Minister for Roads and Highways has come to say that the existing road will not be abandoned.

And in fact, the President himself has come to say that the existing road will not be abandoned. Except to say that it was an afterthought, because they have presented two Budgets, but they did not capture the existing project in those two Budgets. So, I am happy that with my intervention, they have now realised that it is important they factor that maybe in their next Budget. It will be welcome.

Mr Speaker, one concern that I have with this project is how hurriedly it is being done. It is going to be the single most important road project in the history of Ghana, and as such, it should not be hurriedly done. Look at the way it was laid yesterday, without the Agreement. It was referred to the Committee for a meeting this morning. As of 2:00 p.m., the Agreement was not ready—

Mr First Deputy Speaker: Hon Member, kindly conclude.

Mr Asenso-Boakyie: Mr Speaker, it is important that I make these points, because this is central to the discussion. It is hurriedly being done and when we went for the Committee meeting, we were told that the special purpose vehicle is now going to conduct feasibility studies. What it means is that there is no feasibility study now, even though the Minister had indicated earlier that they are now in the process of hiring a consultant to do it. This shows that there is a lot of back and forth, no strict

direction, strict guidelines as far as this project is concerned. What it means is that we do not know the cost of the project, no engineering design, we do not know the alignment, where it is going to pass. My advice is that let us take our time and plan it well, because if we plan it well, the benefits will be enormous for us all.

Mr Speaker, in conclusion, I want to say that I welcome the assurance by the President that the existing Accra-Kumasi Road project will not be abandoned and when that is done, it will be faster, it will be easier to complete than the one that they are proposing to do. But having said all that, the President has assured that the existing project will be completed and the new one will also be completed. At the end of the day, it will enhance the economic development of the country. With these few remarks, Mr Speaker, I support the concession Agreement before the House.

Mr First Deputy Speaker: Yes, Hon Minister, you have the floor.

Mr Kwame Govers Agbodza: Mr Speaker, I want to take the opportunity to thank all Colleagues for the overwhelming support for this Agreement. Indeed, all the comments by every Colleague who spoke is taken in good faith and we shall make sure that we work having those comments in mind.

Mr Speaker, let me make these few comments. As my Colleague said, the existing Accra-Kumasi Road has never been abandoned. The contractors were

completely off-site before the 2024 General Election because the scope of the work changed and the money made available for the project did not tally with the scope. As we speak, we are working with the agencies to bring the cost to complete so that we can complete those sections.

Indeed, H. E. President Mahama, as I said in the past, came into government with a different mindset. Unlike 2017 when the Government made a policy to suspend road projects and said they were doing auditing, President Mahama's Government did the opposite. We encourage all contractors to continue to work. Every project that has been inherited is being continued.

When President Mahama's Government took over Ofankor project, the contractors were off-site. He ordered the Minister for Finance to pay almost GH¢800 million, being the first payment. Today, that project is going to be completed ahead of schedule. The road from Kasoa to Winneba, the contractor was there but was owed a lot of money. We have paid. Suame Interchange project was almost suspended. We captured it under Big Push and certificates have been prepared to pay the contractor to continue. On record, there is almost GH¢600 million that the Minister for Finance paid for road projects, not GH¢1 of it has been paid for projects started by President Mahama. They are all projects started before he came to government.

So, if people say that we are abandoning, how do you pay GH¢600

million for projects started by the previous government and you still talk about projects being abandoned? It does not work. It is quite clear that President Mahama is continuing all these projects. The Accra-Kumasi project will be continued. I took time to explain to Colleagues.

The new alignment is an alternative to the existing alignment. The ECOWAS and the AU protocol say that when you build an expressway, you are allowed to charge a certain level of toll to recover the cost. But you must have an alternative that if somebody wants to go to Kumasi in six hours, he will also have an alternative to go to Kumasi in six hours. Those who want to go in two hours should also have the alternative. This is all it is about, Mr Speaker.

I agree with my Colleague. There is no road in Ghana that is more important than the road between Accra and Kumasi. Indeed, we are doing something that we will be proud of maybe in five years. As we speak, Big Push is bigger than any road project on the continent of Africa. Yes, there is no road project as a single intervention on the continent of Africa bigger than Big Push. We are in excess of US\$5 billion already.

Which project in Africa is bigger than this? If you add the Ekye-Amanfrom Bridge and the work we are talking about, indeed, my Colleague said, this will be the biggest road project ever in the history of our country. And we are committed to delivering on this project. The fear that we will start and fail—

Mr Speaker, not long ago, people did not even believe that Big Push was a reality. As we speak, it is almost 8:00 p.m. I can tell you that there are contractors on some sites working. They put on the light to work, because they are committed to the fact that this country can work for the Ghanaians by Ghanaians. So, we believe that this will work.

7:46 p.m.

Mr Speaker, Colleagues talk about a lot of things; the scope and everything, and it is quite clear that it is not just a road project, it is a growth pool. This road project is being executed through GIIF. Yes, the Ghana Highways Authority could have contracted this project and completed it, but when highways build a road and leave it, maintenance is another matter. So, we are going through GIIF, and GIIF is setting up an SPV to construct this road and manage it for 50 years.

Mr Speaker, I will not be surprised if, when this road is completed, a private enterprise comes along and says it wants to take it over and pay us for whatever we have used. We can then continue from Kumasi to Tamale. That is the way we are looking at it. And the idea that no design and nothing has been done, no.

Mr Speaker, we have already done a lot of work. When the SPV takes over, we will hand over all preliminary work we have completed to the SPV. So, it is not to say that we are now coming to start

anything. We have done some work already.

Mr Speaker, I have considered all comments from Colleagues and believe they were made in good faith. With the support this House has given to this project, we commit to delivering it to the satisfaction of colleagues across the country. I want to thank my Colleagues for their support and hope this project transforms our country, makes our roads safer, and brings investment to our country.

Thank you very much, Mr Speaker.
[Hear! Hear!]

Question put and Motion agreed to.

Resolved accordingly.

RESOLUTION

Concessionary Agreement between GoG and Accra-Kumasi Expressway Limited for the Construction of the Expressway

**Minister for Roads and Highways
(Mr Kwame Govers Agbodza) (MP):**
Mr Speaker, I beg to *move*:

WHEREAS

1. By the provisions of article 181(5) of the Constitution the terms and conditions of any international business or economic transaction to which the Government of Ghana is a party shall not come into operation unless the said terms and conditions

have been laid before Parliament and approved by Parliament by a Resolution supported by the votes of a majority of all Members of Parliament.

2. Pursuant to the provisions of the said article 181(5) of the Constitution, and at the request of the Government of Ghana acting through the Minister responsible for Finance, there has been laid before Parliament the terms and conditions of a Concessionary Contract Agreement between the Government of the Republic of Ghana (represented by the Ministry of Roads and Highways as the Contracting Authority) and Accra-Kumasi Expressway Limited (as the Concessionaire).

**THIS HONOURABLE HOUSE
HEREBY RESOLVE AS FOLLOWS:**

In accordance with the provisions of the said article 181(5) of the Constitution, this House approves by resolution, the Concessionary Contract Agreement between the Government of the Republic of Ghana (represented by the Ministry of Roads and Highways as the Contracting Authority) and Accra-Kumasi Expressway Limited (as the Concessionaire).

Chairman of the Committee (Mr Isaac Adjei Mensah): Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: Hon Members, can we turn to *Order Paper Addendum 2* and lay the item numbered 1. Chairman of the Committee.

Mr Annoh-Dompreh: Mr Speaker, we do not have a copy of *Order Paper Addendum 2*.

Mr First Deputy Speaker: *Addendum 2* is just the laying of a Paper.

Mr Annoh-Dompreh: Mr Speaker, laying is not just, with respect. *[Laughter]*

Mr First Deputy Speaker: Do you have it now? Can we lay it?

Mr Annoh-Dompreh: Yes, Mr Speaker.

Mr First Deputy Speaker: Yes, Deputy Majority Leader.

Mr George Kwaku Ricketts-Hagan: Mr Speaker, the Chairman of the Committee is not around, but the Ranking Member is here.

PAPER

Mr Richard Acheampong on behalf of the Chairperson—

Report of the Budget Committee on the Annual Budget Estimates for the discharge of Other Government Obligations for the Year ending 31st December, 2026.

Mr First Deputy Speaker: Hon Members, can we turn to the main *Order Paper*, page 11, to take the item numbered 26—Third Reading of the National Health Insurance (Amendment) Bill, 2025.

Hon Members, I will suspend for just two minutes.

7:50 p.m. —*Sitting suspended.*

7:54 p.m. —*Sitting resumed.*

Mr First Deputy Speaker: Hon Members, the Motion numbered 26.

Mr Ricketts-Hagan: Mr Speaker, the Minister for Health is not here, so I beg to seek your leave that the Deputy Minister does so on his behalf.

Mr First Deputy Speaker: Yes, the application is that in the absence of the Minister for Health, the Deputy should move the Motion.

Mr Annoh-Dompreh: That is all right. She can proceed.

Mr First Deputy Speaker: Deputy Minister for Health, you have the floor.

BILL — THIRD READING

National Health Insurance (Amendment) Bill, 2025

Deputy Minister for Health (Prof Grace Ayensu-Danquah) (MP) *on behalf of the Minister for Health:* Mr Speaker, I beg to move:

That the National Health Insurance (Amendment) Bill, 2025, be now read the Third time.

Mr Richard Acheampong: Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

National Health Insurance
(Amendment) Bill, 2025 — *read the Third time and passed.*

7: 56 p.m.

Mr First Deputy Speaker: Hon Member, still on the main *Order Paper*, the item numbered 7, Kwame Nkrumah University of Science and Technology, Kumasi Bill, 2025. Item numbered 37, page 15.

Minority Chief Whip (Mr Frank Annoh-Dompreh): Mr Speaker, we are not opposed to taking that Business. I just wish to know from the Frontbench what the plan is. What are we doing and what are we not doing? After the Consideration Stage of that Bill, I know the Minister for Government Communications has been here all day. Is it the case that we are not going to take his Business or ask the Questions? We wish to know so that we can plan accordingly.

Mr First Deputy Speaker: Hon Minority Chief Whip, once the Hon Minister is here, I guess we will take the Business. Do not worry. We will go all out today.

BILL — CONSIDERATION STAGE

Kwame Nkrumah University of Science and Technology, Kumasi Bill, 2025

*[Resumption of Consideration from
16/12/2025]*

Clause 1 ordered to stand part of the Bill.

Clause 2 — Aims of the University.

Chairperson of the Committee (Mr Peter Nortsu-Kotoe): Mr Speaker, I beg to move subclause (2), paragraph (d), *delete* and *insert* the following: “(d) provide students with an understanding of global affairs through the application of modern tools, including emerging technologies for teaching, learning, research and dissemination of knowledge in support of sustainable development;”.

Question put and amendment agreed to.

Mr Nortsu-Kotoe: Mr Speaker, I beg to move subclause (2), paragraph (e), line 3, after “development”, *insert* “innovation”.

Question put and amendment agreed to.

Clause 2 as variously amended ordered to stand part of the Bill.

Clauses 3 and 4 ordered to stand part of the Bill.

Clause 5 — Membership of the University

Mr Peter Nortsu-Kotoe: Mr Speaker, I beg to subclause (1), *insert* a new paragraph as follows: “Registrar of the University”.

Question put and amendment agreed to.

Mr Kwame Anyimadu-Antwi: Mr Speaker, on the “Membership of the University”, the Committee agreed to that but I think that we also proposed that we can state lecturers in addition to the Registrar, and if the Chairperson will consider that. Even though there is “employee” there, but I think lecturers must stand out. So, if we can add “lecturers” and “Registrars”.

Mr First Deputy Speaker: I think the amendment that has just been carried out has the Registrar of the University. Do you want the employees to be changed to lecturers?

Mr Anyimadu-Antwi: Mr Speaker, no. Not to be changed, we are adding. We omitted the Registrar. We are adding “Registrar”. The Registrar is an important Member of the University, and so are lecturers. Therefore, we wanted lecturers to stand out as one of the members and there will be other employees. It is not to withdraw “employees” but “lecturers” to be added as we are adding the “Registrar”.

Mr First Deputy Speaker: Chairperson and Minister, the proposal is to specifically add lecturers and again

have employees. What is the standard in other University Bills that we have passed?

Mr Nortsu-Kotoe: Mr Speaker, the agreement was that lecturers are also employees of the University, so it should just be “employees”.

Mr Anyimadu-Antwi: Mr Speaker, I said that it should stand out as distinct because the Registrar is also an employee. The Vice Chancellor is also an employee.

Mr First Deputy Speaker: Hon Anyimadu-Antwi, all the University Bills that we have passed, do we specifically indicate lecturers out of the employees standing on their own? For some consistency, unless you have a very good reason to depart?

Very well, Chairperson, he is deferring to you. He is not insisting his amendment. What do we do?

Minister for Education (Mr Haruna Iddrisu): Mr Speaker, if I may request the Hon Anyimadu-Antwi to persuade him to abandon his amendment. If he recalls, at the Committee level, the Vice-Chancellor referred to herself as an employee of the University. So, it does no harm because “employee” will cover it. If we put in “lecturers”, some lecturers are part time lectures. That can be problematic. So, if he has no serious—Thank you, Mr Speaker.

Mr Nortsu-Kotoe: Mr Speaker, I beg to move, subclause (2), delete.

Question put and amendment agreed to.

Clause 5 as amended ordered to stand part of the Bill.

Clause 6 — The University Council

Mr Kotoe: Mr Speaker, we have proposed amendment, but I want to make a correction. I did that yesterday but it has not been captured. If we read the first one, “The University Teachers Association of Ghana” should be corrected to “University Teachers Association of Kwame Nkrumah University of Science and Technology.” It should be subsequential in the two proposed amendment.

Mr Speaker, I beg to move subclause (1), paragraph (d), *insert* the following new subparagraphs: “the University Teachers Association of Kwame Nkrumah University of Science and Technology, nominated by the University Teachers Association of Kwame Nkrumah University of Science and Technology;

(2) Junior Staff Association of the Kwame Nkrumah University of Science and Technology, nominated by the Junior Staff Association of the Kwame Nkrumah University of Science and Technology.

I so move.

8:06 p.m.

Mr First Deputy Speaker: The proposal is to further amend the

advertised amendment by *deleting* “Ghana” in the first one and also *deleting* “of Ghana” and replacing them with “Kwame Nkrumah University of Science and Technology”. I will then put a question on the proposed amendment. Yes, Minister?

Mr Haruna Iddrisu: Mr Speaker, I support the amendment. Currently, Government is grappling with a difficulty of managing two different teachers and educational workers’ union on the university campuses across the country. There is Teachers and Educational Workers’ Union (TEWU) of the Trade Union Congress (TUC) and there is TEWU Ghana. So, it becomes difficult if you ask them to do a nomination. I am sure that is why there is Chairman said Junior Staff Association. Then through an election, they may make a determination on who will represent them on the council.

Question put and amendment agreed to.

Clause 6 as amended ordered to stand part of the Bill.

Clause 7 to 14 ordered to stand part of the Bill.

Clause 15 — Chancellor of the University.

Mr Nortsu-Kotoe: Mr Speaker, amendment proposed – Subclause (3), paragraph (a), *delete* “titular”.

Question put and amendment agreed to.

Clause 15 as amended ordered to stand part of the Bill.

Clause 16 ordered to stand part of the Bill.

Clause 17 — Vice Chancellor of the University.

Mr Nortsu-Kotoe: Mr Speaker, proposed amendment — Subclause (4), *delete* and *insert* the following: “(4) Despite subsection (3), the Vice Chancellor shall hold office for a period of four years and is eligible for re-appointment for another term of two years only.”.

Question put and amendment agreed to.

Clause 17 as amended ordered to stand part of the Bill.

Clause 18 – Pro-Vice Chancellor of the University.

Mr Nortsu-Kotoe: Mr Speaker, amendment proposed, *delete* and *insert* as follows:

18. (1) The University shall have Pro Vice-Chancellors.

(2) The Council shall appoint the Pro Vice-Chancellors for the University in accordance with the Statutes of the University.

(3) A Pro Vice-Chancellor shall hold office for a period of three years

and is eligible for re-appointment for another term only.

(4) A Pro Vice-Chancellor shall attend a meeting of the Council, but shall not vote.

(5) A Pro Vice-Chancellor shall be assigned duties that the Vice-Chancellor may determine.

(6) A Pro Vice-Chancellor shall perform the functions of the Vice-Chancellor, where the Vice-Chancellor is absent.

(7) In the event that the Vice-Chancellor and the Pro Vice-Chancellor, where there is only one Pro Vice-Chancellor, are both absent or otherwise unable to perform the functions of their offices, a Provost shall act in their stead for such period as the Council may determine.

(8) The University Council shall by Statute provide for the order of acting where there is more than one Pro Vice-Chancellor.

(9) A Pro Vice-Chancellor shall, before assuming office, take and subscribe to the Official Oaths specified Schedule.

Question put and amendment agreed to.

Clause 18 as amended ordered to stand part of the Bill.

Clause 19 ordered to stand part of the Bill.

Clause 20 — Composition of the Academic Board.

Mr Nortsu-Kotoe: Mr Speaker, for clause 20, we have 20 amendments. But we have put the entire amendments together and are seeking your leave so that we *delete* the entire clause 20 and then a new proposed amendment will be given out for consideration.

Mr First Deputy Speaker: Yes, please do.

Mr Norstu-Kotoe: Mr Speaker, *delete* clause 20 and *insert* a new clause as follows.

20. (1) The academic board consists of

- (a) the Vice Chancellor as the chairperson
- (b) the Pro-Vice Chancellors
- (c) Provost
- (d) representatives of deans of faculties
- (e) representatives of professors and associate professors.
- (f) director of student affairs
- (g) director of graduate studies
- (h) director, Institute of Distant Learning

- (i) director, University of Information Technology Service
- (j) dean, international programmes officer
- (k) dean, quality assurance and planning office
- (l) dean, Obuasi campus of the university
- (m) the director of finance.
- (n) the librarian of the university.
- (o) the registrar of the university.
- (p) a representative of the students' representative council.
- (q) a representative of the graduate students' association of Ghana.

I so move, Mr Speaker.

8:16 p.m.

Mr First Deputy Speaker: Hon Members, what is happening is that instead of moving individual amendments in items numbered 37 xi, xii, and xiii, all these amendments are taken together, and then the new rendition is as read by the Chairperson of the Committee. I will put a question and ask the Chairman of the Committee to furnish the Clerks-at-the-Table and the draft person with the new rendition.

Question put and amendment agreed to.

Clause 20 as amended ordered to stand part of the Bill.

Mr Darko: Mr Speaker, with respect, on clause 20, I realise that the Registrar was named as the Secretary to the Academic Board, but the Hon Chairperson did not state that. I do not know whether it is an omission or deliberate to take the Registrar's position as a Secretary to the Academic Board. Is it on purpose or?

Mr Nortsu-Kotoe: Mr Speaker, we do not have an objection. Normally, the Registrar is the Secretary to the Academic Board, so we can make a further amendment.

Mr First Deputy Speaker: The draft person should take note of the new rendition so that over here, the Registrar of the University, as the Secretary, should still be maintained. So, the draft persons are currently directed to effect the changes.

Clauses 21 and 22 ordered to stand part of the Bill.

Clause 23 — Registrar

Mr First Deputy Speaker: Chairman, you may move the amendment item numbered xiv.

Mr Nortsu-Kotoe: Mr Speaker, I beg to move, Subclause (3), *delete* and *insert* the following:

“(3) The Registrar shall hold office for a period of four years and is eligible for another term only in

accordance with the letter of appointment and Statutes of the University.”

Mr Anyimadu-Antwi: Mr Speaker, I am happy that the Minister is here. There was a disagreement on this; “The Registrar shall hold office...” Mr Speaker, the main argument that was made by the Committee on Education was that in previous Bills of the various institutions, they had given registrars four years. Even though the institution proposed five years.

I personally requested that if there is any law that bars KNUST from requesting that the Registrar be appointed for five years, especially when they had just appointed the Registrar for five years, then I was of the view that there is nothing wrong because the Registrars normally will start and go through the ranks, and when they are 60 years, they go on retirement.

But I think the Minister was given an assignment to educate us on this. Because it is more or less a policy so far as education is concerned. So, I will not move the amendment now until I listen to what the Minister has to say on this.

The Chairperson will obviously say no to what I am proposing. That is why I wanted to hear from the Minister.

Mr First Deputy Speaker: Minister, Hon Anyimadu-Antwi wants to hear from you.

Mr Haruna Iddrisu: Mr Speaker, at the Committee meeting, we were told

that the Registrar had just assumed office, and his appointment letter gave him five years. So, there was an argument that we could do five years renewable for another five years. But best practice, Mr Speaker, has been for four years. So, we argued that we should settle on four years with an opportunity for a renewal for an additional four years. So, if I can persuade Hon Anyimadu-Antwi, for consistency, that will guide us. Thank you.

Mr First Deputy Speaker: Hon Members, if we look at clause 6 (2), it says:

“the President shall appoint the Chairperson and other members of the Council in accordance with article 70 of the Constitution.”

Now we have always been saying that the appointment should not go beyond the tenure of office of the appointor, and there is a judicial decision mentioned by the Minority Leader on it. So, in view of this, how do we make the tenure of office of the Registrar more than four years?

Mr Anyimadu-Antwi: Mr Speaker, I stand to be educated. I would have thought that it is the Council of the university that is making this appointment and not the President. So, we can go beyond the four years.

Mr Ayariga: Mr Speaker, I do agree with him that there is no law barring or prohibiting us from making a provision like that. But given the number of public universities that we have that are doing the four years, immediately we start, and

give one university five years. All the others are going to come here to amend their legislation so that they can also get five years. That is where the problem would be, and to that we are prohibited from doing so.

Mr Anyimadu-Antwi: Mr Speaker, I did not oppose the amendment, so I am educated.

Mr Shaib: Mr Speaker, I usually agree with the Majority Leader, but at this point, I want to be at variance with his argument. He argues that the usual thing is four years; if you look at the object of the Bill, it is to transform and make things new, and if KNUST will be the platform for us to have this kind of transformation, then we should start with KNUST. We should start with the five years. Give the people an opportunity. In fact, it is even better for them to stay longer than the presidents.

Mr First Deputy Speaker: Yes, can we be guided by the other university Bills that this House has passed? What is the tenure of office?

Mr Shaib: Mr Speaker, that is exactly the point. Maybe the other Bills we have passed, we did not take into consideration the new ways of doing things —[*Laughter*]

Mr First Deputy Speaker: Minister, do you want to reset the tenure of office of the registrar's office as it is in other places?

Mr Shaib: Mr Speaker. I did not want to use that word. But since you have used

it, I adopt it wholly. Per what you said, we are taking a cue.

Mr First Deputy Speaker: But you are also free to quote the words.

Mr Shaib: Mr Speaker, reborn.

Mr First Deputy Speaker: Hon Chairman of the Committee, as part of resetting —

Mr Nortsu-Kotoe: Mr Speaker, this issue was debated for a very long time at the Committee level. Some of us in 2017, when this new tenure of office was introduced, we were against it because it was going to push some people out of business at a very young age. Assuming a Registrar finishes his two terms at the age of 45 or 50, what is he going to do again? So, we argued that there was no need for putting term limits on the registrars and directors of finance because they will be going through the ranks until they reach 60 years. But we are not listened to.

At the Committee meeting last Monday, we appealed to the Minister that, as part of the resetting agenda, he should take a second look at these provisions so that we can do something about them.

8:26 p.m.

Mr First Deputy Speaker: So, it will come consequentially in all university bills. Very well.

Yes, Hon Anyimadu-Antwi?

Mr Kwame Anyimadu-Antwi: Mr Speaker, I had moved away, but the reasoning of the Chairperson of the Committee, four years back, I think, is the same reasoning. When I raised it, the Chairperson said that, at that time, the then Minister said that that was the policy. That was why I deferred to the Minister to find out if he is still going by that policy. Because no law bars the University from granting its employees five years. Especially when there are young men who start their career and go through the ranks, and may even end by this clause of giving them four years. They may even be at 50 or 55 years, and they cannot continue with their profession and they have to sit home.

So, to me, it is not fair for any person that will go through the ranks and rise to the top. And that is why I am of the view that if the other universities come and there is no law that we should not give the registrar and the finance director, that we will be considering very soon—So be it.

Because there is no law that is barring it. Somebody starts as an accounts clerk and gets to the level of the finance director of the university, and probably he is about 55 years, but because he has served two terms, he has to sit at home or find another job. That is not fair. But if the Minister thinks that—

Mr First Deputy Speaker: Let me hear from the Prof Hamza.

Prof Hamza Adam: Thank you, Mr Speaker.

I appreciate the angle Hon Anyimadu-Antwi is coming from. But the same thing applies to the vice chancellors. Now you have people becoming vice chancellors at even 45, and mandatorily, they are supposed to serve for four years and another four years. When they are done, they go back to faculty and then be given another task, director of something or just stay as an ordinary lecturer and contributing to the academic work. So, the same thing can be applied to that of the registrar. I do not think that we need to insist that they should go terminal. No, they can be repositioned in another office to work in the office as a registrar.

Mr First Deputy Speaker: So, you have been a university lecturer. After the eight years term, what would a registrar be doing?

Prof Hamza Adam: The registrar can be given a faculty to manage. We normally have colleges. So, you can go back and be a college registrar or a faculty registrar, and then you do not necessarily have to stay on. Otherwise, those who are also climbing the ladder, so many of them, when will they get to that point? You do that and they do not have the opportunity to rise to the rank of a registrar. So it is for good reasons that it is been crafted this way.

Mr First Deputy Speaker: Hon Members, what is the sense of the House?

Yes, Hon Ebenezer Oklety Terlabi.

Mr Ebenezer Oklety Terlabi: Thank you, Mr Speaker.

Mr Speaker, the fact is that the registrar is appointed. The registrar was appointed as a staff of the university, rose through the ranks to become the registrar. There is a designated position that person had before becoming the registrar. So, at the end of the day, if your term ends, you go back. If it is—*[Interruption]*— Yes, not deputy registrar, but the university system has— So, I mean, like the vice-chancellor, when you finish, after your term, you go back to teach.

Mr First Deputy Speaker: Yes, if I understand, let us say if A should get to the position of the registrar at the age of 30 years, we need to avoid a situation where A may be a registrar for another 30 years.

Mr Terlabi: Mr Speaker, it is not possible.

Mr First Deputy Speaker: Yes, so that is what we are trying to guard against by limiting the tenure of office of the registrar. That is my understanding.

Mr Terlabi: Mr Speaker, unless the registrar is appointed from somewhere, otherwise going through the ranks to become—sometimes it is the case that the person should be of an age that he or she can have two terms. It is part of the conditions. Before the registrar is appointed—

Mr First Deputy Speaker: No, because Hon Anyimadu-Antwi is saying that the tenure of office of the registrar should be endless. Hon Anyimadu-Antwi, is that not what you are saying?

Mr Anyimadu-Antwi: Mr Speaker, like all other employees, a lecturer would be a lecturer.

Mr First Deputy Speaker: Yes, until you attain the age of 60 years.

Mr Anyimadu-Antwi: Until you attain 60 years.

Mr First Deputy Speaker: Yes, I agree. That is why I am of the view that—I am just creating a hypothetical situation whereby one can get to the position of the registrar at the age of 30 years. So, it means when you get there at the age of 30 years, the next 30 years, you will be the registrar.

Mr Anyimadu-Antwi: Mr Speaker, I think you are buying my argument.

Mr First Deputy Speaker: No, by what you are saying. So, it is possible for the person to be a registrar for the next 30 years.

Mr Anyimadu-Antwi: Mr Speaker, in this case we are saying that we do not want to truncate somebody's career. We do not want to truncate because if it is five years that is proposed by the university and the person is young enough and has risen through the ranks from assistant registrar to deputy registrar and now a registrar and is of a young age, let him continue for five years. If he gets two terms, that is fair, and then he goes off. Otherwise, a lecturer—

Mr First Deputy Speaker: So, you are proposing that the tenure of office

should be five years instead of four years.

Mr Jerry Ahmed Shaib: Mr Speaker, if he is basing his argument on the five-year term, I agree with him. For whatever it is worth, there should be some timelines. If he is talking about the person's career being truncated, I do not agree. What is President Akufo-Addo's position now? If you lose your opportunity, you have lost it. You go back. President Mahama lost it, went back, and he has come back again. One cannot say that because one is 30 years, we should keep the person there for the period that the person wants. There should be some time limits. You can actually come back as vice chancellor.

Mr First Deputy Speaker: Another question is that if all others are having a four-year tenure of office, why do we treat the registrar separately?

Mr Shaib: Yes, I agree. But, Mr Speaker, that is where the chain can start. We can look at that.

Question put and amendment agreed to.

Clause 23 as amended ordered to stand part of the Bill.

Clause 24 — Director of Finance

Mr Nortsu-Kotoe: Mr Speaker, amendment proposed, Subclause (3), *delete* and *insert* the following:

“(3) The Director of Finance shall hold office for a period of four

years and is eligible for another term only in accordance with the letter of appointment and Statutes of the University.”

Question put and amendment agreed to.

Clause 24 as amended ordered to stand as part of the Bill.

8:36 p.m.

Clauses 25 and 26 ordered to stand part of the Bill.

Clause 27—Funds of the University

Mr Anyimadu-Antwi: Mr Speaker, I seek your direction. There is no further advertised amendment, and I was wondering if we could take the clauses together. In view of the judgment of the court, I do not want to go there. But if we put them together, I think we would have satisfied the legislative requirements.

Mr First Deputy Speaker: Hon Members, let me remind you of the case of *Ezuame Mannan v Attorney-General & Speaker of Parliament*; the circumstances under which the Supreme Court ordered Section 43 of the Narcotic Control Commission Act to be expunged. It is for that reason that Parliament will have to go through the pain to take the provisions one after the other.

Clause 27 ordered to stand part of the Bill.

Clause 28—Borrowing Powers

Mr John Darko: Mr Speaker, I would like to seek clarification from the Chairperson of the Committee. Clause 28 says, “subject to Article 181 of the Constitution...”, but Article 181 deals with parliamentary approval for loans that the Government is going to secure. I want to find out from the Chairperson if it is the intention of the proposers that when a university is seeking a loan, the university will have to come for parliamentary approval.

Mr First Deputy Speaker: Hon Member, these are statutory universities. So, if you are engaging in an international loan agreement, the law says the loan agreement, through the Minister for Education, must come to this House for approval. That is why it says subject to Article 181, which means that those are the conditions that apply in Article 181 and that of the Public Financial Management Act 2016, Act 921, under which the university may borrow money.

Mr Darko: Mr Speaker, with respect, this provision is not talking about international business transactions. It says that if a person is seeking a loan, the loan can be domestic. It does not have to be international in nature. So, I want to find out if, for instance, the University is seeking a loan of about GHC100,000 from Barclays Bank, is it the case that the University comes to—

Mr First Deputy Speaker: Hon Member, if an institution is seeking a loan internally and it is not an international agreement, does Article 181 apply?

Mr Darko: Mr Speaker, my question to the proposers is to clarify Article 181—

Mr First Deputy Speaker: That is why I am giving you the clarification that this particular constitutional provision would apply strictly based on what the Constitution says. Once it is an international loan agreement, the law requires that Parliament approve it. So, in the same way, that is why it is subject to Article 181 and the Public Financial Management Act. It means that the conditions in those laws would apply to the University.

So, once Article 181 does not require you to seek parliamentary approval in taking loans from Barclays Bank internally, it will not apply here.

Mr Darko: Mr Speaker, I am not here to argue with you. My question was to the proposers to clarify that for us.

Mr First Deputy Speaker: Yes, that is why I am giving you the clarification. This provision is consistent across all the University Bills we have passed in this House. It is very consistent. Even the rest of the provisions are just replicas of the provisions in other University Bills that we have passed.

Clause 28 to 34 ordered to stand part of the Bill.

Clause 35—Convocation

Mr Haruna Iddrisu: Mr Speaker, if I may indulge you to look at clause 20

again. It is on convocation. Every university benefit from its experience hands. So, in clause 20, there should have been a new sub-clause. At least four members elected by convocation in accordance with the status of the University. I beg to get the Chairperson to support that amendment.

There is a convocation that we may approve under clause 35. But in clause 20, we should have provided for convocation to be part of the academic board. Every university nominates a number of people, but the number was nine in the original Bill. But because they have picked heads and deans from the various faculties, it is better we reduce the nine to four. I so submit.

Mr First Deputy Speaker: I have in my hand the University of Ghana Act, 2010. Is that the provision in the University of Ghana Act, 2010? If no, what is the reason for your new insertion? At least for consistency.

Yes, Hon Minister?

8:46 p.m.

Mr Haruna Iddrisu: Mr Speaker, I will yield to the Chair.

Clause 35 ordered to stand part of the Bill.

Clause 36 — Matriculation

Mr Darko: Mr Speaker, if you look at clause 36(2), it says that the university shall not permit a student who fails to sign the matriculation register to

graduate. I think that if somebody fails to sign the matriculation register, stays in the school for four years and at a time of graduation, the person is not allowed to graduate, it would be a big problem for such a person. So, I will propose that if the person fails to sign the matriculation register, he is not even allowed to register to start the academic year. I will suggest a rendition to the Committee if they will consider it. Mr Speaker, with your permission.

Mr Nortsu-Kotoe: Mr Speaker, it is only when a person goes through matriculation and signs the register to be recognised as a student. So, if one fails to do so, one can go through the course for three or four years, but once one has not signed the matriculation register, one cannot graduate. Mr Speaker, I appeal to the Hon Member to abandon his position.

Mr First Deputy Speaker: Hon Members, if we look at clause 31 of the University of Ghana Bill, clause 31(2), this is the way they put it. “A student who fails to sign the matriculation register may be prevented from graduating by the university”. This is University of Ghana Act 2010 (Act 806). It is a standard practice at our universities.

Mr Darko: Mr Speaker, with respect, even in the University of Ghana Act, it says “may be”. We are in 2025, this is 2010. We are progressing as a nation. This particular Bill says, “...shall not permit a student who fails to sign the

matriculation register to graduate.” Now my point is, why do we allow— Yes, a person fails to sign a book. The person pays school fees for four years, and at the end of the four-year period, that person may have a First Class, but the person is told that because they failed to sign the matriculation register, they will not be permitted to graduate.

Mr First Deputy Speaker: Hon Member, I believe strongly you know the principle in *MacFoy v. United Africa Company Ltd*, Lord Mansfield. You cannot put something on nothing and expect it to stand. Once you fail to sign the matriculation, are you a student?

Mr Darko: Mr Speaker, I think as a House, we are parents here. We are representing children who may genuinely fail to sign a matriculation register. Are we saying that we should allow this person to suffer for four years, and at the end of the four years, we tell this person that you cannot register. I think that we need to be more humane than that. At best —

Mr First Deputy Speaker: Hon Member, how on earth should you be excused as a student who attended the school for three years without signing the matriculation register?

Mr Darko: Mr Speaker, they either ask me to withdraw during the first semester or at best, make it conditional. Or let us say “may”, “the university may” so that the university will have the option. The University of Ghana rendition which you referred us to— But in this particular case, it is mandatory. So

if it goes this way, when a student fails to sign the matriculation register, the person is doomed. Come on. We cannot be doing this to ourselves. We are representing children. My friends over there should not pretend that because this is coming from this Side, they are going to oppose it. This is right for all of us. It is right for all of us. Mr Speaker, they need to accept it.

Mr Vincent Ekow Assafuah: Mr Speaker, I think this is a very sensitive issue. As I always say, when we come here, we are the representatives of the people. We cannot afford to fail the people. So, when there is a clause that has been inserted in an important Bill like this, it is important that we scrutinise it very well. To say that a student will not be allowed to graduate just on the mere basis that that student failed to sign a matriculation register cannot be acceptable. I am of the opinion that we can have lesser punishment for such students or even allow the students to be heard. In most instances, these students will not even be heard.

Mr First Deputy Speaker: You say we should allow the students to—

Mr Assafuah: To be heard, to give reasons as to why they failed or they were not able to sign the matriculation register. Mr Speaker, we are begging you, and I am begging my Colleagues. To say that a student will not graduate because he failed to sign a matriculation register is not acceptable. I am also not saying that if you failed to register, it is right. There can be a lesser punishment

for such students to be able to graduate. Thank you very much.

Mr Clement Abas Apaak: Mr Speaker, it is important we understand that the university is an institution with rules and regulations, traditions and culture. Not signing the matriculation book is inexcusable. That is what makes you a student. It is not the case that the student has only one day. If a student is admitted to pursue a four-year degree programme, and for the whole four years, they cannot find time to go and sign the matriculation book, they clearly do not deserve to be a student. We cannot encourage indiscipline. We must encourage order and responsibility.

Mr Speaker, this cannot be negotiable. If you cannot sign a matriculation book for four years, you clearly do not deserve to be a student. We should not quibble over this.

Ebenezer Okletey Terlabi: Mr Speaker, before one signs the matriculation register, they should go through orientation. During the orientation, they are taken through the rules and regulations. If you do not sign, it means you are not recognised as a student to start with. You are not; you do not exist. It is mandatory. As Hon Apaak said, it is not just a year. If you are taking a four-year course, and for the four years, you do not remind yourself to go and sign, it means that you do not exist in a university. Thank you.

Mr Darko-Mensah: Mr Speaker, nobody is encouraging indiscipline on campus, but this would definitely go against the right to Education. If the

universities are minded to collect school fees every term, let students write exams, enter their GPA and then tell them that because they have not signed, they are not going to be awarded certificate, I beg to differ. I believe that the word should be ‘may’, and the university should find a way to get them to sign before they collect their final certificates.

I believe that the word should be “may”, and the university should find a way to get them to sign before they collect their final certificates. But to deny them entirely after four years of learning is not fair and is not proper. The words should be “may” so that at the end of their four years, if they have not signed, they sign for it. Even before certificates are collected from the stores, we sign for it. People are in school, they go through the orientation, but they still do the bad things and they are sacked.

8:56 p.m.

Mr First Deputy Speaker: I think the proposal is to use the word “may” instead of “shall”.

Mr Dafeamekpor: Mr Speaker, the matriculation is an oath-taking ceremony. So, the signing of the register is only at the tail end of the ceremony. If some may recall, in the University of Cape Coast, when we matriculated in 1997, there was an incident. A student got sick and could not complete the process. When a person is admitted to the university, an index number is issued. Once the person receives the admission letter and accepts that admission, the person is in the university. So, the

matriculation ceremony normally takes place after about a month. The person would have attended classes, taken courses, gone through the orientation. In some cases, the person would have even taken some interim assessment tests. So, once the person has his or her index number, that concretises their place in the school.

Now, the non-signing of the matriculation register should not be fatal. So, in the instance that I am citing, the student was asked a year later to regularise that in the preceding year when they matriculated. So, we should be careful how we do it, because it is a process.

Mr First Deputy Speaker: Hon Dafeamekpor, when you enter the school, at what point do you graduate?

Mr Dafeamekpor: It depends on the duration of the course.

Mr First Deputy Speaker: So, what this law is saying is that it has taken care of your concern. It does not mean that if you do not sign it on the day you did the matriculation, you cannot graduate. You have all the period. It is at the point of graduation that if it is established that throughout the period, you did not sign the matriculation, that is where this particular clause will kick in. So, when you are sick, but you can attend lectures and pass your examinations for a whole year, provided you are able to sign it before graduation, you will be permitted to do so. It is only when you fail to do it before graduation—

So, when I look at it here, there is no date that is stated. But they say the University shall not permit a student who failed to sign the matriculation register to graduate. At this particular point, people who are asking of the time, Lord Dennis said the law is about common sense and common sense is the law.

Now if we are talking about time frame, this one says “the university shall not permit a student who fails to sign the matriculation register to graduate”. So, at the point of signing the matriculation register at the beginning and then the point of graduation, for that whole period, my understanding is that you have to have it to sign your matriculation form. So why are we asking for time?

Mr Daniel Nana Addo-Kenneth: Mr Speaker, our challenge is the use of the word “shall”. The use of the word “shall” should be amended because it makes it a bit mandatory and automatic. But Mr Speaker, you guided us by reading the University of Ghana Act, which used “may”, meaning that at least the university has some room to—

Mr First Deputy Speaker: Sometimes when the guideline is given, I am not the one to be proposing the amendment. Somebody should own it and propose the amendment, then I can put a question on it. Yes, but in this case, you choose to argue instead of making the proposal.

Mr Addo-Kenneth: Mr Speaker, respectfully, I will see to the Hon Member to make his amendment and then we will continue.

Mr First Deputy Speaker: So, make the amendment, and let me put a question on the amendment. At the Consideration Stage, you do not argue, you propose an amendment.

Mr Darko: Thank you very much, Mr Speaker, for your guidance. The proposal is that “the university may not permit a student who fails to sign the matriculation register to graduate”.

Mr Anyimadu-Antwi: Mr Speaker, I beg to oppose this proposed amendment, because in the university tradition, if a person does not matriculate, he is not recognised as a student. Now, why would somebody who had not been recognised as a student be permitted to graduate? In the instance that the Majority Chief Whip cites, at the end of it, when somebody got sick, an arrangement was made for the person to sign the matriculation register. It is a tradition of the university. If a person does not matriculate, it is a serious thing. A time to be born and a time to die.

These ceremonies are important, and dear to the university. This is because before a person can sign the university matriculation register, the person would have been in the school for about one month, go through orientation and what not, and the person admits to be a student. If we are within the university community, we would not play with this. Moreover, this proposal had come from the university.

Mr Speaker, unfortunately, at the Committee stage, this did not come up for discussion. I do not think that the Minister here would be comfortable to

say that they are changing what the university has proposed. This is the time that I want to hear from the Chairman of the Education Committee on what they have done for all the other universities. Did they ever say that if somebody fails to matriculate, the person can graduate? Because that is not a tradition of the universities. Thank you, Mr Speaker.

Alhaji Habib Iddrisu: Mr Speaker, I want to appeal to my Colleague, Hon John Darko, to abandon his proposed amendment, because our senior Colleague here is already against it.

Mr Speaker, many a time, the Supreme Court interprets “may” to mean “shall”, and by application. If the universities are hell bent on doing this, whether we give them “may” or “shall”, they will still interpret it to mean shall. So why do we not just leave it as “shall”, and then we can then continue? Because it is a requirement. Things that are a requirement cannot be substituted with “shall”. So, I will impress on him to abandon this, then we can move on.

Mr Assafuah: I want to avert our minds to Article 11 of the Constitution, which is supposed to be the primary sources of laws in Ghana. It is argued that it is supposed to be the hierarchy of laws in Ghana. If that is the case, when we check Article 11 (1), it places the Constitution as the highest source of law for us as a country. The Act of Parliament follows as the next source of laws for us as a country.

Mr Speaker, if in the 1992 Constitution, it is demanded that

education is a right, how then do we use an Act of Parliament to amend a constitutional right? How then do we use an Act of Parliament, or if we like, a tradition or a guideline, to amend the 1992 Constitution of the Republic of Ghana?

9:06 p.m.

Mr First Deputy Speaker: Hon Member, I think you got the constitutional interpretation very wrong. You got it all wrong. There is no absolute right. Rights are subject to some conditions, and the beginning of your right may mark the end of somebody's right. So, we live in a society, and the society is governed by law.

Nobody is taking your right to be educated away from you. But the condition is that, if you want to access education, you have to apply to enter the university. You cannot go to the university without an application to say that I have the right to attend university; therefore, I am attending university.

Now, the university is also telling you that for you to go through the university and graduate, you must sign the matriculation form. You would not say that without signing the matriculation form, I am going through the university. No, that right is subject to observance of some rules and regulations. That is why I am saying that you got the interpretation very wrong.

Mr Darko: Mr Speaker, since my senior, Hon Anyimadu-Antwi has

opposed my amendment, I have no option but to stand it down.

Mr First Deputy Speaker: Hon Members, if you take a look at the recent Bill in 2019, Simon Diedong Dombo University of Business and Integrated Development Studies Act, 2019 (Act 1001), Section 34(2) says:

“(2) A student who fails to take the Matriculation oath or sign the Matriculation Register shall be prevented by the university from graduating.”

This is the 2019 law passed by this House.

Clauses 36 to 42 ordered to stand part of the Bill.

Clause 43 — Public Private Partnership Agreement

Mr First Deputy Speaker: Chairman of the Committee, you may move your last amendment.

Mr Nortsu-Kotoe: Mr Speaker, I beg to move, *delete* the clause.

Question put and amendment agreed to.

Clause 43 *deleted*.

Clause 44 — Interpretation

Mr Nortsu-Kotoe: Mr Speaker, there are no advertised amendments, but if you go to page 33, Pro Vice-Chancellor means the person. We want to *delete* “the” and *insert* “a” to read: “a person appointed”. Thank you, Mr Speaker.

Question put and amendment agreed to.

Mr First Deputy Speaker: Hon Members, then that should apply consequentially to the Vice-Chancellor. So, drafters, it should apply consequentially; the deletion of the indefinite article.

Clause 44 as amended ordered to stand part of the Bill.

9:16 p.m.

Clauses 45 and 46 ordered to stand part of the Bill

The Schedule ordered to stand part of the Bill.

Mr Haruna Iddrisu: Mr Speaker, I am still seeking your leave and indulgence to re-look at clause 20 on the composition of the academic board. Originally, there was proposition for nine members to be elected by convocation in accordance with the status of the University. I am reducing that nine, if I have your leave and the support of the Chairperson of the Committee, to at least four members elected by convocation.

Mr Speaker, I have referred to an Act. I think the University of Ghana Act had representation from convocation on the academic board, save that they had to divide it into teaching and non-teaching. So that is why I am reducing the number from nine to four, so that at least some senior members would serve on the

academic board. I so submit that we re-look at clause 20.

Mr First Deputy Speaker: So, you are proposing amendment to the clause 20(k), that at least nine members elected by convocation should be reduced to four members elected by convocation in accordance with the statute of the University.

Hon Minister for Education, I am referring you to section 19, not (k), section 19(i) of the S. D. Dombo University Act, 2019. It also says, “nine other members of the University, five of whom are non-teaching staff, elected by convocation in accordance with the statute of the University”. Now, the University of Ghana Act, the paragraph (k), also says “at least nine members elected by convocation in accordance with the statute of the University”. So, why then are you reducing this one to four?

Mr Haruna Iddrisu: Mr Speaker, at the Committee level, the Vice-Chancellor and the Chairman of Council attended and they said Kwame Nkrumah University of Science and Technology had a peculiar case. So, they gave us provosts and then deans, unlike what pertains in other Universities. So, if you have no objection, I can still say five instead of four, but nine, you do not want the academic board—

Mr First Deputy Speaker: But in the two samples that I have given you, it all sums up to nine.

Mr Haruna Iddrisu: Mr Speaker, in the earlier submissions by the Chairperson, he is taking care of heads of departments who may be qualified to be members of convocation. So, I will still go with the four. Thank you.

Mr First Deputy Speaker: You see, in most of the Bills, it is from (a) to (k). I think it is a repetition. So, we are just lifting all the provisions. I am a student of consistency, so to depart from the laws that we have established, I need to be convinced, but it is for your consideration, Hon Members. If you are convinced that in all other universities, it is nine, but for Kwame Nkrumah University of Science and Technology, we should limit it to four or five, we may do so. But I hope the proposed amendment is abandoned.

Mr Haruna Iddrisu: Mr Speaker, I would propose that for the (k), 4 members elected by convocation in accordance with the statute of the university are so moved. Thank you.

Mr First Deputy Speaker: It is for the consideration of the House. So, in effect, you are reducing the total number by five. Very well. He is the sponsor.

Question put and amendment agreed to.

Mr First Deputy Speaker: So, we then move to the Long Title.

The Long Title ordered to stand part of the Bill.

Mr First Deputy Speaker: Hon Members, this brings us to the end of the Consideration Stage of the Kwame Nkrumah University of Science and Technology, Kumasi Bill, 2025.

Hon Members, do we take procedural Motion numbered 38? Yes, Minister for Education?

9:26 p.m.

MOTION

Suspension of Standing Order 172(1)

Minister for Education (Mr Haruna Iddrisu): Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 172(1) of the Standing Orders which requires that when a Bill has passed through the Consideration Stage, the third reading thereof shall not be taken until at least one sitting day has elapsed, the Motion for the Third Reading of the Kwame Nkrumah University of Science and Technology, Kumasi Bill, 2025 may be moved today.

Chairman of the Committee (Mr Peter Kwasi Nortsu-Kotoe): Mr Speaker, I beg to second the Motion.

Mr First Deputy Speaker: Yes, Hon Assafuah?

Mr Vincent Ekow Assafuah: Mr Speaker, with your leave, I understand that Order 171 should have been moved even before the substantive Motion is moved. I want to make another

amendment with respect to clause 38, and if you will give me the opportunity to do that respectfully.

Mr First Deputy Speaker: So you are taking me back to clause 38 after I put a Question on the Long Title, and said we have come to the end of the Consideration Stage, for which reason the mace has been tilted. You want the mace to go back to its tilted position before—

Mr Assafuah: I was just asking for your leave.

In fact, if we check Order 171, it says that before the Second Reading, any Member who wants to make an amendment could do so before the Motion is done.

Mr First Deputy Speaker: Second Reading? Do you know what a Second Reading is?

Mr Assafuah: Sorry, the Second Consideration. I am appealing to you to grant me leave.

Mr First Deputy Speaker: Look at it very well. Before the Motion for Third Reading is about to be moved, a Member can rise to say that he wants to take the Bill through Second Consideration. That is the appropriate time. But now we are moving a procedural Motion to get to the Third Reading. Yes?

Mr Anyimadu-Antwi: Mr Speaker, let me assist my Colleague. I think the

way and manner in which you requested the Minister did not give him the chance to invoke Order 171. But Order 171 says,

“Where a Member intends to delete, amend or introduce a provision in a Bill which has passed through the Consideration Stage, the Member may, immediately before a sponsor rises to move the Motion for the Third Reading of the Bill, move that the Bill passes through a second Consideration either wholly or in respect of a particular part or parts of the Bill or some proposed new clause or new Schedule.”

Mr First Deputy Speaker: Hon Anyimadu, what Motion is being moved? Motion numbered 38 is on what?

Mr Anyimadu-Antwi: Mr Speaker, this is why he is seeking your leave. He is out of time because the Minister moved a Motion.

Mr First Deputy Speaker: Is it on the Third Reading? That is why I am saying that if we get to the Motion for the Third Reading by the provision that we have read in the Standing Order, he can get up to move, and if it is seconded, then we take the Bill through Second Consideration.

Mr Anyimadu-Antwi: Mr Speaker, you are right. That is why he is seeking your leave, as he was out of time. The Minister was quick to move his Motion.

Mr First Deputy Speaker: No, the Minister did not move the Motion. There

is a procedural Motion, and if that Motion is carried, we cannot proceed to the Motion for the Third Reading. When the Motion is moved for Third Reading, the Member's right accrues. But when we are taking the procedural Motion, it is not the Third Reading; you cannot do the Second Consideration that you are contemplating.

Mr Anyimadu-Antwi: Very well, Mr Speaker. I am guided.

Mr First Deputy Speaker: Hon Habib, what mischief do you still want to cause?

Alhaji Habib Iddrisu: Mr Speaker, by the rules, you are right that the time that we were supposed to raise—Even though many people do not understand our Standing Orders and how Parliament operates—You are right, by procedure, and under Order 171, he should have been recognised before they moved for the Third Reading.

But he is saying that you hardly laugh, and today, you are smiling. So, the fact that today you are in a very good mood, and by where you sit now, Mr Speaker, we are masters of our own rules. So, it should not be recorded that a Member still had issues with the Bill, and it was rushed through the Third Reading.

Mr First Deputy Speaker: Yes, I agree with you, but the point I am making that you probably are not getting is that we have to pass through Motion numbered 38 before we can proceed to the Third Reading. So wait, after the

Motion numbered 38 is moved, and before we get to Motion 39, then the Member can rise to take the Bill through the Second Consideration.

Alhaji Habib Iddrisu: Mr Speaker, you are right. We can proceed.

Mr Annoh-Dompreh: Mr Speaker, with respect, in this House, I, on many occasions, have referred to you when it comes to procedure. But I intend to learn, and I want to seek your guidance. Order 171(1) says that,

“Where a Member intends to delete, amend, or introduce a provision in a Bill which has passed through the Consideration Stage, the Member may, immediately before a sponsor rises to move the Motion for the Third Reading...”

In fact, Hon Vincent caught your eye when the Hon Minister for Education rose to move the procedural Motion. And in the procedural Motion, there is a Third Reading.

Mr First Deputy Speaker: No, after the procedural Motion, Motion 39, the Third Reading will remain. You cannot say procedural Motion is a Motion for Third Reading. A Procedural Motion is different from a Motion for Third Reading. It is not the same. Let me put a Question on the procedural Motion; then the Member's right will accrue.

Question put and Motion agreed to.

Resolved accordingly.

We now move to Motion numbered 39, which is the Motion for Third Reading. So, if the Member wants to exercise his right, this is the time for the Member to exercise the right. So Hon Vincent Assafuah, this is the time for you to take the Bill through Second Consideration.

Very well. Minister for Education, you may move the Motion for Third Reading.

BILL — THIRD READING

Kwame Nkrumah University of Science and Technology, Kumasi Bill, 2025

Minister for Education (Mr Haruna Iddrisu) (MP): Mr Speaker, I beg to move:

That the Kwame Nkrumah University of Science and Technology, Kumasi Bill, 2025, be now read the Third time.

Mr Nortsu-Kotoe: Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

The Kwame Nkrumah University of Science and Technology, Kumasi Bill, 2025 — *read the Third time and passed.*

9:36 p.m.

Mr First Deputy Speaker: Yes, Majority Leader, any indication?

Mr Ayariga: Mr Speaker, the Minister for Sports and Recreation—

Minister for Sports, if we can withdraw and relay your Bill.

The Committee worked on it extensively, and there were a lot of amendments. If the Bill was brought back to propose those amendments, it would take a very long time. So, the usual practice is to withdraw it, incorporate the amendments, and relay it, so that we can go through Consideration Stage quickly.

Mr Annoh-Dompreh: Mr Speaker, the application of the Majority Leader is loud and clear. However, this tendency of printing *Order Paper Addendum* is becoming one too many. I am an environmentalist. They printed *Addendum Paper 2*. There is still space, they could have added *Order Paper Addendum 3*'s contents to it, but they went ahead to print *Order Paper Addendum 3*. Why? Heaven knows the number of *Addendum Order Papers* we are going to receive before we close today.

The application of the Majority Leader is that the Minister for Sports and Recreation intends to withdraw his Bill for a reason he has spoken to. Well, in line with Standing Order 173, he knows he must do it with the leave of the House. Even though the Majority Leader has said in part, reasons for the withdrawal, the Minister must carry the House along. We need to know why the Minister is withdrawing the Bill. Mr Speaker, he comes to the House and goes. He has a Bill, and he will not engage us. Because he has qualified us for the World Cup, he thinks he is on top of the world. He

comes to the Chamber and he goes just like that. He must engage. Alright, he may go ahead and do the withdrawal, but he must let us know why they are withdrawing the Bill. Because he needs to carry the House along. He must give us good reasons for which he is withdrawing this Bill.

Hon Minister for Sports and Recreation, have you engaged your Ranking Member? The Hon Ranking Member is not aware. Nobody here is aware except the Majority Chief Whip. He thinks the House is only one-sided. He must engage us. Come to this Side and engage us. Otherwise, we will not allow you to withdraw. The President is watching you. If you are not lucky, you will be reshuffled. Be warned.

Mr First Deputy Speaker: Hon Minority Chief Whip, you rightly refer to the correct Standing Order. That is Standing Order 173, which reads:

A sponsor may withdraw a Bill by leave of the House.

- (2) Where a sponsor of a Bill withdraws a Bill and intends to reintroduce the Bill, the provisions of Order 159 shall apply.”

Order 159 is about the process of reintroducing or introducing a Bill. Where is it indicated that the Minister will have to carry the House along?

Mr Annoh-Dompreeh: Mr Speaker, I will not debate with you. Look at the first part of the Order 173. The 173 says, with the leave of the House. Mr Speaker, may

I seek your interpretation of that? The leave of the House means we should have an input.

Mr First Deputy Speaker: I brought a Bill before the House and I said I am no longer interested in pursuing that particular Bill. Therefore, I am withdrawing it. I am the one who brought the Bill, and I said I am no longer going to do it, so I am withdrawing it.

Mr Annoh-Dompreeh: Mr Speaker, the second part says that the sponsor “intends”. How do I judge the intention of the sponsor of the Bill?

Mr First Deputy Speaker: By moving that he wants to have the Bill withdrawn.

Mr Annoh-Dompreeh: Mr Speaker, he should proceed and do the needful.

Mr First Deputy Speaker: Very well.

Hon Members, the Minister came to present a Bill to the House. He wants to have that particular Bill withdrawn by the leave of the House. Hon Members, in the absence of any contrary view, the—

Yes, Hon Richard Acheampong, the Minister says he wants to withdraw a Bill. Are you opposed to the application?

Second Deputy Majority Whip (Mr Richard Acheampong): Mr Speaker, I have a different problem. *[Laughter]*

Mr First Deputy Speaker: So, if you have a different problem, carry your problem. Do not bring it to the Minister

who is seeking to have a Bill withdrawn.
[Laughter]

Hon Members, leave is accordingly granted. Minister for Sports and Recreation?

BILL — WITHDRAWAL

Ghana Sports Fund Bill, 2025

Minister for Sports and Recreation (Kofi Iddie Adams) (MP): Mr Speaker, the Ghana Sports Fund Bill, 2025 which was presented on Thursday 11th December, 2025, is withdrawn.

Mr First Deputy Speaker: The Ghana Sports Fund Bill, 2025 presented to this House is accordingly withdrawn. It is also consequentially withdrawn from the Committee.

[Ghana Sports Fund Bill, 2025, withdrawn by leave of the House.]

Mr First Deputy Speaker: Yes, Majority Leader, any indication?

Mr Mahama Ayariga: Mr Speaker, may we take *Order Paper Addendum 3*, and vary the order of Business to present Papers, First Reading of Bills, which is the Ghana Sports Fund Bill, 2025.

Mr First Deputy Speaker: Hon Members, at Commencement of Public Business, Presentation and First Reading of Bills.

BILL — FIRST READING

Ghana Sports Fund Bill, 2025

AN ACT to establish the Ghana Sports Fund, 2025 to provide sustainable funding for sports development in the country and sports for development to provide for the management of the fund and for related matters.

Presented by the Minister for Sports and Recreation (Mr Kofi Iddie Adams). Read the First time; referred to the Committee on Youth and Sports.

9:46 p.m.

Minister for Sports and Recreation (Mr Kofi Iddie Adams): Mr Speaker, I rise to apply that this Bill just laid and referred to the Committee be treated under a certificate of urgency.

Alhaji Habib Iddrisu: Mr Speaker, I do not know any rule of this House that tells the Minister that a Bill should go under certificate of urgency. It can be a Report from a Committee, but the Minister has no right to tell us that he is going to do it under certificate of urgency.

Mr First Deputy Speaker: Hon Member, it is consequent upon the indication from the presenter of the Bill that I can refer the Bill to the Committee to consider whether the Bill is of urgent nature, and should be taken under certificate of urgency. So, it is that application that the Minister is making.

Osahen Afenyo-Markin: Mr Speaker, the Hon Member for Tolon must be understood in context. This Government was sworn into office on the 7th of January. It has been almost a year, so they are left with three years. We know that in this first year, every single Bill that they introduced into this Chamber came with this so-called certificate of urgency.

Mr Speaker, we are concerned, and that is what Hon Habib was trying to draw our attention to. I recall the Ghana Gold Board Act, 2025. Today, the Gold Board is having serious issues. [**Some Hon Members:** Eii!] It is the same way they introduced the Lithium Agreement, they wanted to rush it through, and we told them to take it easy. Today they have withdrawn that agreement.

These are not issues to be taken lightly. We have even been told that the Ministry of Transport is engaging in some transactions of bringing some 300 buses. That transaction never came through Parliament. We are aware that some government officials are in India. Mr Speaker, one day they will come to this Side. They should not worry. No problem. Mr Speaker, I am not a prophet, but I can say on good authority that even their inability to manage their 189 is a clear indication that in the next election they are coming to the Minority side. This certificate of urgency will come back and haunt them.

The Member of Parliament who is the Minister for Sports and Recreation, has a Ghana Sports Fund Bill. His duty is to make the Bill available for proper

scrutiny. He wants to join the certificate of urgency chorus.

Mr First Deputy Speaker: Hon Member—

Osahen Afenyo-Markin: Mr Speaker, let me conclude. I am pleading with the Leader of Government Business. I know, as I have sat in Cabinets where Colleague Ministers would want their Bills to go through Parliament as quickly as possible. But it is the Leader of Government Business alone who will be answerable to posterity. They will ask “who was the Leader of Government Business?” Mr Speaker, the Majority Leader should take my plea on board. At least when the Bill is introduced, Ministers should allow for some scrutiny.

Mr Speaker, this is a serious matter. Every now and then we hear of the public and their views about us. Let us try and limit this. Look at this bulky document from the Accra-Kumasi Expressway Limited, this concessionary agreement. It was introduced in the afternoon under certificate of urgency and we dealt with it.

Mr First Deputy Speaker: Hon Minority Leader?

Osahen Afenyo-Markin: Mr Speaker, I need to finish. Do not cut me. The concerns I am raising are serious concerns.

Mr First Deputy Speaker: I have listened to you enough, so also listen to me.

Osahen Afenyo-Markin: So, you want to cut me off?

Mr First Deputy Speaker: Hon Minority Leader, we have to listen to each other.

Osahen Afenyo-Markin: Mr Speaker, we will not take some irresponsible Backbenchers who— [**Some Hon Members:** Eii!] Yes, I will mention them. I will call them out today. When a Leader is on his feet, it is not their duty to be shouting. You cannot do that.

Mr Dafeamekpor — *rose* —

Mr First Deputy Speaker: The two of you cannot be standing. All of you resume your seats. Hon Minority Leader, with all due respect, resume your seat.

Hon Anyimadu-Antwi, let me hear you.

Mr Anyimadu-Antwi: My issue is on the referral that you made. Mr Speaker, your Committee on Constitutional and Legal Affairs—

9:56 p.m.

Mr First Deputy Speaker: Hon Anyimadu-Antwi, with all due respect, let us deal with the issue. All other Members standing should resume their seats. Let there be order! Hon Member for Kwesimintsim, will you keep quiet?

Hon Member for Kwesimintsim, do you want me to walk you out of the House?

Hon Members, when the Bill was introduced, Hon Habib Iddrisu indicated that it does not lie in the mouth of the Minister to indicate that he wants the Bill to be considered under certificate of urgency. The Minority Leader set in to say that I was not appreciating the angle from which the First Deputy Whip was coming. Hon Members, this is a House guided by rules. I would want us to look at Standing Order 160. With your indulgence, I read —

Mr Ayariga: Mr Speaker, I think the Minority Leader came in on a lighter note. The reason I say so is that we know what we do in this House. This is not a new Bill. It was introduced, and it was referred to the Committee. The Committee worked extensively on it —

Mr First Deputy Speaker: But, Majority Leader, it has gone to the record as if the person presiding did not appreciate it. That is why I want us to look at the issue from the constitutional point of view and the Standing Orders point of view.

Mr Ayariga: Mr Speaker, let me say something so that you can carry that on board. This Bill has already gone to the Committee. The Committee has worked extensively on it. Ordinarily, they would have had to bring it back to us in terms of proposed amendments through the Consideration Stage. Then we would take them one after the other. So, the decision was, let us withdraw it, incorporate all the provisions, and then bring it back.

We all know that normally, when we do that and bring it back, we feel it is alright to take it through a certificate of urgency and then pass it. I think that is the context in which this Bill is being reintroduced, and then the Minister is asking for it to be taken under a certificate of urgency. So, I am pleading with all Sides in the House, let us calm down, let us listen to the Speaker, and let us have this done. It has been a long day; it is 10 p.m., and we still have a few outstanding items to take. So, we are pleading with everybody to calm down and listen to the Speaker.

Mr First Deputy Speaker: Hon Members, Order 160 is on Urgent Bills. It states:

“(1) A Sponsor may submit a Bill to Parliament without publication in the *Gazette* where the sponsor of the Bill considers the Bill to be of an urgent nature.

(2) The Speaker shall refer a Bill to the appropriate Committee for determination of the urgency or otherwise after the presentation and First Reading.”

Therefore, within the meaning of these rules, if the presenter or the sponsor of the Bill considers the Bill to be of an urgent nature and is making that particular indication to enable the Speaker to refer the Bill to the appropriate Committee for determination of the urgency or not, I do not see anything wrong with it. Therefore, the issue raised by the First

Deputy Minority Whip is completely out of order. Consequently, the additional issue raised by the Minority Leader to the extent that the presiding did not appreciate the angle from which the First Deputy Minority Whip was coming is also out of order.

I would therefore refer the Bill to the Committee on Youth and Sports to consider whether the Bill is of an urgent nature or not, and accordingly report to the House. Thank you very much.

Majority Leader, any indication?

Alhaji Habib Iddrisu: Mr Speaker, thank you for your guidance. Majority Leader, if you may indulge me. Some of us, especially me, have been very lucky that I entered this Chamber first as a Leader of Parliament. Mr Speaker, there is a reason for which we have Leadership.

There is a reason for which we have the Majority Leader, the Deputy Majority Leader, the Chief Whip, and two other Deputy Whips, and so be in the Minority, equally to the Speaker having his deputies. Mr Speaker, it is not by accident that this Chamber is in a horseshoe form for us to be able to deliberate on issues. Continued disrespect to the Leadership of Parliament is a disrespect to Parliament itself.

Mr Speaker, when the Majority Leader — we are all Colleagues, everybody has a constituency. This is not a birthday

party that we have been invited to. We are all elected into this House. We know that — [*Uproar*—when the Majority Leader is on his feet, we give him all the necessary attention and we respect him. Since the time we started, it is about 10:00 p.m., the Business we are doing is Government Business, and the Minority have been very cooperative up to 10:00 p.m. So, it is not nice, and it is not good at all—

Mr Speaker, you know in this Chamber, if we want to stand on one Business, we can do that. If we want to move, we will move. So, what I am appealing to the Majority Leader is that he is the Leader of this House — some 10 months ago, we were seated where he is now. Today, we are here. Continued disrespect to the Minority Leadership, especially the Minority Leader, is a serious thing that should not be accepted. We do not want a case where we cannot also control somebody here.

So, I want to appeal to him to talk to our Colleagues at the Back, that when a Leader is on his feet, there is a reason for which they are given that opportunity and for that matter, continued mentioning of names and insults will not help us to project Government Business.

So, Mr Speaker, I want to appeal strongly to the Leader of Government Business and the Leader of this House that we want to help him to prosecute and make sure that Government Businesses pass. We have been doing things, and we are left with about 48 hours to pass the Appropriation Bill. We should not mar the beauty of whatever we are doing.

Mr Speaker, as a Whip — I told Hon Dafeamekpor, I entered here and was trained as a Whip. Part of my job is to step on people's toes, so please, they should not let us start whipping.

I thank you, Majority Leader.

Mr Ayariga: Mr Speaker, can we take *Order Paper Addendum 2*, the item numbered 2, Motion 2.

Mr First Deputy Speaker: Hon Members, *Order Paper Addendum 2*, the Motion numbered 2 on page 1.

Mr Anyimadu-Antwi: Mr Speaker, you gave me the audience. My issue was with the referral. Mr Speaker, the Chairperson of the Committee on Constitutional and Legal Affairs is not here, and I am sure he would have my support for this application. I do not know if the Vice-Chairperson is here.

10:06 p.m.

Mr Speaker, the new rules we adopted, your Committee, the Committee on Constitutional and Legal Affairs, is suffering. No referrals are made to the Committee.

On this particular issue, Mr Speaker, the Committee invited the leadership of the Committee on Constitutional and Legal Affairs to assist, but even that, it was only leadership and therefore, the rest of the Members of the Committee are idling. I remember that the Committee on Education also invited us to assist with the Kwame Nkrumah

University of Science and Technology, Kumasi Bill, 2025 that we have just discussed.

The problem the Committee on Constitutional and Legal Affairs faced was to juggle the two meetings because they were fixed at the same time. And it is not only on this, but this application is to remind the Speaker that all issues that have legal matters must involve the Committee on Constitutional and Legal Affairs. In this instance, if the Speaker is mindful, I will pray that a Committee on Constitutional and Legal Affairs be added to this referral. I pray thee.

Thank you.

Mr First Deputy Speaker: Hon Members, you know the rules are very clear and it gives a clear indication—Hon Members, can we listen to the Speaker in silence?

Hon Members, I indicated several times that it is a gross disrespect to turn your back towards the mace. It does not happen in any Parliament, at least, not for the Speaker, but for the purposes of the symbol of Parliament, you do not turn your back to it in any manner whatsoever. This is not done. We have been flouting this with impunity. Hon Members, we should not be doing so.

Hon Members, the rules are clear and there are clear indications as to which Committee the referral should be made. If there is a legal basis for me to refer the Sports Development Fund Bill, 2025 to a joint Committee on Constitutional and Legal Affairs and the Committee on

Youth and Sports, I may want to be guided. There is no legal basis for doing so. If there is, I want to be guided from the constitutional point of view or from our Standing Orders point of view.

It is out of courtesy that we sometimes ask leadership of the Committee on Constitutional and Legal Affairs to join the Committee and assist them in working on the Bill. So, Hon Members, there is no legal basis on which we can stand to demand that the Bill under reference be referred jointly to the Committee on Constitutional and Legal Affairs and the Committee on Youth and Sports.

So, Hon Kwame Anyimadu-Antwi, all the members of the Committee on Constitutional and Legal Affairs can be a Friend to the Committee. There is no problem about that.

So, we will take the Motion numbered 2 on *Order Paper Addendum 2*. Yes, Chairperson of the Committee?

ANNUAL ESTIMATES, 2026

Other Government Obligations

Chairperson of the Committee (Mr Kwaku Kwarteng): Thank you, Mr Speaker. I rise to *move*:

That this honourable House adopts the Report of the Budget Committee on the allocation of the sum of GHC222,996,911,579.00 for the discharge of Other Government Obligations for the Year ending 31st December, 2026.

Mr Speaker, in doing so, I would seek your leave to present the Report of the Committee. But before I do so, Mr Speaker, I seek your leave again to do some correction on page 3 of the Report of the Committee. On page 3, line 5, Social Benefits and against it, we have some GH¢3.5 billion. The entire line must be deleted so that the lines would sum up to the figure I just mentioned.

Mr First Deputy Speaker:
Correction duly effected.

Mr Kwarteng: Thank you very much, Mr Speaker.

Mr Speaker, having done that, I request *Hansard* to capture the entire content of the Report while I go to the conclusion.

Introduction

The Expenditure Estimates of Other Government Obligations for the 2026 Financial Year were laid in the House on Thursday, November 13, 2025 and referred to the Budget Committee for

consideration and report in accordance with the Constitution and the Standing Orders of the House following the presentation of the Budget Statement and Economic Policy of the Government for the 2026 Financial Year.

The Committee subsequently met and considered the Estimates with the Minister for Finance, Hon Dr Cassiel Ato Baah Forson, Deputy Minister for Finance, Hon Thomas Nyarko Ampem, the Chief Director and other officials from the Ministry of Finance and hereby presents this report to the House pursuant to Order 215(1) of the Standing Orders of the House.

2026 Estimates

A total amount of two hundred and twenty-two billion, nine hundred and ninety-six million, nine hundred and eleven thousand, five hundred and seventy-nine Ghana Cedis (GH¢222,996,911,579) has been allocated to be expended on the under-listed Government Financial Obligations also referred to as Statutory Payments for the 2026 Financial Year.

General Government Services	—	GH¢5,179,177,759
Subsidies on Petroleum Products	—	GH¢70,000,000
Big Push CAPEX	—	GH¢30,000,000,000
Subscription	—	GH¢458,914,788
Contingency Vote	—	GH¢361,622,068
Foreign Loans	—	GH¢3,454,636,802

Annual Estimates, 2026 — Other Government Obligations

Pensions	—	GHC3,647,659,279
Gratuities	—	GHC1,139,893,525
Social Security	—	GHC4,551,432,002
Interest Payments	—	GHC57,711,275,188
National Health Fund	—	GHC11,416,872,023
Education Trust Fund	—	GHC9,872,325,805
Road Maintenance Trust Fund	—	GHC3,006,886,275
Energy Fund	—	GHC33,803,036
District Ass. Common Fund	—	GHC8,769,707,900
Transfer to Nat. Oil Company	—	GHC2,626,603,460
Other Earmarked Funds	—	GHC9,767,461,225
Social Benefits	—	GHC3,510,034,976
Other Expenditures	—	GHC16,228,736,853
Arrears Clearance	—	GHC29,827,345,487
Amortisation	—	GHC24,822,558,105
TOTAL	—	(GHC222,996,911,579)

Attachment

Please find attached as Appendix 1 the detailed assumptions underlying the 2026 Budget Estimates of Other Government Obligations.

**FIRST SCHEDULE**

(Section 1)

Sum of Money to be Issued from the Consolidated Fund for the 2026 Financial Year

Year: 2026

Currency: Ghana Cedi (GHS)

Version 1

	Budget
Social Benefits	<u>3,510,034,976</u>
Transfers for Social Protection	3,460,034,976
Lifeline consumers of electricity	50,000,000
Other Expenditure	<u>16,228,736,853</u>
ESLA Transfers	1,007,336,853
Energy Sector Payment Shortfalls	15,221,400,000
Capital Expenditure	<u>57,528,994,278</u>
Domestic Financed	45,493,040,449
o/w Big Push ABFA Capex	14,665,560,465
o/w Annual Budget Funding Amount	7,297,259,739
o/w Mineral Royalties	7,368,300,726
Foreign Financed	12,035,953,829
Arrears	<u>29,827,345,487</u>
Amortisation	<u>24,822,558,105</u>

Observations and Recommendations**Year-on-Year Growth in Allocation**

The Committee noted that a total amount of two hundred and twenty-two billion, nine hundred and ninety-six million, nine hundred and eleven thousand, five hundred and seventy-nine Ghana Cedis (GH¢222,996,911,579) has been allocated to be expended on the Government Financial Obligations also referred to as Statutory Payments for the 2026 Financial Year.

For the 2025 financial year, an amount of One Hundred and Sixty-Four Billion, Nine Million, Four Hundred and Twenty-Six Thousand, Six Hundred and Sixteen Ghana Cedis (GH¢164,009,426,616) was allocated to be expended on Government Financial Obligations also referred to as Statutory Payments.

Thus the 2026 allocation represents a 35.97 per cent increase over the 2025 allocation.

District Assemblies Common Fund

The Committee took note of the judgement of the Supreme Court in Suit

No. J1/3/2018 dated the 12th day of June, 2019 regarding the computation of revenue for purposes of allocation to the District Assemblies Common Fund and sought to know whether the DACF allocation for 2026 had complied with the said judgment.

Officials of the Ministry of Finance explained to the Committee that, in compliance with article 252(2) of the 1992 Constitution and the said decision of the Supreme Court, the allocation to DACF for 2026 is free from capping.

Capping Weights for the 2026 Financial Year

The Committee noted that the Earmarked Funds Capping and Realignment Act, 2017 (Act 947) as amended provides a cap on specified Earmarked Funds to ensure that revenue encumbered by the Earmarked Funds as a result of allocations is a specified percentage of tax revenue.

Please find attached as Appendix 2, the weights for earmarked funds for the 2025 financial year

Annual Estimates, 2026 — Other Government Obligations



FIRST SCHEDULE
 (Section 1)
Sum of Money to be Issued from the Consolidated Fund for the 2026 Financial Year

Year: 2026
 Currency: Ghana Cedi (GHS)
 Version 1

	Budget
Total Appropriation	357,105,639,080
Compensation of Employees	90,759,950,860
Wages & Salaries	81,420,966,053
Social Security	<u>4,551,432,002</u>
Pensions	<u>3,647,659,279</u>
Gratuities	<u>1,139,893,525</u>
Use of Goods and Services	13,162,493,817
Interest Payments	<u>57,711,275,188</u>
External (due)	7,613,900,527
Domestic	50,097,374,661
Grants to Other Government Units	63,554,249,517
National Health Insurance Fund (NHIF)	11,296,744,203
Ghana Education Trust Fund	9,872,325,805
Road Maintenance Trust Fund	<u>3,006,886,275</u>
Energy Fund	<u>33,803,036</u>
District Assemblies Common Fund	<u>8,769,707,900</u>
Internally Generated Funds (IGF) Retention	18,180,717,613
Transfer to the National Oil Company from Oil Revenue	<u>2,626,603,460</u>
Other Earmarked Funds	<u>9,767,461,225</u>
Youth Employment Agency	896,120,455
Students Loan Trust Fund	10,141,339
Minerals Income Investment Fund	100,969,895
Minerals Development Fund	809,698,955
Ghana Revenue Authority Retention	5,276,170,394
Ghana Airport Company Limited	2,075,899,863
Ghana EXIM Bank Limited	598,460,326

Contingency Vote

The Committee observed that the Estimates include a Contingency Vote of GH¢361,622,068 for the 2026 financial year.

The Committee was informed that this amount has been set aside in the Estimates to meet emergency or unforeseen expenditure that may come up in the fiscal year, including unanticipated disasters, if any.

It was explained to the Committee that this Vote has been created as a line item in the estimates and not meant for payment into Contingency Fund Constitution, 1992.

Ghana GoldBod

The Committee observed that the approved estimates of Other Government Obligations for the 2025 financial year included an amount of GH¢4,547,700,000 to be spent by the Ghana Gold Board (GoldBod). However, as at the close of the 3rd quarter of 2025, no amount had been released by the Ministry of Finance to the Gold Board.

The Hon Minister for Finance, Dr Cassiel Ato Baah Forson explained to the Committee that the money was meant to be a one-time revolving fund to be given to the Board in order to enable the Board to purchase gold from small scale miners in the country. However, the Board upon its establishment, has been financing its operations in collaboration with commercial banks who provide Cedis in

the form of pre-payment in order to enable GoldBod to undertake gold purchases as the banks are also interested in the forex being generated by the Board.

The Hon Minister for Finance commended the GoldBod for generating averagely US\$300 million of foreign exchange every week to support the economy and assured that should it become needful for the GoldBod to request the 2025 allocated amount before the close of the financial year, the Ministry of Finance will take action on same appropriately.

Compliance with Section 47(3) and of the PFMA (Act 921)

The Committee noted that section 47(3) of the Public Financial Management Act, 2016 (Act 921) provides as follows:

“A covered entity may retain revenue collected or received, where the revenue is in the form of a levy, licence fee or administrative penalty and the covered entity is authorised through appropriation by Parliament to retain the revenue.”

A covered entity means the Executive, Legislature and Judiciary;

- (b) constitutional bodies;
- (c) Ministries, Departments and Agencies
- (d) Local government authorities;

- (e) the Public Service;
- (f) autonomous agencies; and
- (g) statutory bodies;

However, there are some state institutions who do not bring their budgets to Parliament for appropriation. The Committee, with the approval of this House, would engage with these entities on the need for their annual budgets to be presented to Parliament for consideration and appropriation.

Overspending of Extra Revenue

The Committee noted with concern the phenomenon whereby state entities that receive Grants to Other Government Units proceed to spend above their expenditure ceilings when they receive extra revenue from over-performing revenue handles.

The Committee recommends that the Ministry of Finance puts in place effective measures to ensure that covered entities remain within their annual expenditure appropriation ceilings unless a supplementary appropriation is approved by Parliament to enhance the relevant expenditure ceilings.

Conclusion

The Committee, having carefully examined the Estimates of the Other Government Obligations, recommends to the House to adopt this report and approve the sum of two hundred and twenty-two billion, nine hundred and ninety-six million, nine hundred and

eleven thousand, five hundred and seventy-nine Ghana Cedis (GH¢222,996,911,579) for the discharge of the Other Government Obligations (also referred to as Statutory Payments) for the Financial Year commencing on the 1st day of January 2026 and ending on the 31st day of December 2026.

Respectfully submitted.

Mr Richard Acheampong (NDC — Bia East): Mr Speaker, I rise to second the Motion on the Floor and make some observations.

Mr Speaker, to make it easier for Hon Members, those who have the Budget with them can turn to page 161 and page 185. They will see that all the figures stated in the Report are just a reproduction of those that we have already approved in the Budget. So, we do not need to repeat ourselves. We are calling on this House to approve the sum of GH¢222,996,911,579.00 for the operations of the Government for the ensuing year.

Mr Speaker, if you turn to page 1 of the document, you see the itemised allocations starting from General Government Services, subsidies, Big Push of GH¢30 billion, subscription, Contingency Votes, Falling Loans, Pensions, Gratuity, Social Security, Interest Payment, National Health Fund, Ghana Education Trust Fund, Road Maintenance Trust Fund, Energy Fund, District Assemblies Common Fund, transfer to National Oil Company, other earmarked funds, social benefits, other

expenditures, arrears, clearance and amortisation, all put together will give you the amount that I mentioned.

So, if you want to get to know the real numbers, you turn to pages 161 and 185 of the Budget. Nothing has changed. It is the same numbers that we are reproducing so that the Government can begin to draw moneys from the Consolidated Fund for the operations and activities of other MDAs and the Ministry of Finance from January 2026.

Mr Speaker, with these few words, I call on Members to support the Report. Without that, nobody will be paid from January 2026. Our salaries and conditions of service is hinged on the approval of this very Report. So, Mr Speaker, Hon Members should approve so that nobody will complain that they have not been paid.

Thank you very much for the opportunity.

Question proposed.

Mr First Deputy Speaker: Yes, Hon Member, you have the floor.

Mr Akwasi Gyamfi Onyina-Acheampong (NPP — Kwabre East): Mr Speaker, I rise to support the Motion for this House to adopt the report of the Budget Committee on the allocation of the sum of GH¢222,996,911,579 for the discharge of other Government Obligations for the year ending 31st December 2026.

10:16 p.m.

Mr Speaker, when the Committee met, we observed that there is a year-on-year growth in this allocation, which represents 35.97 per cent from the 2025 figure of GH¢164 billion. We also observed that this allocation contains a contingency vault of GH¢361,622,068.

Mr Speaker, the Minister for Finance explained that this Contingency Vault has been created to cater for unforeseen expenditure during the fiscal year. The Committee also tackled the issue of overspending by some state agencies. It is recommended that the Ministry of Finance put in effective measures to ensure covered entities remain within their annual expenditure ceilings.

Mr Speaker, without more, I will add my voice to the call on this House to adopt the Budget Committee's Report and approve the sum of GH¢222,996,911,579 for the discharge of Other Government Obligations for the year ending 31st December 2026.

Osahen Alexander Kwamena Afenyo-Markin (NPP — Effutu): Mr Speaker, I also rise to contribute to this Report and wish to express a few concerns.

Mr Speaker, on page two of the Report, we are told that some GH¢30 billion is going to an item called "Big Push". Whenever expenditure is centralised, and the impression is created that it is an initiative under the Presidency's supervision, I become very concerned. We have sector Ministries. We have Ministers responsible for

various Ministries. This “Big Push” is generally a road construction project. Why take it from the Ministry of Roads and Highways and centralise it somewhere?

Mr Speaker may recall that when we were going through the Budget, the period between the announcement of this policy and the preparation of the Budget, we noted that some moneys were listed as payments under this so-called “Big Push”. Within a month, a contractor can work, raise certificates, go through all the channels and get payment. We will continue to sound the alarm, and we will do so on solid grounds, not just blowing hot air. They cannot say that some GH¢30 billion is going to the “Big Push” and its capital expenditure. Who is going to supervise that? Is it the Chief of Staff, the Secretary to the President, or His Excellency himself who is going to supervise this?

Mr Speaker, the things our Friends criticised when they were in Opposition should be avoided under this reset dispensation. If they say certain things were wrong, or that certain things were centralised and affected governance—A similar problem can be found under the District Assembly Common Fund on page 3. We all know what is happening in our respective districts. This is not about a New Patriotic Party (NPP) MP complaining about what is happening in our various districts; the District Chief Executives (DCEs) and the Municipal Chief Executives (MCEs)—Funds go there, and there is no proper governance structure where various stakeholders can have input. If an MP is not lucky, the

MCE could dictate how public funds are spent, and the next moment, they remove the person from office during the primaries. And if they do not help us straighten things out and clean up, they will be the first casualty. Not me.

Let us be careful, Colleagues. When we, on this Side, rise on our feet, it is not for them to be in a hurry to say sit down or give gestures to the man above to stop him. We see all those body languages. But it is for their good. Mr Speaker, the Government must review this matter: the “Big Push” and the District Assembly Common Fund. Look at how disbursements are going to the Metropolitan, Municipal, and District Chief Executives (MMDCEs). One must be at their mercy to be involved in the governance architecture; otherwise, they begin to pack money, gain influence, redirect activities, and make it highly partisan. Then, because the MP works for the state, they become unpopular.

For instance, if a Backbencher is without a portfolio, not on any board, and not lucky enough to get GH¢5000 weekly from Doyoe. The MMDCE will have some GH¢100,000 to spend. So, the Backbencher will not be able to pay school fees or medical bills. When the primaries are conducted in 2027, the Backbencher will go home. They should sit there and be shouting.

Mr Speaker, let me also deal with another item, which is the transfer to the National Oil Company. In this House, I have never come across any entity called the National Oil Company. It is not Ghana Oil Company Limited (GOIL).

GOIL is listed on the stock exchange, please. The Government does not have any obligation to GOIL; GOIL is on its own. The Deputy Minister for Finance should tell us what they mean by the transfer to the National Oil Company. He provided the details. This is not the Chairman's duty. All the documents came from the Ministry of Finance. It is not the Chairman.

Mr First Deputy Speaker: Hon Minority Leader, a few minutes ago, you said the Chairman should explain. But now, the Chairman is behind you to help you, and you said no. Chairman, do you want to explain? *[Laughter]*

Osahen Afenyo-Markin: Mr Speaker, we are talking about the origins of the document. The Chairman is not the originator of the document. He deals with the document—

Mr Speaker, I have to be tolerant because some of my Colleagues have just come into the Chamber. Hon Member for Sekondi, I do not want to— Please!

10: 26 p.m.

Mr Speaker, can the Deputy Minister for Finance share with us the details of this National Oil Company? After that I can proceed with my— *[Interruption]*. You need to explain before, because Mr Dafeamekpor has just exited the Chamber. We want to know whether this has to do with Premix or any other thing. He is a Chairman of the National Premix Fuel Committee.

Some of their people hold multiple positions. One person is a Chairperson of a Committee, at the same time the Chairperson of a Fund. That same person also serves on an ECOWAS or Pan-Africa body. Meanwhile some members do not hold any position at all. They are in the Backbench. One person holds as many as six positions. *[Uproar]*

Some of them have even been forgotten. They only know the 189 Members. They do not know their names. They do not know their Committees. Meanwhile, one person is serving on some six Committees; others are serving on juicy boards while some others have no boards. They should allow us to do the work, especially as it will serve their good interest.

Mr Speaker, the Deputy Minister of Finance should explain to us what the National Oil Company is. Then after that I can come back.

Mr First Deputy Speaker: Hon Minority Leader, please conclude your submission then the Hon Minister will have the opportunity to respond to all issues that you have raised.

Osahen Afenyo-Markin: Mr Speaker, we are concerned. They tell us that there is some money going to National Oil Company. We do not know what money they are sending to this National Oil Company. Then there are other earmarked funds amounting to GHC9 billion. We are also told of “other expenditures”, totaling GHC16 billion.

Mr Speaker, when we considered the expenditure at the Presidency, we noticed that it had shot up by over 300 per cent. We have also observed that although the Government claims to have appointed only 60 Ministers, there are hundreds of appointees operating on the same level of responsibility, with the same conditions of service.

At the Presidency alone, there is a Director responsible for Agriculture; that is Dr Otokunor. And at the same time, there is also an Advisor on Agriculture, even though we have a Minister of Agriculture and a Deputy Minister.

Mr Speaker, when we examine these “other expenditures”, there is no specificity as to how these moneys are to be spent. Meanwhile, the Women Development Banking, they promised in their manifesto is yet to materialise. In year one, nothing was done and nothing was achieved, that is 2025. In 2026, the only amount they provided is enough to only meet the minimum capital required by Bank of Ghana. Even that capital, by law, cannot be touched. This means that in 2026, this Women Development Banking they wrote in their manifesto has *yaamutu*.

Mr Speaker, they are talking about other expenditures, and the amounts involved is not small amount. Take the Minister in charge of Public Sector Reforms, look at the public sector and all the loopholes within it. They appointed a Minister and gave her that responsibility, yet they have virtually rendered her redundant by failing to adequately provide for her portfolio. So, how is she

supposed to undertake the public sector reforms?

For instance, the Electricity Company of Ghana (ECG) has increased tariffs by over 27 per cent, yet there are serious loopholes at ECG. How are those reforms being addressed? Who is supervising them? No provision has been made for that. Reforms are supposed to generate savings, yet they created the office, brought a Colleague Member of Parliament to be vetted as a Minister, and after that, they have forgotten about her. In fact, that Ministry is not even elevated to a Cabinet status. It means they are not even serious about the reforms.

They are now telling us that under the Office of Government Machinery (OGM), some GHC16 billion is allocated to “other expenditure”. At the same time, they are now planning to purchase a new presidential jet after they criticised the purchase of presidential jets when they were in opposition.

Mr Speaker, the Government must get its priorities right. They insist on implementing and spending these moneys and they must take responsibility for their actions. We are not part of this rather questionable expenditure and we will not be part of it. *[Interruption]* Yes, this Side of the House is distancing itself from these questionable expenditures. This OGM— *[Interruption]*— Indeed you are right, this Other Government Obligation (OGO) with a lot of questionable expenditure, we cannot be part of it. When they cannot identify priorities that will create jobs— Look at the allocations

to the Ministry for Food and Agriculture, look at what has been given to the Ministry of Gender, Children and Social Protection, and yet they allocate GH¢16 billion for other expenditures that have not been identified, not even for national security.

Mr Speaker, very soon Ghanaians will call on them to account. The Minister of State in charge of Special Initiatives is also another redundant Minister. In all of the Budgets, they could not even assign those special initiatives to that Minister to supervise so that that Minister will account to Parliament. They push it all to OGO, so that they can do their ways and means. So be it.

But Mr Ampem, do not be too happy today. *Hansard* will record that the Minority warned you that you are solely responsible, and you will account for this someday.

Mr Speaker, thank you very much.

Mr First Deputy Speaker: Yes, Hon Deputy Minister for Finance, please be brief.

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) (MP): Mr Speaker, I need to respond to him.

Mr Speaker, I rise to support the Motion to approve the amount that has been stated earlier, GH¢222,996,911,579, for the Other Government Obligations, for the year ending December 31st, 2026.

10:36 p.m.

Mr Speaker, let me say that it is surprising to hear today that there are no proper governance structures at our District Assemblies; that cannot be right. Our District Assemblies have good governance structures and we all know that there is a general assembly that approves the Budget of the Assemblies. There are committees of the Assemblies, just as we have in Parliament here. Every procurement of the District Assembly goes through our procurement laws. So, it is surprising for anybody to say, and no better person than the Minority Leader of this Parliament, to suggest that in our Assemblies there are no proper governance structures; that is not true.

Mr Speaker, the Big Push Project, as we have explained severally, is an arrangement to speed up the provision of infrastructure in this country. In the 2025 Budget, we allocated over GH¢13 billion for the Big Push Project. As we see here, an amount of GH¢30 billion has been allocated to the Big Push Project.

But Mr Speaker, contrary to the suggestions that were made a short while ago, this is not being implemented at the Presidency. The Big Push Project, if it is roads, is being implemented by the Ministry of Roads and Highways. If it is transport—So the respective Ministries are implementing this particular initiative. It is just that we have made special allocation to that, to lay emphasis on it, and to make sure that payments are done promptly.

Mr Speaker, he asked a question, that what is the transfer to National Oil Company. This has always been the rendition. The National Oil Company is the Ghana National Petroleum Corporation (GNPC); that is our National Oil Company.

So, the allocation of GH¢2.6 billion is going to GNPC. Mr Speaker, we will see that we have also made an allocation. *[Interruption]* I listened to the Minority Leader in silence, and I expect him to do the same. Mr Speaker, you see, the Minority Leader, who is always preaching that people should listen to him in silence, today does not want to listen to us in silence.

Mr Speaker, we have made an allocation of GH¢29.8 billion for arrears clearance. We would recall that in this year's 2025 Budget, we made an allocation of GH¢13.7 billion to clear arrears. The Minister for Finance was here to announce to the whole nation that we inherited arrears of more than GH¢68 billion. We subjected that to audit, and the amount that has been validated is being provisioned to be paid over a period of time. In 2025, we paid over GH¢13 billion, and in 2026, we are planning to pay almost GH¢30 billion. This is good news for contractors who did a lot of work, that the previous government failed to pay for.

Mr Speaker, the House will also realise that we have made enough allocation for the National Health Fund, GETFund, and the District Assemblies Common Fund.

As I bring my submission to a close, Mr Speaker, I want to draw your attention to page 161 of this Budget. The House would realise that “Grants to Other Government Units”, the Budget provided for GH¢63 billion to be paid, and we are on course to doing this. But where I want the House to know on page 157, the “Grants to Other Government Units” for 2025 was GH¢54 billion. By the end of third quarter, we had programmed to pay an amount of GH¢39 billion, but the provisional figure was GH¢42 billion.

The actual payment at the end of the period was GH¢42 billion. We have programmed that by the end of the year; we would have paid GH¢50 billion. I am taking my time to explain that and I want the Hon Minority Leader to listen to this.

So, historically, we all know that payment to District Assemblies Common Fund, Health Insurance Fund, and others were a quarter in arrears. This time we pay promptly at the end of every month. When we know the revenue that has been collected, we make transfers to GETFund and the Health Insurance Fund; that is the prudence that is happening.

But the last thing I want the House to take note is on interest payments. Mr Speaker, we had programmed to pay GH¢59 billion on interest payments. But by the end of the third quarter, even though the programmed amount was GH¢52 billion, we had paid only GH¢42 billion. This is because of the prudence that is happening at the Ministry of Finance. When we came,

interest rate on our 91-day Treasury Bill was around 27 per cent, but today, it is around 11 per cent. So, we are making savings. We are saving on the cost of our debt. These are the prudence that are happening.

Finally, by the end of the year, we would have saved GH¢8 billion on interest payments. This could not have happened many years ago, but it is happening today. So, let us all support the approval of this amount to support the implementation of the Budget. Thank you, Mr Speaker.

Question put and Motion agreed to.

Resolved:

That this honourable House adopted the Report of the Budget Committee on the allocation of the sum of GH¢222,996,911,579.00 for the discharge of Other Government Obligations for the Year ending 31st December 2026.

Mr First Deputy Speaker: Hon Deputy Majority Leader, any further indication?

Mr Ricketts-Hagan: Mr Speaker, thank you very much. I think we have exhausted the Business for today.

Osahen Afenyo-Markin: Mr Speaker, we indicated, as part of the things to do today, to take Hon Darko-Mensah's Statement.

Mr First Deputy Speaker: Hon Darko-Mensah, may we take your Statement?

10:46 p.m.

STATEMENT

Masquerades and the Making of Sekondi-Takoradi as the Christmas City of Ghana

Mr Kwabena Okyere Darko-Mensah (NPP — Takoradi): Mr Speaker, I am very grateful for the opportunity to speak about the masquerade and Sekondi-Takoradi as the Christmas city of Ghana.

Mr Speaker, Kwahu is known for Easter celebrations, but it is an indisputable fact that Sekondi-Takoradi is the Christmas city of Ghana. One of the most popular events that has earned Sekondi-Takoradi this title is the masquerade festival, which people refer to as Kaakamotobi, Tseetseete, Fancy Dress, Ankos, Westside carnival, and Tadifest.

Mr Speaker, Christmas festivities officially begin on the 19th of December in Sekondi-Takoradi, its peak is on the 25th and 26th of December, and continue into the New Year. The carnival attracts over 50,000 active participants, and one of the beautiful aspects of this festival is its inclusivity. Provided you have the energy to walk and jump, all that you need is a costume or a uniform from any of the masquerade groups, and you are good to go.

I began joining this festival at the age of five, and others, like lawyer Tony Forson, former President of the Ghana Bar Association (GBA); Stephen Abbas Miezan, President of the Ghana National Chamber of Commerce; Dr Safo, Essikado Hospital; the Baidens; Dr Haizel Amoah of Prudential; our own Hon Fiifi Buckman, and Paramount Chiefs also participate.

Today, the attraction is massive. Hotels and other hospitality facilities are always fully booked to the extent that some visitors resort to sleeping in their cars. Restaurants and eateries also experience booming sales, and several parties are organised at various homes and centres for both indigens and tourists, giving people the opportunity to connect and renew relationships.

Mr Speaker, a notable pioneer of the masquerade is Mr Barnes of Ankos fame. Modern-day champions of the carnival initiative include the late Efo Mawugbe of blessed memory, Mr Wilson Arthur of Sky FM, who remains a key pillar to date, Kofi Gyetua Ankomah, and Madam Margaret Nsiah, my own mother. This festival was born out of the Ahanta War formation and ceremonies that were led by Nana Gyan Kwaw.

Mr Speaker, Gyan Kwaw was the War General of Badu Bonsu II whose army was crushed by the Dutch in 1724 for his anti-slavery activities. He escaped to Kumasi during the reign of Otumfuo Opoku Ware I, and created the village which is presently known as Kwadaso. His other military men and slaves were captured and sent to the Bahamas, and

other parts of the Caribbean. In celebration of the war leader, Gyan Kwaw the people held the “Jankanoo” festival. Jankanoo is a corrupted word for Gyan Kwaw or Jan Kwaw.

Some seamen from Takoradi enquired into the history behind the celebration and discovered that it was in honour of their native for his fight against slavery and indignity against black people. The seamen told them they came from Ahanta land and, as such, they would bring the celebrations back home to Takoradi. That is why the first noted group of the masquerade was called Ankos, a name chosen from the term of art “Anchorage”.

Mr Speaker, more than 50 masquerade groups and their accompanying brass bands exist, and these groups are not mere entertainment societies, but they actively contribute to community development through scholarships, cleanups, and youth support initiatives. Groups such as Supreme, Cosmos, Tumus, New Jersey, Emirate, Odo Ye Few, Iron Fighters, Canadian, Oil City, Road Masters, U.S.A, Holy Cities Masquerade, among others, are becoming centres of local investments and innovation. The movement has spread beyond Takoradi to Tarkwa, Cape Coast, Elmina, Tema, Bekwai, and now Kumasi, and even to the Ghanaian diaspora. In Canada, at the Calgary Stampede, UK festivals, among others, showcase our culture globally. Local radio stations, including Empire Radio, Connect FM, and others, have also created vibrant platforms that enrich the festive season. These include the Made

in Tadi Concert by Kofi Kinata which will happen on 20th December, Sekondi-Takoradi Potomanto Festival, Ahanta Fest, Nyaakrom Bronya, and the Effia and Essikado Carnivals.

Mr Speaker, the transformation of this festival into a national attraction has been made possible by a growing list of partners and individual companies like ABL, Goil, MTN, Telecel, Fan Milk which are all on board. Others are the Ghana Tourism Authority (GTA), Centre for National Culture (CNC), the Western Regional Coordinating Council, the Sekondi-Takoradi Metropolitan Assembly, and our dedicated agencies also continue to ensure safety and crowd management throughout the celebration, not forgetting the Christmas City Project Team and the Sekondi-Takoradi Bronya Committee. The London Carnival, for instance, generates over £170 million.

Mr Speaker, in conclusion, I believe that with this, we want to invite all Ghanaians in the global community to come and refresh in the Sekondi-Takoradi area. Western Region, *yɛ wɔ adze a oye*.

Mr Speaker, thank you. [*Hear! Hear!*]

10:56 p.m.

Mr First Deputy Speaker: Hon Members, Statement ably made. Hon Members, can we take one comment from each Side? Yes, Hon Member?

Mr Philip Fiifi Buckman (NDC — Kwesimintsim): Thank you very much Mr Speaker.

May I commend my former Regional Minister Hon Kwabena Okyere Darko-Mensah and the Member of Parliament for the Takoradi Constituency for bringing this to the attention of the whole world through his Statement.

Mr Speaker, there is this song, which says “*Beebi yɛ dɛw mpo a ɔnnɔ 25th na New Year wɔ Taadi*” from the legendary Kofi Kinaata. The Christmas celebration, starts with the seminar by this legend, Kofi Kinata, which is going to start on Friday, 19th December, 2025 in the morning. Then, the high-spirited “Made in Taadi” Concert would be held on the 20th December, 2025, where we are going to have great artists going to join.

Mr Speaker, I must say that on 25th December, the whole world looks up to Takoradi, where we celebrate the West Side Carnival. The West Side Carnival, in which I have participated as a member of one of the groups, “Sanato”, for 25 years. So, I am celebrating my 25th anniversary as a member of this masquerade group.

Mr Speaker, the maker of the Statement, when he was a Regional Minister, I must say, helped in elevating the programme to a certain level, which I believe that the current Regional Minister will take also to higher heights.

Mr Speaker, the feeling in Sekondi-Takoradi, from 25th December, 2025 to 1st January, 2026, is something that is incomparable. It cannot be compared with any celebration anywhere. We have serene hotels, like the Serene Best

Western Atlantic Hotel, the Groove Essipong Beach Resort, the Palms by Eagles and others. These hotels are five-star hotels that are ready to host any person who comes to the Western Region to celebrate with us.

Mr Speaker, I have and on behalf of my group, put together ten of these costumes for Members who are ready to come to the Western Region—*[Interruption]* I want to throw an invitation to my learned Senior, the Hon Minority Leader, Osahen Afenyo-Markin. I know that he loves these masquerades and I know how he goes dances and enjoys with them. Hon Jerry is also invited—

[The Hon Member sang.]

Mr First Deputy Speaker: Hon Member, the House is not a music studio. Kindly conclude—*[Laughter]*

Mr Buckman: Mr Speaker, to conclude and to wit, I am saying that, if there is any place that jams and there is enjoyment, then it is Sekondi Takoradi. We would want to invite the whole world to come to Sekondi Takoradi for this Christmas.

Thank you very much, Mr Speaker, for giving me this opportunity.

Mr First Deputy Speaker: Yes, Hon Leader?

Osahen Afenyo-Markin: Mr Speaker, thank you for the opportunity to comment on a Statement made by our

senior Colleague, Hon Okyere Darko-Mensah.

Mr Speaker, the Colleague took a great deal of time to mention names of individuals who have contributed to make the Sekondi Takoradi a masquerade festival, the carnival and the way it has become widely accepted, without mentioning his own name. Of course, I was quite cautious, but since some of us have been observing from a distance, it is important that *Hansard* captures his own role in opening up this cultural programme.

Mr Speaker, we often depend on so many other things to promote investment, create opportunity for business, and we forget that tourism plays a critical role. We often ignore the talent in our various communities. But these are the talents that attract others, depending on how these talents are nurtured.

In my own backyard, Winneba, for many years, it became known to the world because of the youth choir led by Paa John Yamoah. He realised that for many years, they had patrons like the former Vice President of blessed memory called Kow Nkensen Arkaah. Later, H. E. Nana Konadu Agyeman Rawlings, also took up the responsibility of promoting their activities. Our own President John Evans Atta Mills of blessed memory also became their patron through Dr Don-Arthur of Winneba. Eventually, former Presidents, John Agyekum Kufuor, Nana Akufo-Addo and others, all supported the cause

of Winneba Youth Choir and that gave Winneba a name.

Mr Speaker, this Masquerade Festival he talked about—yes, Sekondi Takoradi organizes theirs during the Christmas season, but since 1957, history has it that our first President Osagyefo Dr Kwame Nkrumah, during the independence celebration, through the committee that was set up, encouraged various communities to come up with unique activities from their own area to add to the shine of the day. I am told that some elders in Winneba put together this Masquerade Programme.

At the time, we had only one group called Nobles, which was founded in the early 1900s, through their association with the Dutch. Eventually, Winneba, now developed four groups, the Nobles No. 1, the Egyaa No. 2, Tumus No. 3 and the Red Cross No. 4. For over 50 years, on the 1st January of every year, the people of Winneba celebrate this Masquerade Festival, just as our friends, brothers and sisters in Sekondi Takoradi have been going about theirs by way of street carnival. The difference here is that in Winneba, there is no uniformity in terms of the costume. Each group has its own unique costume. In Winneba, it is a competition; the four groups compete for a trophy. It has been so all these years. Recently, a new group was added, which is the Royals No. 5.

Mr Speaker, as my respected senior Colleague is inviting us to get to the West and enjoy the carnival, I take this opportunity to also remind this House and the country that in my Constituency,

Effutu, in its capital, Winneba, we are celebrating a unique Masquerade Festival on 1st January, 2025. It is called the Fancy Dress. It is going to be a great time for family and friends and many others. All Colleagues are invited. I will host you all if you make it to Winneba. *[Hear! Hear!]*

So, at least after 31st night, in the afternoon, they can come to Winneba. It is a place to be.

11:06 p.m.

Winneba is a beautiful city. It has hosted the ECOWAS Parliament on four occasions. It has never happened in the history of the ECOWAS Parliament that sessions are held outside the capitals of Member States. Winneba is the first city to host the 115 parliamentarians on at least four occasions for their parliamentary sessions. So, Mr Speaker, the facilities are there. There are great hotels in Winneba, Gloriaka Hotel, Windy Lodge, Fairmont, and the rest.

Mr Speaker, Members will get a good hotel to relax. Perhaps I may have to commit by saying that if a Member comes to Winneba, I will ensure that they enjoy free hotel accommodation. That, Mr Speaker, I can commit.

Mr First Deputy Speaker: Hon Minority Leader, is it an offer or an invitation to treat?

Osahen Afenyo-Markin: Mr Speaker, it is 11:10 p.m., I do not want to get into the area of law. I am inviting them, and they know that I am a man of my word. I

can host my Colleagues. The invitation is not only to Colleagues but also to our able, dedicated Parliamentary Service staff, headed by our own Mr Ebenezer Ahumah Djietror.

Mr Speaker, he takes all the punches without complaining. It is time to come and cool off in Winneba. All of them are invited. I know if I add the national service personnel, the numbers would be too much. They are not included in the free accommodation. The free accommodation is for MPs and Parliamentary Service staff. It does not cover national service personnel. They are many, and I have to admit that I may not be able to afford any additional cost, but they are welcome. They should come to Winneba. It is just an hour's drive from Accra.

I am also ready to host them at my house. They should come, enjoy all the pleasures, and ensure that they leave Winneba as happy men and women.

Mr Speaker, that said, let me thank you for the opportunity. And let me once again, thank Hon Okyere Darko-Mensah. God bless him for what he has done for his Constituency and for promoting this carnival. I am sure that if the Ministry of Tourism actually considers the impact of what he is doing in Sekondi, as well as what we are doing in Winneba, it can be integrated into the tourism policy of the country. And I am sure the needed revenue would be gained from there to help our national discourse.

Mr Speaker, thank you.

Mr Dafeamekpor: Mr Speaker, we pray you to yield the opportunity of Leadership—

Mr First Deputy Speaker: Hon Member, bear with me. Statement time has ended. The Minority Leader, having failed to invite the Speakership, we shall invite ourselves. *[Laughter]* Fortified by Standing Order—

Osahen Afenyo-Markin: Mr Speaker, it was a major error on my part for not inviting the Speaker himself and his able deputies. I apologise. But, Mr Speaker, sometimes we know that you want to guide us, but my very respected Colleague, the Chief Whip, was on his feet to yield the spot of Leadership.

Mr First Deputy Speaker: There is a stated reason for indicating that the House bears with me.

Osahen Afenyo-Markin: Mr Speaker, very well. The way you pronounce on same, I think it creates some, you know what I mean. So, if you can straighten things up, because the signal that was picked was quite worrying.

Mr First Deputy Speaker: Very well. I said I plead with the House to bear with me. Fortified by Standing Order 56(2), I will proceed to adjourn the House.

ADJOURNMENT

The House was adjourned at 11:13 p.m. till Thursday, 18th December, 2025 at 12 noon.

Editor's Note

This *Official Report* was corrected by the House on 6th February, 2026.